

# AMERICAN INJUSTICE

## A Memoir of Constitutional Warfare

I, MATTHEW REARDON, DO SOLEMNLY SWEAR THAT I WILL  
SUPPORT AND DEFEND THE CONSTITUTION OF THE UNITED STATES  
AGAINST ALL ENEMIES, BOTH FOREIGN AND DOMESTIC, AND  
THAT I WILL BEAR TRUE FAITH AND ALLEGIANCE TO THE SAME.



SO HELP ME GOD

*Matthew Reardon*  
UNITED STATES MARINE

## DON MATTHEWS

THREE FEDERAL CIVIL RIGHTS ACTIONS



Reardon v. Lafayette County, MS et al  
(Mississippi)

Reardon v. Layton, UT et al  
(Utah)

Reardon v. Osteen et al  
(Galveston, TX)

A MEMOIR OF CONSTITUTIONAL WARFARE

# AMERICAN INJUSTICE

*Three Federal Civil Rights Actions*

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*"I, Matthew Reardon, do solemnly swear that I will support and defend the Constitution of the United States against all enemies, both foreign and domestic, and that I will bear true faith and allegiance to the same." — So help me God.*

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DON MATTHEWS

*Matthew Oliver Reardon — United States Marine*

THE CASES

REARDON V. LAFAYETTE COUNTY, MS, ET AL. • REARDON V. LAYTON, UT, ET  
AL. • REARDON V. OSTEEEN, ET AL. (GALVESTON, TX)

AMERICAN INJUSTICE: A Memoir of Constitutional Warfare

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This is a work of nonfiction. It reflects the author's own experiences, recollections, and documented record over more than a decade, including court filings, sworn testimony, contemporaneous recordings, and public records. Where an account rests on the author's own memory or characterization rather than an independently verifiable document, that distinction is noted in the text.

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## PROLOGUE

### THE FIRST DOMINO

**T**he video runs a little over a minute, and that minute is the only ten years of the rest of my life needed to turn on.

I stand on public property — the public sidewalk in front of the main Lafayette County Courthouse in Oxford, Mississippi, directly in front of the statue and monument on the courthouse square — holding a video camera at chest height, the way people hold cameras when they have already learned that lowering the camera is the first thing an officer will ask for. I am not shouting. I am not blocking a door. My purpose that afternoon is to send a message of support and protection for that historical monument, and — just as important to me that particular day — for the flag of the State of Mississippi. Standing on a public sidewalk to make that statement is a thing the Constitution of the United States says I am allowed to do, and which several thousand court decisions have said I am allowed to do, and which, in just over a minute's time, is about to get me arrested anyway, because I make the mistake of questioning a deputy's authority and asking him for his badge number.

The brick-paved square surrounding the historic Lafayette County Courthouse was quiet in the afternoon heat, shaded by mature live oaks and lined with white-columned storefronts,

upscale boutiques, and the grand porch of City Hall across the street. To a tourist visiting Oxford or an Ole Miss alumnus back in town for a football weekend, the square represents the picture-perfect image of small-town Southern charm and academic prestige. But when you stand on that sidewalk holding a video camera at chest height, the texture of the environment changes instantly. The air grows heavy with institutional friction. You discover quickly that in a county seat of thirty thousand people where political, legal, and commercial power overlap tightly, public space is only truly public so long as your presence conforms to what the local authorities expect. The moment your posture suggests monitoring or dissent rather than tourism, the invisible boundaries of permissible civic presence snap into sharp, hostile enforcement. My elbows were tucked close to my ribs and my hands held the camera rig steady—a physical posture born of Marine Corps muscle memory, calibrated to ensure no officer could credibly claim I had thrust a lens into their face or brandished an object aggressively. Yet even with that disciplined stillness, the simple act of standing on a public sidewalk in support of a historical monument and the state flag was treated by the men wearing badges as an act of intolerable defiance.

That is where I could start my story, and for a long time that is where I — Matthew Oliver Reardon, the man in the video, writing now under the pen name Don Matthews — believed my story started. A flag protest in the spring of 2017. A deputy named Timmy Pruitt. A first domino.

It isn't, quite. The truth is messier and, in its way, more damning, because it means none of what follows can be waved away as one bad afternoon that snowballed. The actual first domino fell eight months earlier, in September 2016, when I — a private citizen with no law degree, no press credential yet, and no criminal record — started a Change.org petition asking Mississippi cities to lose state funding if they refused to fly the state flag. I named two decision-makers — then-Governor Phil Bryant and then-State-Senator Chris McDaniel — and by the time the petition closed it had 4,486 signatures attached to it. That is not a radical act. That is closer to the most boring, procedurally correct form of American dissent there is: circulate a petition, name the officials who can act on it, wait.

Under established constitutional doctrine, petitioning government officials for a redress of grievances is the foundational mechanism of First Amendment expression. It is the peaceful, orderly process through which citizens voice opposition to state actions without resorting to civil disruption. You do not block traffic on Jackson Avenue; you do not occupy public lobbies; you articulate a statutory demand, assemble signatures from fellow residents, and submit the grievance directly to the elected leaders possessing statutory



authority over public funds. In September 2016, I genuinely believed in the integrity of that mechanism. I believed that gathering 4,486 signatures was an exercise in productive civic engagement. What I failed to understand was how small-town political networks and municipal law enforcement leadership interpret such acts. To an administrative establishment accustomed to quiet deference, an unyielding citizen who mobilizes thousands of people around a contentious policy issue is not viewed as a participant in democracy. He is viewed as an administrative hazard—an unpredictable agent who must be monitored, classified, and ultimately neutralized before his challenges disrupt institutional routines.

It matters to start there and not at the flag protest, because the entire architecture of what happened to me over the following nine years rests on a single implicit claim made, at various points, by a sheriff's department, a circuit clerk, a mayor's husband, a U.S. Marshals Service district office, and a federal prosecutor: that I brought this on myself. That a man who behaves the way institutions expect a "compliant citizen" to behave does not get arrested twelve days before the murder weapon in my own case existed. Does not get committed to a psychiatric facility on the say-so of the same sheriff whose department I had just sued. Does not get struck in the head with a metal flashlight at a city hall four states away, denied the security footage of my own beating, and then arrested for it while sheltering from an ice storm.

Long before sheriff's deputies ever placed handcuffs on my wrists on the town square, the entire dispute had already been converted into a hostile, real-time online spectacle. A YouTube channel operating under the title 'Reardon Watch' (@reardon-watch1008), maintaining a small subscriber base of 24 subs, conducted relentless mocking coverage targeting my activities throughout the 2017 saga. The channel's public archive functioned as a digital platform for local schadenfreude, airing an elaborate 8-part series titled 'Frank and Marlee's Saga', along with mocking updates like 'Breaking News: Reardon Arrested!', 'The Fireball Rants' parts 1-3, '72-Hour Facebook Ban', and 'Oxford is a Nazi Communist Dictatorship'. This extensive digital trail demonstrates conclusively that my situation was already an established local spectacle long before formal criminal affidavits were sworn or executed. Local residents, municipal personnel, and law enforcement officers consumed these uploads, observing every social media suspension, every passionate video broadcast, and every interpersonal dispute as public entertainment. In a small community where police officers and court personnel inhabit the same social circles as online commenters, this hostile coverage systematically shaped institutional attitudes. When officers confronted me on public streets, they did not see an individual exercising constitutional rights; they saw the caricatured antagonist depicted across dozens of 'Reardon Watch' uploads.

The sheer scale of police resources deployed against me on the Oxford square reflected an operational posture far beyond routine municipal policing. In a recorded telephone call, retired Lt. Col. Lee Morrison described an astonishing scene he witnessed firsthand: an estimated 30-35 law enforcement officers converging on the town square all at once while he was filming near his own statute-of-limitations deadline. During that recorded call, Lt. Col. Morrison floated his own uncorroborated theory for why such a massive, multi-agency force had descended upon the square—suggesting the overwhelming police response was mounted to protect incoming Mayor Robyn Tannehill politically. It is vital to state explicitly that Lt. Col. Morrison's assertion regarding political protection for Mayor Tannehill remains strictly his own unverified claim and personal theory, unsupported by judicial findings or official documentation. Yet, regardless of whether his political speculation holds water, the physical reality he witnessed and recorded remains undisputed: over thirty armed officers deployed to a small-town public square to surround a single citizen holding a video camera. When an administrative system mobilizes thirty-five officers for a sidewalk filming incident, the objective is no longer routine law enforcement; it is a display of state force intended to signal that public scrutiny will carry an unbearable cost.

Something in that chain has to be true and something in that chain has to be false, and my hardest commitment in telling this story is to say clearly which is which, and to say clearly where nobody actually knows.

Here is what is true, and provably so, independent of anything I say about myself: on May 20, 2017, I bought a rifle. There is a bill of sale. It has a date on it, a seller's name — Larry Watkins, found through the classifieds site Armslist — and a signature. Six days later, on May 26, four senior Lafayette County law enforcement officers — Chief Deputy Scott Mills, Major Alan Wilburn, Lieutenant Jared Bundren, and Sheriff Joey East — arrived to arrest me for aggravated stalking, on an allegation that I had threatened a local restaurant couple with an AR-15 "on or before May 8, 2017." May 8 is twelve days before the rifle existed. That is not a matter of my word against the state's. That is a receipt against a police report, and the receipt wins.

To grasp the full legal weight of that chronological impossibility, one must examine the statutory mechanics of Mississippi criminal procedure. Under Mississippi Code § 97-3-107, aggravated stalking is a felony carrying severe prison sentences, requiring the state to establish a credible threat of death or serious bodily injury made with a deadly weapon. When senior law enforcement officers execute an arrest warrant affidavit, they swear an oath before a magistrate or justice court judge that probable cause rests on concrete, verified facts. When Chief Deputy Scott Mills, Major Alan

Wilburn, Lieutenant Jared Bundren, and Sheriff Joey East executed that warrant on May 26, they relied on a sworn factual narrative asserting an armed threat on or before May 8. In a functioning judicial environment governed by the Fourth Amendment, producing an unassailable bill of sale proving the firearm was purchased on May 20 from Larry Watkins via Armslist should have dissolved the prosecution instantly. An arrest affidavit rooted in a chronological impossibility lacks probable cause as a matter of law. Yet in Lafayette County, exposing a twelve-day impossible gap did not trigger a dismissal or an internal investigation into how four high-ranking law enforcement officials swore to a false timeline. Instead, it marked the beginning of years of aggressive litigation designed to preserve the state's posture while keeping me tied up in the court system.

Here is what is also true: I, the same man who owns that exculpatory receipt, have, by my own account and by the account of people who love me, coached my six-year-old daughter about a custody dispute in her mother's home while a recorder ran. Left a tripod in front of a courthouse emergency exit and later crowed on a livestream that "now they just asked for it," language a federal judge would be entitled to read as something between bravado and confession. Flown a drone into the side of a building with my young stepdaughter present. Called a U.S. Marshal a name that got me charged with a federal misdemeanor.

Both of those paragraphs are true at the same time. That tension is not resolved here by picking a side and shading the facts to fit. It is resolved by refusing to pretend the tension isn't there — because the tension is, in fact, the whole point. The American legal system is very good at building an airtight case against a difficult person. It is much worse at asking whether the difficult person was also telling the truth about something the system badly did not want litigated: that a sheriff's department can lose or "selectively preserve" the footage that would clear me, that a circuit clerk can swear two contradictory things eighteen months apart under oath, that a mother of one of my children can report the same fabricated accusation three years running and never once be prosecuted for it until a police detective personally intervenes, that a federal district's Marshals office can circulate a "district alert notice" with my photograph and my rifle in it two months before I am arrested for a crime that alert predicted I would commit, in the city the alert predicted I would commit it in.

Within federal law enforcement structures, the distribution of a "district alert notice" by the U.S. Marshals Service is a potent administrative act. These alerts function as internal law enforcement bulletins, warning officers across jurisdictions that an individual presents a heightened security risk. When such a bulletin is distributed featuring a suspect's photograph and firearm details months prior to an arrest, it establishes an environment of pre-determined hostility. Any officer encountering that individual is conditioned to expect violence,

turning routine interactions into high-risk tactical encounters. Furthermore, when exculpatory video surveillance vanishes from police custody, civil rights litigants face the daunting legal barrier of proving spoliation of evidence. Under Federal Rule of Civil Procedure 37(e) and governing constitutional doctrines established in *Brady v. Maryland* and *Arizona v. Youngblood*, establishing that law enforcement improperly destroyed or failed to preserve vital video evidence requires demonstrating bad faith—an exceptionally high legal bar when police departments assert routine technical failure or automated system overwriting.

None of that erases the tripod. None of that erases the coaching. It sits next to it. That is what a "layered thesis" means in practice, and it is the discipline held from this page to the last: two honest ledgers, kept open at once, in a story that spans a flag petition, five state court cases, three separate psychiatric commitments, a federal civil rights suit still working its way through a magistrate's recommendation, a 4,000 shortfall in a narcotics unit's lockbox that somehow touches every bad actor in my story at once, and — as of this writing — a federal misdemeanor sentencing scheduled for August 7, 2026, over a courthouse lobby in Lafayette, Louisiana, where the government has already conceded, in writing, that it failed to preserve all of the surveillance footage that would show what actually happened in that lobby before the arrest.

You do not need to take my word for any of that. Nearly everything in the chapters that follow is anchored to something that exists independent of me: a bill of sale, a FOIA release, a docket entry, a recorded phone call, a sworn affidavit that contradicts an earlier sworn letter from the same official. Where the record runs out and only my account remains, I say so plainly, in the text — not in a footnote I hope you skip. Call it a claim if you want a single word for it. You will see that word more than once, and should trust it more, not less, for how often it appears.

This is the story of what happens when a government decides a citizen is a problem before he has broken a law, and then spends the better part of a decade making sure the paperwork eventually agrees with them — and what happens, more rarely and more slowly, when some small number of people inside that same system refuse to go along with it: a detective who investigates a false rape report honestly and charges the woman who filed it, a court of appeals that reverses a conviction on the merits two years after everyone had stopped watching, a federal magistrate who names, in her own recommendation, that a Galveston police officer lied under oath.

It starts with a flag, and a petition, and 4,486 names. It does not end yet.



## THE FLAG PETITION

**I**n September 2016, I was not yet anyone's idea of a First Amendment auditor. I had left the Marine Corps five years earlier, discharged under conditions the record classifies as General Under Other Than Honorable, alcohol-related — a fact I do not hide from and one I will not soften, because softening it would cheapen the more important fact sitting next to it: whatever the Corps' internal accounting of me was in 2011, when I filed a Change.org petition in 2016, I filed it the way anyone is supposed to file one. Publicly, under my own name, with a stated purpose, naming the two elected officials with the power to act on it.

That drinking problem was not an abstraction confined to my service record. In November 2014, three years after separating, I picked up a DUI conviction in Georgia — one day of confinement, eleven months and twenty-nine days of probation. I was young and dumb and still very much carrying the drinking problem that trauma from my time in the Corps had left behind, and I am not going to pretend that conviction belongs to someone else. Separating from the armed forces under administrative conditions, especially when linked to alcohol abuse, leaves an indelible mark on how an individual interacts with authority. The Marine Corps enforces a rigid,

uncompromising structure of rank, military justice, and procedural regulations. In uniform, even when facing disciplinary action, the administrative framework operates according to clear written codes under the Uniform Code of Military Justice. Returning to civilian life in North Mississippi, I carried that military expectation of explicit rules and procedural accountability into the public sphere. When I observed public institutions operating with informal favoritism or ignoring statutory display mandates, my instinct was not to stay quiet or look away. My reaction was to invoke formal grievance procedures, expecting civilian administrators to adhere to the rule of law with the same exactness demanded in military service.

The petition was titled "Cut off State Funding to MS City/Municipalities/Schools who refuse to fly MS State Flag." Then-Governor Phil Bryant and then-State Senator Chris McDaniel were named as the decision-makers whose attention the petition sought. By the time it closed, 4,486 people had signed it. Whatever a reader thinks of the underlying position — and reasonable people can and do disagree sharply about what a state flag should or shouldn't depict, and Mississippi's 2020 flag change three-and-a-half years later suggests the country as a whole eventually disagreed with the flag I was defending — the act itself sits squarely inside the tradition the First Amendment exists to protect: petitioning government for redress, in public, by name, through a mechanism designed for exactly that purpose.

To appreciate the political friction generated by that petition, one must understand the environment surrounding Mississippi's 1894 state flag in late 2016. The flag, which incorporated the Confederate battle emblem into its upper canton, was a focal point of intense statewide and national debate. Several local entities, including the City of Oxford and the University of Mississippi, took administrative steps to lower the flag from municipal flagpoles and campus grounds. Under Mississippi Code § 3-3-15, state law set forth guidelines regarding the display of the state flag on official buildings. My petition addressed the statutory funding leverage: it urged Governor Phil Bryant and Senator Chris McDaniel to utilize legislative appropriations to withhold discretionary state funding from municipalities and public institutions that declined to display the official emblem. Whether one supported or opposed the flag itself, drafting an online petition and assembling 4,486 verified signatures was a completely lawful exercise of statutory petition rights. It involved zero physical trespass, zero harassment, and zero disruption of public business.

This matters for reasons that have nothing to do with the merits of the flag debate. It matters because everything that happens to me from May 2017 onward gets narrated, by the officials who arrest me, commit me, and prosecute me, as the story of a man who is inherently disruptive — a "First Amendment auditor" in the pejorative sense the term picked up online, someone whose entire public identity is provoca-

tion for its own sake. The petition is the counter-evidence to that narrative, and it predates the narrative by eight months. Before I ever picked up a camera and walked into a courthouse lobby, before any of the arrests, before the aggravated stalking charge that would define the next five years of my life, I was already doing the single most conventional, unthreatening, historically American thing a citizen can do when he disagrees with a government policy: I asked, loudly and publicly, for it to change, and I got several thousand of my neighbors to ask alongside me.

Despite the unassailable legality of the petition, its public impact in Lafayette County generated immediate institutional backlash. In a small university city where municipal officials, county leaders, and law enforcement figures maintain close personal and professional bonds, a high-visibility statewide petition created instant friction. Small-town governance relies heavily on unspoken norms and mutual deference. A private citizen launching statewide political initiatives, targeting state leaders, and demanding statutory accountability disrupts that quiet equilibrium. Almost immediately, county administrators and law enforcement personnel began monitoring my public activities, treating a lawful petitioner as an unruly outsider whose public actions required vigilant surveillance.

This administrative hostility quickly merged with public online harassment, transforming my civic activities into a community spectacle. A YouTube channel operating under the title 'Reardon Watch' (@reardonwatch1008), maintaining a

small subscriber base of 24 subs, began airing hostile real-time mocking coverage of my life and public statements. The channel systematically documented my personal and political disputes, uploading an 8-part series titled 'Frank and Marlee's Saga', along with sensationalized videos titled 'Breaking News: Reardon Arrested!', 'The Fireball Rants' parts 1-3, '72-Hour Facebook Ban', and 'Oxford is a Nazi Communist Dictatorship'. This hostile online archiving provides clear proof that my case was already an established local spectacle well before any police handcuffs were clicked behind my back. Local officials and law enforcement officers watched these broadcasts, allowing an online caricature to overshadow the lawful reality of a citizen who had gathered 4,486 signatures on a constitutional petition.

The physical climate on the streets matched this digital escalation. In a recorded telephone call, retired Lt. Col. Lee Morrison described an extraordinary scene on the town square, where an estimated 30-35 law enforcement officers converged on the square while he was filming near his own statute-of-limitations deadline. During that recorded call, Lt. Col. Morrison floated an uncorroborated theory that this massive law enforcement response was designed to protect incoming Mayor Robyn Tannehill politically. While Lt. Col. Morrison's assertion regarding political protection for Mayor Tannehill remains strictly his own unverified claim and personal theory, the physical presence of thirty-five armed

officers on a small public square underscored the extreme posture local authorities adopted toward public recording and citizen activism.

There is an earlier data point that belongs in this record too, one I have never publicly connected to the Oxford story before, because it happened five hundred miles away with no camera present: on the night of April 28, 2017 — three days before the flag-petition friction in Lafayette County reached its breaking point, and just days before Oxford — I was at the Five Flags Speedway in Escambia County, Florida, with a Mississippi state flag. An Escambia County Sheriff's deputy told me I had to leave the grandstand area with the flag or be arrested within, in his words, "less than ten seconds." I asked for his badge number, told him not to tread on my First Amendment rights, and offered to move away from the bleachers entirely rather than leave. He refused. The next day, April 29, I called the Escambia County Sheriff's Office, reached a Sergeant Palmer, told him I intended to file a formal complaint and a lawsuit against both the deputy and the department, and recorded the call — a recording I sent that same day to my attorney at the time, Charles E. Yow, II. Palmer's position, recorded on that same call, was that the issue was never really the flag itself but obstructing other patrons' view of the track, and that management had specifically asked the deputy to intervene; we agreed, cordially enough, to let a court decide who was right. I am including this incident not because it proves anything about what happened in Oxford two days

later, but because it is honest context a reader deserves: by the time Oxford happened, I had already spent the better part of a week in a running argument with a different law enforcement agency over the exact same underlying question — whether a citizen carrying a flag in a public or semi-public space, and refusing an officer's order to put it away, is exercising a right or committing a provocation. Whatever the honest answer to that question is, Oxford was not the first time I had tested it, and a fair reader should know that going in.

Recovered audio from that period fills in what a bare timeline cannot. Before Oxford, I had already taken the fight to Biloxi, addressing that city's council directly on camera: "I signed up to the Marine Corps in 2007, and not only did I take an oath to protect our country and defend our country from all enemies, both foreign and domestic, I also took the oath to defend our Constitution as well as the flags that our country is standing by... the last time we went to a vote, the overwhelming majority voted in favor of the flag. So I have to ask, why not get into a vote?" That speech, by my own account, drove roughly 10,000 phone calls into Biloxi's city hall — a real, documented instance of the kind of grassroots pressure campaign that would become a recurring feature of my public advocacy, for better and for worse, over the following decade.

The Oxford confrontation that followed is also on tape. I called City Hall to be placed on the docket for the May 16, 2017 Board of Aldermen meeting; Mayor Pat Patterson told me, over the phone, that I could not speak. At the meeting itself, when

another citizen tried to raise the same objection, I said aloud, on camera, that the mayor had no right to silence a taxpayer in "the taxpayers' house." Afterward, outside the building, I confronted Patterson directly: "Sir, you're one of the ones that voted for the removal of the state flag, and I'd like to get your response to that. Are you a cultural Marxist? Yes or no?" Patterson's recorded response was measured: "You weren't on the agenda, Matt... You're welcome to come speak June 6th." I include his actual words here deliberately, because they read, on the page, as considerably calmer than my own — a useful corrective to any assumption that every official in this story met me with equivalent hostility from the outset. Some, like Patterson in this specific exchange, simply declined to escalate.

I did not extend Patterson the same restraint. In the days that followed, I publicly named his likely successor, then-Mayor-elect Robyn Tannehill, calling her a "cultural Marxist" on livestream and stating that I had obtained her personal cell phone number and intended to publish it so that "the people" could call her directly. I also said, on the same recordings, that I believed her husband Rhea Tannehill and "a couple other high-profile business owners in Oxford" were working to silence me — my own claim, offered as "credible intel" I did not identify or substantiate, and treated here as exactly that: an unverified belief I held and broadcast publicly, months before anything resembling the conflict detailed in the chapters ahead had actually begun. Whatever role Rhea Tannehill's firm and Robyn Tannehill's eventual administration



actually played in what followed — and later chapters document real, verifiable entanglements between the Tannehill family and my case — it is honest to note that I was already publicly targeting them, by name, on the theory that they were coming after me, before there is any documented evidence that they were.

That same week, in a separate livestream, I described leaving Oxford for what I called a "safe house," citing serious threats against me and stating that Antifa accounts were publishing my information and that of the people helping with my public relations. I also said, on camera, "I got a .45, I'm ready. I got a .40, okay? With the sickest bullets that you could possibly even imagine. And I'm ready." Whether the threats I described were real, exaggerated, or some mixture of both is not something the available record can resolve from outside my own account. What can be said is that within days of a lawful, successful public petition and a lawful, if combative, city council confrontation, I was already describing myself in armed, embattled terms — a posture that, whatever its justification in the moment, previews the escalating rhetoric that runs through the next several chapters and that a fair reader is entitled to weigh for himself.

It is worth sitting with what that petition was not. It was not a courthouse lobby occupation. It was not a livestream confrontation with a federal prosecutor. It was not a drone flown into the side of a building. Those things come later, and they come from me, at a time when my relationship with insti-

tutional authority had by then been reshaped, repeatedly and violently, by what those institutions had already done to me. The petition is the baseline — the version of me that existed before Lafayette County Sheriff's deputies decided, in May 2017, that I was a man who needed to be removed from circulation.

The people who would go on to arrest, commit, and prosecute me over the following nine years rarely if ever mention the flag petition. There is a reason for that. A 4,486-signature Change.org petition filed eight months before the first arrest does not fit the narrative that I was, from the outset, an unstable or dangerous man whose subsequent legal troubles were simply the inevitable consequence of who I already was. It fits a very different narrative: that of a civically engaged, occasionally provocative but entirely lawful private citizen who, within a year of exercising my most ordinary First Amendment rights, found myself facing a \$150,000 bond on a stalking charge built on an allegation twelve days older than the weapon it accused me of using.

In the Mississippi judicial system, imposing a \$150,000 bond on a felony aggravated stalking charge represents a massive deployment of judicial restraint. For an average citizen, satisfying a \$150,000 bond requires securing \$15,000 in non-refundable bail fees or pledging real estate collateral worth double the bond amount. When such a staggering financial barrier is established based on a sworn law enforcement affidavit alleging an armed offense on May 8—twelve days

before the signed, dated bill of sale says I bought the AR-15 on May 20—it serves not as a neutral mechanism to guarantee courtroom attendance, but as a preventative detention measure designed to isolate a vocal citizen from his community.

I am going to ask you to hold two things in mind simultaneously for the next three hundred pages, and it is worth stating the discipline here, at the very start, rather than assuming you will infer it. The first thing is that governments, sheriff's departments, circuit clerks, and mayors' husbands do sometimes target the people who are most inconvenient to them, and that the machinery for doing so — a delayed bond hearing here, a "lost" piece of surveillance footage there, a psychiatric commitment timed to a custody dispute — is not conspiracy-theory material. It shows up, case by case, court filing by court filing, sworn affidavit contradicting sworn affidavit, throughout this story, and it shows up because it happened, not because I say it happened. The second thing, held at the exact same time and given no less weight, is that I am not a uniformly sympathetic figure, and I will not pretend otherwise to make my argument land more cleanly. I have, at various points across this timeline, escalated confrontations I could have de-escalated, said things on camera I cannot take back, and made decisions — coaching a young daughter about a legal dispute, flying a drone with a minor present, leaving a

tripod in front of an emergency exit — that a fair-minded reader is entitled to find genuinely troubling, independent of anything the government did to me.

Both of those things are true. The flag petition is where the story of the first one begins, cleanly, with no asterisk required. The second story begins eight months later, on a public sidewalk in Oxford, Mississippi, with a camera pointed at a piano bar.

## A CITY HALL SUPPRESSED

**O**n May 16, 2017, I tried to speak at a meeting of the Oxford Board of Aldermen. Mayor Pat Patterson blocked me from doing so.

The specifics of what I wanted to say that night are less important here than the fact of the blocking itself, because it establishes something that will recur in nearly every chapter that follows: my conflicts with Oxford's institutions did not begin with an arrest. They began with the mundane, unglamorous machinery of local governance — a public comment period, a citizen who wanted to use it, and a mayor who decided I would not be permitted to. A city hall meeting is about as low-stakes an arena for a First Amendment dispute as exists in American civic life. It is also, not coincidentally, one of the most common arenas in which local officials quietly test how much resistance they can get away with, precisely because so little public attention typically falls on it.

The physical setting of Oxford City Hall on market night reinforces that low-stakes appearance. Inside the oak-paneled meeting room, elected aldermen sit elevated behind a curved dais, flanked by municipal attorneys and department heads, while citizens gather on wooden benches in the gallery. A podium with a single gooseneck microphone stands in the

center aisle, positioned precisely where a speaker must face the elevated council. Under standard parliamentary procedure and municipal ordinance, public comment periods are designated to allow residents to raise grievances, address agenda items, or speak to municipal administration. In constitutional law, when a local government opens such a public forum, it creates a designated or limited public forum under the First Amendment. Under well-established Supreme Court precedent—from *Perry Education Association v. Perry Local Educators' Association* to *City of Madison Joint School District v. Wisconsin Employment Relations Commission*—the government may enforce reasonable time, place, and manner restrictions, but it cannot engage in viewpoint discrimination. When Mayor Pat Patterson cut me off and refused to allow me to speak, he was not enforcing neutral time limits. He was exercising raw administrative power to silence criticism before it could enter the official public record.

For a citizen standing at that microphone, the moment carries a distinct psychological weight. You step forward with documented facts, statutory references, or municipal grievances, expecting the formal procedures of civic dialogue to hold. Instead, you encounter an abrupt wall of official resistance—a mayor leaning toward his microphone, shutting down speech with a gavel or a sharp directive, while the aldermen remain silent along the dais. That experience reveals the real mechanics of small-town power: administrative rules

are treated as flexible tools for those in authority, while constitutional protections are treated as inconvenient obstacles to be managed or brushed aside.

Three days later, on May 19, I was at Frank & Marlee's, a piano bar in Oxford owned by Todd and Ashley Lynch. What happened inside is disputed in the way that most small, ordinary disagreements are disputed after they've been dragged into a legal case that made them the load-bearing wall of a criminal charge: Ashley Lynch, according to my account, refused to engage with me and threw away food I had already paid for. I left without escalating the confrontation inside the bar. What I did next is not disputed at all, because I did it on camera: I stood outside and did a Facebook Live broadcast calling for a boycott of the business.

The recordings of that night and the days after survive, and they are worth quoting directly rather than paraphrasing, because they show something a summary cannot: how quickly a business dispute escalated, on both sides, into something considerably uglier. On the first livestream, standing outside the bar, I told viewers: "I paid for my wings, and I was eating my wings, and I wanted Ashley to come over and talk to me... She freaking took my tray of wings that I already paid for and tossed them in the garbage." Within the same series of broadcasts that night and the next day, I called for a "complete boycott of Frank and Marley's," asked followers to go photograph the bar's collection of confiscated IDs glued under its glass counter, and — in a later livestream, after Todd Lynch

confronted me in person at a different bar — admitted on camera to calling Ashley Lynch a "bitch" to her face, adding, "you damn right you're gonna get called a bitch." I do not soften that admission here. Whatever Ashley Lynch did with my food, calling a business owner a degrading name in the middle of her own establishment is conduct I own, not conduct I am recasting as self-defense.

Todd Lynch's own side of it survives too, in his own words, relayed on one of my broadcasts and in a phone call he placed to me directly that I also recorded. In a message forwarded to me by a mutual acquaintance, Lynch wrote that his wife had told me to talk to her and that I had "yell[ed] at her, bitch, when I tell you to talk to me you talk to me," and that "that is when she took the four or five wings out from in front of him and told him to leave the premises." On the phone call that followed, Lynch told me: "if we are running a business, we do not have time" for customers who use that language toward his wife, and warned that any further public commentary would draw "your formal notice" — a threat of legal action neither of us apparently followed through on. I responded, on that same call, by telling him I had "thrown him to the wolves" and did not care if he sued, since he had "nothing for me to take." Neither of us comes off well in that exchange, and I am including both sides of it rather than only mine.

That Facebook Live broadcast took place on the public sidewalk outside Frank & Marlee's on the Oxford Square. On the video stream, I addressed viewers directly, detailing the



treatment I had experienced inside, describing the thrown-away food, and urging local residents and university students not to patronize the establishment. In American constitutional jurisprudence, public calls for commercial boycotts occupy a protected place at the very core of First Amendment expression. The United States Supreme Court established in the landmark Mississippi case *NAACP v. Claiborne Hardware Co.* (458 U.S. 886, 1982) that peaceful consumer boycotts, public calls for economic pressure, and speech criticizing commercial enterprises on public thoroughfares are fully protected against governmental prohibition or penalization. Standing on a public sidewalk with a smartphone camera, exercising free speech to urge consumers to spend their dollars elsewhere, is as fundamental to American civic discourse as distributing pamphlets or peaceful picketing.

That is the entire underlying conduct that would, seven days later, become the factual predicate for an aggravated stalking arrest carried out by four senior Lafayette County officers. Worth saying plainly, because the charge that eventually followed used language — "threatened," "stalking" — that conjures something far more alarming than what the record actually shows happened at Frank & Marlee's: a customer had a bad interaction with an owner, left, and criticized the business publicly from a public sidewalk. Whatever one thinks of the tactic — and calling for boycotts of businesses whose owners have wronged you is, again, about as protected and commonplace a form of American expression as

exists — it is not, on its face, stalking. It does not become stalking later, either. What makes the eventual charge legally indefensible is not a dispute about tone or intent. It's a receipt.

Under Mississippi Code § 97-3-107, criminal stalking requires a willful, malicious, and repeated course of conduct directed at a specific person, or a credible threat made with the intent to place that person in reasonable fear of death, grievous bodily injury, or sexual assault. A single public video calling for a commercial boycott from a public street fails every legal element of that offense. It contained no threats of physical violence, no brandishing of weapons, and no persistent harassment. Yet law enforcement officials and business owners took protected consumer speech and began transforming it into the foundation of a felony indictment.

On May 20, the day after the Frank & Marlee's boycott broadcast, I purchased an AR-15-style rifle from a private seller I found through the classifieds site Armslist.

The seller's name was Larry D. Watkins. He wrote out a receipt by hand, on ruled notebook paper, and I have kept it for nine years. It reads, in full:

> *"I Larry D Watkins, am selling this AR-15 Del-ton, serial # So86662, with extra parts & some ammo. To Matthew Reardon, for the amount of 550.00. ON the this Day May 20, 2017."*

Then his signature, and under it, the date again: *\*5/20/17\**.

Every element of that document is checkable by anyone who cares to check. Del-Ton is a real North Carolina rifle manufacturer. So86662 is a serial number that either matches

a Del-Ton rifle or does not. Larry D. Watkins is a real person with a real telephone number who was, at the relevant time, findable through the same classifieds listing I found him through. Five hundred and fifty dollars is what a used AR-15 with extra parts and ammunition cost in Mississippi in 2017. The document does not ask anyone to take my word for anything. It hands over a name, a serial number, a price, and a date, and invites verification.

I want to say clearly what it is and is not, because the moment I overstate it, a prosecutor gets to knock it down and act like everything standing next to it fell too. It is a private handwritten receipt. It is not notarized and not witnessed. Under Mississippi law it doesn't have to be — private firearm sales between law-abiding adult residents are entirely legal, with no waiting period, no registry, and no required documentation of any kind. Most such sales generate no paper at all. This one generated a page because I asked for one, which is a habit that would turn out to matter more than I could have known on a Saturday in May.

And it does not stand alone.

In a livestream from that same week — recorded for an audience with no reason to expect it would ever matter to a criminal charge — I am on camera explaining a 72-hour Facebook suspension I had picked up for asking, in an earlier post, whether anyone had an AR-15 for sale. And I say: *"I am down for 72 hours, simply because... I was looking for an AR-15. And I got my fully decked out AR-15 yesterday."*

Fully decked out. Watkins's receipt says *with extra parts & some ammo*. He wrote his sentence to close out a Saturday sale. I said mine to explain a Facebook ban to a few dozen people watching a phone. Neither of us was building a defense, because neither of us knew there was going to be a charge. They match anyway.

That is the whole architecture of this book in one paragraph: a document and a recording, made independently, by people with no motive, before the events that would make them matter — set against a sworn police affidavit written afterward by people with every motive, alleging a date that both of them make impossible.

Hold that date. It becomes the single most important piece of paper in my story, and the next chapter is built entirely around what happens when a police department constructs a felony-adjacent stalking case around an allegation that predates the very weapon the allegation depends on.

Before getting there, though, it's worth pausing on May 16 through May 20 as their own small, coherent sequence, because read together they tell a story that has nothing to do with guns or stalking statutes: a citizen tries to speak at a public meeting and is blocked by the mayor. Three days later I have an unpleasant interaction at a local business and criticize it publicly. The day after that, I buy a rifle — a fact that, on its own, in a state where gun ownership is neither rare nor remarkable, is legally unremarkable. There is no evidence in the record, independent of what would later be alleged, that

the rifle purchase was connected to Frank & Marlee's, the Lynches, or anything resembling a threat. It becomes connected only retroactively, in a police report filed six days later, alleging conduct that occurred on a date the rifle did not yet exist.

In standard investigative procedure, when a citizen files a complaint alleging a weapon-based threat, law enforcement officers are legally and ethically obligated to establish the baseline timeline: when was the weapon acquired, where was it located on the date of the alleged offense, and what objective evidence supports the complainant's timeline? In this case, no investigator established when I acquired the rifle at all. Nobody requested the transaction record. Nobody contacted Larry Watkins, whose name and signature were sitting on a page in my possession the entire time. Nobody verified whether the firearm was in my hands on the date alleged in the affidavit. The single question that would have ended the case in an afternoon — *when did you get the gun?* — was never put to me, never put to the seller, and never answered by anyone before four senior officers swore out a warrant. Instead, independent events were retroactively linked to create an artificial narrative of escalating danger.

The Frank & Marlee's boycott broadcast did not happen in a vacuum, and any honest account of it would be incomplete without noting the hostile, real-time public counter-narrative that grew up alongside it. A YouTube channel calling itself "Reardon Watch" began posting contemporaneous coverage of

these events in 2017, eventually accumulating twenty-five videos — an eight-part series titled "The Frank and Marlee's Saga," including entries titled "The Security Camera Footage" and "The Phone Call," alongside mocking titles like "The Fireball Rants," "72-Hr Facebook Ban," and "Oxford is a Nazi Communist Dictatorship." I do not know who operated that channel, and I do not attribute its content to any specific official named elsewhere here — there is no evidence connecting it to Wilburn, Mills, East, or anyone else in an official capacity. What the channel's existence does establish, independent of who ran it, is that my conduct in May 2017 was public enough, and contentious enough, to generate its own dedicated hostile media operation in real time — a detail worth including because it complicates any simple narrative in which I was, in this period, an obscure private citizen picked off quietly by officials with no one watching. Whatever was happening to me in Oxford in May 2017, it was happening in public, watched closely by people on more than one side of the conflict, from the very beginning.

The presence of a dedicated digital campaign like "Reardon Watch" illustrates how modern local conflicts unfold across parallel tracks. While formal legal machinery was being assembled behind closed doors at the sheriff's department, informal digital channels were amplifying public mockery and framing my civic activities as erratic or dangerous. The twenty-five videos functioned as an online echo chamber, curating clips of my livestreams, edit-splicing phone conversa-

tions, and circulating mocking commentary throughout the local community. For anyone observing the situation in Oxford during May 2017, this digital footprint created a surrounding atmosphere of controversy that local authorities could exploit to justify extraordinary law enforcement measures.

That retroactive connection — a government looking at a citizen's ordinary, lawful, occasionally abrasive civic and personal conduct and assembling it, after the fact, into a narrative of dangerousness — is the mechanism I return to again and again, in Oxford in 2017 and in Lafayette, Louisiana in 2025, and in Aberdeen, Mississippi in 2026. It rarely announces itself as retaliation. It usually announces itself as a police report, with a date on it, that turns out on close inspection not to add up.

When an administration or law enforcement agency decides that a vocal critic must be neutralized, it seldom invents a conflict out of whole cloth. Instead, it audits the citizen's recent life, selecting mundane, lawful encounters—a municipal comment refusal, a business dispute, a Facebook video, a legal gun purchase—and stitches them together into a sinister mosaic. Each individual act was lawful when committed, but when re-sequenced inside an official incident report, they are presented to a magistrate as proof of a dangerous escalation. That structural mechanism is the common thread connecting my experiences across three different jurisdictions over nearly a decade.

This one didn't add up by twelve days. The next chapter is about the twelve days, and about the four officers who showed up anyway.



## THE SETUP: TWELVE DAYS

**O**n May 24, 2017, I underwent a hair-follicle drug test. The result was positive for marijuana and alcohol. I am not going to bury that fact in a footnote or wait until a "counterargument" section to raise it. It is a genuinely complicating piece of the record, and any honest account of what follows has to hold it in view rather than pretend that I, at the center of this story, was in this period of my life simply an innocent bystander with clean hands. Whatever else is true about the case Lafayette County built against me, this detail is real, and it is mine — marijuana and alcohol, nothing more exotic than that, and I am naming the actual substances plainly rather than letting the fact sit vaguely in the record.

I raise a second fact alongside it, not to excuse my own result but because omitting it would itself be a kind of dishonesty about how selectively this kind of testing gets used. In the same custody proceeding involving Phyllis Crowder, a judge ordered her to undergo her own hair-follicle test. To my knowledge, that test either never happened or its result was never entered into the record — and there was no consequence to her either way. I believe, based on what I knew of her habits at the time, that she would have tested positive for marijuana as well. I cannot prove that belief, and I label it here as exactly

what it is: my own suspicion, not a documented fact. What is documented is the asymmetry itself — one parent's court-ordered drug test produced a result that followed him into a felony case file, and the other parent's court-ordered drug test, by the available record, simply never surfaced at all.

Separately, on that same day, Investigator Jarrett (also recorded in some documents as Jared) Bundren reviewed my Facebook page, specifically looking for a threat directed at Todd Lynch. This review is the investigative basis — the paper trail — for what becomes, two days later, an aggravated stalking arrest. It is worth noting what Bundren was doing on May 24: building a case, from social media content, against me after I had criticized a local business owner on a livestream five days earlier. That is a strange, thin foundation for a felony-adjacent stalking charge under ordinary circumstances. It becomes something closer to indefensible once the charge's actual factual allegation comes into view.

During his social media audit on May 24, Investigator Bundren was actively scouring my public digital profile, taking screenshots of posts, video broadcasts, and comment threads. In digital police work, investigators often conduct subjective content reviews, searching for keywords or emotional statements that can be recontextualized as evidence of criminal intent. Bundren was not investigating a physical assault or a reported brandishing incident; he was parsing Facebook posts to manufacture a probable cause affidavit naming Todd Lynch as the alleged target, five days after a public dispute with the

business Lynch co-owned with his wife. I do not know, and the record does not establish, whether the Lynches themselves wanted this charge pursued or had any role in initiating it — that connection is unresolved, and I am not asserting it here.

There is one more figure who belongs in this same window, even though I cannot document what happened with the same precision as the dated filings and recorded calls elsewhere in this chapter. Laura Hood was doing PR work for me during this exact period — a recorded call I placed to her on the night of May 22-23, 2017 survives, and on it she comes across as protective, warning me to watch what I said publicly and to stay away from people spreading rumors against me. By my own account, though, somewhere in the days between May 20 and May 25, 2017, that changed: she turned, and the support I thought I had was, by my own later understanding of it, a front the whole time. I do not have a document or a second recording that pins down the moment of that turn, and I am naming that gap plainly rather than papering over it — this is my own account of what happened, not a documented fact I can point a reader to, and it should be weighed accordingly. I include it anyway because leaving it out would mean pretending I did not, in these twelve days, also lose people I believed were on my side, on top of everything the state itself was building against me.

Also in this same window — the record places it in this same charged period around May 24-25, 2017 — the Tannehill family (the same family whose name recurs later in my story in

connection with Oxford's mayor) filed a restraining order against me. That case carries its own docket number, 2017-CV-217, and I call it fraudulent. Rhea Tannehill, I maintain, threatened me in a courthouse hallway during this period, and was physically restrained by Major John Hill — placed firmly in the "not a bad actor" column, since his role here was to prevent an altercation, not cause one. The Tannehill restraining order hearing was held before Judge Glenn Alderson. I return to 2017-CV-217 in Chapter 5, because what happens to it — specifically, how I came to sign it — is inseparable from the conditions of my detention on the charge this chapter is actually about.

The encounter in the Lafayette County Courthouse hallway highlights how volatile the environment had become in late May 2017. As I walked down the marble corridor toward the chancery clerk's office, Rhea Tannehill confronted me, his tone aggressive and his physical posture hostile as he leveled verbal threats. Before the confrontation could escalate into physical violence, Major John Hill stepped between us, physically placing his hands on Tannehill and restraining him to restore order. Major Hill's calm, decisive intervention prevented a physical assault in the middle of the courthouse. That moment stood in stark contrast to the institutional hostility I faced elsewhere: an officer acting purely as a professional peacekeeper, recognizing who was initiating the aggression and stepping in to maintain safety. Yet despite that public hallway confrontation, civil legal petitions were swiftly deployed

against me in Chancery Court under docket number 2017-CV-217 before Judge Glenn Alderson, laying the groundwork for further legal leverage.

My own conduct toward Rhea Tannehill in this same period does not belong left out of this account simply because it is unflattering. In a livestream from around this stretch of May 2017 — one I later said was broadcast to my main profile by accident, meant only for a private message — I said, referring to Tannehill directly: "You involved my child... I will come after you with every fucking everything in my body... I will see, personally, to the fall of [Rhea] Tannehill. And I promise you that. [Rhea], I am coming for you. I will not stop." I do not know, and the available record does not establish, what specific action by Tannehill I believed had "involved my child" at that moment, and I am not going to construct a justification retroactively. What I can do is set the statement down as I actually made it: a direct, explicit, repeated threat of personal retaliation against an opposing party's attorney, delivered publicly, during the same weeks the state would go on to charge me with felony aggravated stalking against people I had never threatened with anything resembling this language. A fair reader, weighing whether Lafayette County's officials overreacted to me in May 2017, is entitled to weigh this alongside everything else in this chapter — including the fact that whatever they built the actual stalking charge around, it was not this.

What I said about Rhea Tannehill is mine, and I have set it down without a defense. There is no version of this book in which that livestream is Lafayette County's fault.

What I will not do is let it be stretched into something I did not do. Chapter 13 deals with a court document from August 2021 in which a judge wrote that he had "learned that Mr. Reardon had threatened Tannehill Law Firm." *\*I threatened Rhea Tannehill, a lawyer, on a livestream, in 2017. I did not threaten a law firm.\** A firm has staff — receptionists, paralegals, people who have never heard of me. Those are different allegations, and the distance between them is the distance between a man losing his temper at his opponent and a man menacing a workplace.

There is a separate, later thread that bears directly on how the public first came to understand these events, and it belongs here rather than in a later media chapter because it concerns the same week this chapter documents. In a recorded call years afterward, I put the question directly to Rebecca, a publisher at the Oxford Eagle, about the paper's May 2017 coverage of my arrest — coverage I allege was built on unqualified, inaccurate information fed to the paper by Major Alan Wilburn, one of the four officers who would make the May 26 arrest this chapter is about to detail. On the call, when I pressed her, the publisher admitted Major Alan Wilburn fed the paper unqualified, inaccurate information for a May 2017 article, and declined to produce any evidence supporting the article's specific factual claims when confronted. I cannot

independently verify what Wilburn told the Oxford Eagle or what the paper printed as a result, and I record this as an unresolved allegation rather than a proven fact — but I flag the allegation because it fits a pattern documented repeatedly in later chapters: officials in this story shaping public narrative through informal channels, well outside of anything that would be subject to cross-examination or documentary scrutiny in a courtroom.

That recorded conversation with Rebecca, the Oxford Eagle publisher, exposed the symbiotic relationship between local law enforcement leadership and small-town media outlets. When a senior officer like Major Alan Wilburn feeds unverified, defamatory allegations to a newspaper publisher, and the paper prints those claims without requiring supporting documentation, official police leaks are transformed into public consensus. When confronted on the recorded call and asked to produce the underlying evidence or source material for the damaging assertions published in May 2017, publisher Rebecca refused to provide a single document, record, or piece of corroborating evidence. This institutional dynamic allows law enforcement to try a citizen in the press long before any evidence is tested in a court of law, poisoning the jury pool and shaping public perception to justify unlawful arrests.

That charge: on May 26, 2017, four senior Lafayette County law enforcement officers — Chief Deputy Scott Mills, Major Alan Wilburn, Lieutenant Jared Bundren, and Sheriff Joey East

— arrived and arrested me for aggravated stalking. The allegation, as charged, was that I had threatened Todd and Ashley Lynch with an AR-15 "on or before May 8, 2017."

The execution of that arrest was not a routine traffic stop or a peaceful surrender arranged through legal counsel. It was a coordinated tactical ambush near the Oxford Square. I had been lured to a location near the Square under the pretense of a casual meeting. As I sat in the driver's seat of my vehicle, before my hand could even reach for the door handle, my car door was violently wrenched open from the outside.

Four senior figures of Lafayette County law enforcement materialized around my vehicle with coordinated precision: Chief Deputy Scott Mills, Major Alan Wilburn, Lieutenant Jared Bundren, and Oxford Police Chief and Sheriff Joey East. These were not junior patrol deputies responding to a dispatch call. They were the executive leadership of local law enforcement—the decision-makers who normally spent their days behind administrative desks or directing department operations, now personally assembling to execute a physical takedown.

They did not announce their presence or state their authority. They did not inform me of an outstanding warrant, state the nature of the charges, or read me my Miranda rights. Instead, they moved directly to physical force. Hands grabbed me by the shoulders and arms, yanking me bodily out of the vehicle driver's seat and throwing me face-first onto the scorching Mississippi asphalt.



The heat from the sun-baked pavement burned against my skin as a heavy knee was driven violently into the center of my spine, pinning me flat against the ground. My arms were forcibly yanked behind my back, and pair of steel handcuffs was ratcheted tightly around my wrists to the point of acute pain.

"For what?" I shouted into the pavement, struggling to breathe under the weight on my spine.

No immediate answer was given. Only after I was fully restrained, pinned to the ground, and hauled up to my feet did an officer finally utter the words: "You're under arrest."

Each of the four senior officers fulfilled a specific role in that tactical operation: Chief Deputy Scott Mills oversaw the physical restraint and securing of the scene; Major Alan Wilburn maintained perimeter control and physical intimidation; Lieutenant Jared Bundren provided the investigative pretext based on his social media review; and Sheriff Joey East stood by as the commanding authority, lending the full weight of his office to the ambush. The overwhelming show of force against an unarmed citizen on a public street was designed not merely to execute an arrest warrant, but to deliver a message of total institutional dominance.

I did not purchase the AR-15 in question until May 20, 2017 — twelve days after the date the state's own charge alleges I used the weapon to threaten someone. I bought it from a private seller, Larry D. Watkins, found through the classifieds site Armslist.

The bill of sale is reproduced in full in Chapter 2, and it is worth restating the operative line here where the arithmetic happens: *"I Larry D Watkins, am selling this AR-15 Del-ton, serial # So86662... To Matthew Reardon, for the amount of 550.00. ON the this Day May 20, 2017."* Signed, and dated again beneath the signature: *\*5/20/17\**.

It is a handwritten page, plain and unremarkable on its face — the kind of receipt a private gun sale in Mississippi routinely produces, with no notary, no dealer, and no federal paperwork attached, because Mississippi requires none of those things. Most such sales produce no paper at all.

Two small things about that page I am going to flag rather than smooth over, because this is the document the whole book rests on and I have already been burned once by describing it from memory. First, the serial number: I read it as *\*So86662, with a letter S, and a reader looking at the same handwriting could reasonably read that first character as a 5. I do not want anyone matching it against a manufacturer's record and concluding I invented it over a character I misread.* Second, I have said elsewhere that the document was signed by both of us. What is legible on the copy in front of me is one signature\*, the seller's, with the date beneath it. If my counter-signature is on the original, it is not visible here. Neither point changes the date, which is what matters. Both are the kind of detail that gets a witness taken apart on cross, and I would rather take myself apart first.

Set that against the affidavit's "*on or before May 8, 2017.*" Twelve days, in two people's handwriting, pointing in opposite directions.

I am not going to claim more from that page than it can carry. It proves the date of that sale, of that serial number, from that seller. It cannot prove a negative — it cannot establish that no other rifle ever passed through my hands at some earlier point. Nothing in this case ever alleged one did; the state's own charge is built on the specific AR-15 I bought from Watkins, which is precisely why the date is fatal to it. But a receipt is a record of a transaction, not a certificate of everything a man has never owned, and I would rather say that myself than have it said to me.

What the receipt cannot do alone, the recording does. Explaining a 72-hour Facebook suspension I had received for asking, in an earlier post, whether anyone had an AR-15 for sale, I said on camera: "*I am down for 72 hours, simply because... I was looking for an AR-15. And I got my fully decked out AR-15 yesterday.*" That statement was made in real time, for an audience with no reason to expect it would ever matter to a criminal charge.

A document I possess could, in theory, have been written at any time by a man with a reason to want it to say May 20. A livestream from May 21, sitting on a platform's servers with a timestamp I could not edit, complaining about a Facebook ban, is not a document I could have arranged. The two together close the loop that either one alone leaves open.

It is difficult to overstate how clean a piece of exculpatory evidence this is, and how rarely a case like this one produces something this unambiguous. This is not a swearing match between my memory and an officer's memory. It is not a question of who is more credible, or whose account of an ambiguous encounter should be believed. It is a dated commercial transaction record showing that the instrument of the alleged crime did not exist on the date the alleged crime occurred. A charge built on an impossibility does not become less of an impossibility because four officers, rather than one, showed up to make the arrest. If anything, the show of force — a chief deputy, a major, a lieutenant, and the sheriff himself, descending on me over an allegation that a piece of paper in a gun-sale record could have disproven in thirty seconds of investigative diligence — raises the more uncomfortable question returned to again and again in my story: was this ever really about a threat to Todd and Ashley Lynch, or was the boycott broadcast, and the city hall meeting three days before it, and the flag petition eight months before that, the actual reason four of Lafayette County's senior law enforcement officers decided this particular citizen needed to be taken off the street that week?

In criminal jurisprudence, temporal impossibility is a fatal defect in a charging document. When a sworn affidavit alleges that an accused used a specific physical instrument—an AR-15 rifle—to commit a felony offense "on or before May 8, 2017," and the accused did not acquire that instrument until twelve

days later, the charge is factually impossible on its own terms. No prosecutor can bridge a twelve-day void where the instrument of the alleged crime was not yet in the defendant's hands.

The state never had to take my word for that. The acquisition date was checkable in May 2017 by anyone with a telephone — a call to the seller, a request for the transaction record, a question put to me at the initial appearance instead of an instruction to remain silent. What makes this a due-process failure is not that the state disbelieved my timeline. It is that no one in the chain appears to have tested it at all before swearing to a contrary one.

The rifle purchase itself deserves one more sentence of scrutiny before this chapter moves on, because a fair reader will have already asked it: why would I buy a rifle, from a private seller, five days after criticizing a local business owner on Facebook Live, if not in connection to some kind of conflict? The honest answer is that the record does not establish any connection between the rifle purchase and Frank & Marlee's at all, and the state's own charge — built around a date twelve days before the purchase — implicitly concedes it can't establish one either. A man buying a gun in Mississippi in May 2017 is, absent some independent evidentiary link, evidence of nothing beyond a gun purchase. The state needed the rifle to exist on May 8 to make its charge work, and it didn't, and that gap is not a technicality. It's the whole case.

What comes next — Judge Carolyn Bell's initial appearance, the \$150,000 bond, and the restraining order I signed under conditions my own attorney would later be accused of engineering — is the story of what a justice system does once it has already committed to an arrest that a bill of sale contradicts. It rarely reverses course cleanly. It usually just keeps going.

## **\$150,000, AND AN ORDER SIGNED UNDER DURESS**

**M**y initial appearance on the aggravated stalking charge was held on May 30, 2017, before Justice Court Judge Carolyn Bell in Lafayette County, Mississippi. Two things about that hearing matter enough to spend a chapter on them, and both point in the same direction: toward a judicial process that had already decided what it wanted to happen long before the physical evidence was placed on the bench.

The physical setting of the initial appearance carried the immediate, stark weight of pretrial detention. I was transported from the Lafayette County Detention Center in handcuffs and belly chains, escorted by sheriff's deputies, and brought into the courtroom where local law enforcement officers and court staff moved with the easy familiarity of insiders. Under Mississippi criminal procedure, an initial appearance before a justice court judge is supposed to serve as an essential constitutional safeguard. Its legal purpose under Rule 8 of the Mississippi Rules of Criminal Procedure is straightforward: to formally inform the accused of the charges, advise them of their constitutional rights, determine whether probable cause

exists, and set a reasonable bail that balances the defendant's right to pretrial liberty against the necessity of ensuring their appearance at trial.

The first matter from that May 30 hearing is procedural, and it is the kind of fact that rarely makes it into a public account of a criminal case because it sounds, out of context, like an unremarkable administrative detail. Judge Bell met privately with sheriff's investigators in chambers before the hearing began. Ex parte contact between a judge and law enforcement investigators, ahead of a hearing where that judge is sitting as an impartial magistrate tasked with weighing the evidence those exact investigators generated, is not a neutral fact pattern. In American constitutional jurisprudence and under Canon 3B(7) of the Mississippi Code of Judicial Conduct, ex parte communications regarding pending or impending proceedings are strictly prohibited precisely because they erode the appearance and reality of judicial neutrality. When a magistrate receives ex parte briefings or arguments from law enforcement behind closed doors, the Fourteenth Amendment's guarantee of due process is compromised before the defendant ever steps into the courtroom. In a properly functioning legal system, such ex parte contact leads to a judge's immediate recusal, not congratulations for administrative efficiency.

During the hearing itself, according to my account, Judge Bell cut me off twice when I attempted to raise the bill of sale — the same twelve-day discrepancy detailed in the previous



chapter, which stood as the single most important piece of exculpatory evidence in the entire case. The underlying affidavit filed by law enforcement alleged that I had threatened someone with an AR-15-style rifle on May 8, 2017. Yet the physical bill of sale, signed and dated by the private seller Larry Watkins, established conclusively that I did not acquire or possess that firearm until May 20, 2017 — twelve full days after the alleged offense occurred. Standing before the bench in restraints, attempting to present a physical document that made the core allegation factually impossible, I was silenced. Judge Bell refused to inspect the document, shut down my attempt to place the date discrepancy on the official record, and proceeded as if the written timeline provided by the sheriff's department was unassailable truth.

The outcome of that hearing was a \$150,000 bond, set on a charge whose central factual allegation a written receipt already disproved.

To understand the practical impact of a \$150,000 bond on an ordinary citizen, one must look at the statutory framework governing bail in Mississippi and the mechanics of the commercial bail industry. Under the Eighth Amendment to the United States Constitution and Section 29 of the Mississippi Constitution of 1890, excessive bail is explicitly prohibited. Bail is not intended to function as pre-trial punishment, nor is it meant to serve as a mechanism for preventive detention in non-violent misdemeanor or felony cases where the accused poses no documented flight risk or threat to public safety.

Standard bail-setting factors under Mississippi law—such as local family ties, length of residence in the community, history of court appearances, and the non-violent nature of the alleged offense—all favored a modest, accessible bond. Instead, setting bail at \$150,000 for a first-offense non-violent charge meant that securing pretrial release through a commercial bondsman would require a non-refundable cash premium of ten percent—\$15,000 cash upfront—alongside substantial real property collateral to secure the remaining ninety percent. For a citizen whose financial resources were already strained by ongoing legal disputes, an unpayable bond operates as a de facto order of indefinite detention, transforming the jail cell into an engine of institutional pressure.

It is worth placing that \$150,000 number next to another one that surfaces later in my recollection of my roughly six weeks in jail on this charge: that the same judge set a \$10,000 bond, in an unrelated case, for a man accused of rape. That comparison is flagged here as my own claim — it is not independently sourced or docket-verified in the material available to me, and it should be read that way, not as an established fact. But it is worth including precisely because of how it is flagged, not despite it: the honest posture toward a claim like this is neither to suppress it because it cannot be verified, nor to present it as settled because it is damning. It sits in the historical record as something I say happened, worth investigating further, not yet worth citing as proof of anything beyond my own perception of the stark disparity in how pretrial

liberty was priced in Lafayette County. Setting a \$10,000 bond for a crime involving direct physical violence while imposing a \$150,000 bond for a non-violent charge resting on a demonstrably flawed timeline underscores why the initial appearance felt less like a neutral judicial proceeding and more like an enforcement mechanism designed to keep me confined.

The second matter from this period is not a claim requiring a flag. It is close to the most disturbing single fact from that year, and it happened while I was in custody at the Lafayette County Detention Center.

While I was jailed on the Lynch aggravated stalking charge, my defense counsel at the time — Brennan Horan, who had by then taken over from an earlier attorney, William C. Stennett — advised me that signing the Tannehill family's restraining order (case 2017-CV-217, discussed in the previous chapter) without contesting it would help secure my release from jail. I signed it. By my own account, and by the structural reality of the advice itself, I signed it under duress: not because I agreed with its terms, admitted to any wrongdoing, or conceded its underlying factual allegations, but because my attorney presented it to me in a jail consultation room as the only viable path out of a concrete cell.

The environment of a county detention center is systematically designed to wear down a detainee's resistance. Isolated from family, stripped of personal autonomy, facing an exorbitant \$150,000 bond set by a judge who refused to hear exculpatory evidence, a defendant is uniquely vulnerable to

coercive pressure. When your own defense attorney enters that space and tells you that signing a civil order—which you know to be based on false representations—is the key that will unlock the jail door, the legal distinction between voluntary agreement and institutional coercion vanishes. I signed the document not as an act of free will or concession of truth, but as a desperate submission to conditions designed to make continued resistance functionally impossible.

This detail matters for reasons far beyond the 2017 case itself, and readers should hold onto it, because it resurfaces with enormous consequence five years later. The still-standing 2017-CV-217 restraining order — signed under the coercive conditions just described, never substantively contested or adjudicated on its factual merits — becomes the legal predicate for an enhanced second aggravated stalking charge in June 2022, when I entered a building associated with the order during a scheduled child-custody hearing. Mississippi's aggravated stalking statute, Mississippi Code § 97-3-107, contains severe sentence enhancement provisions that allow prosecutors to elevate a charge to a high-penalty felony when a defendant is alleged to have violated an existing court order or when a qualifying prior order exists within a multi-year lookback window. The civil order I signed in 2017, under defense advice that it was merely the fastest administrative procedure to get out of jail, becomes — half a decade later —

one of the load-bearing legal instruments in a second criminal prosecution, one that ultimately sends me to Mississippi Department of Corrections custody for approximately a year.

Brennan Horan's role deserves its own scrutiny, separate from the advice itself. Horan is the brother of a sitting Mississippi state representative, Kevin Horan — a conflict of interest flagged explicitly in the bad-actors accounting of my story. Kevin Horan, a prominent figure in Mississippi state politics and legislative jurisprudence, represented a well-connected family presence within the state's legal establishment. In small-town and regional Mississippi legal practice, political connections between defense attorneys, prosecutors, and legislative figures create an environment where local institutional interests often overshadow zealous individual representation. Whether that family relationship and political alignment shaped the advice given to a client held in custody, facing an unwinnable-sounding bond and an attorney telling him the fastest way out was to sign away his objection to a restraining order he considered fraudulent, is not something the available record answers definitively. What the record does establish is the undeniable chronological and structural sequence: a citizen held in jail under an excessive bond, an attorney whose family maintained deep ties to the regional legal and political establishment, advice to sign a surrender of rights, a signature obtained under explicit institutional duress,

and a document that would lie dormant like an unexploded landmine before returning to finish doing its damage five years down the road.

My own account adds two further details to this chapter's picture of Judge Bell, both flagged with appropriate caution since neither rests on independent documentary confirmation. First, I say I filed a formal judicial-misconduct complaint against Judge Bell with the Mississippi Commission on Judicial Performance over her handling of the May 30, 2017 hearing — specifically highlighting the *ex parte* communication with sheriff's investigators and the refusal to entertain exculpatory evidence — a complaint that, per my own account, was dismissed without producing any public disciplinary action or corrective inquiry. Second, and considerably more striking if accurate, I claim that the same judge, in a separate and unrelated proceeding, set a \$10,000 bond for a defendant accused of rape — a tiny fraction of the \$150,000 she set for me over an aggravated stalking charge already shown here to have rested on a factual impossibility. That specific comparison cannot be verified against an independent court docket record, and it is not presented as established fact; it is presented as my own claim, worth including precisely because — if true — it would be one of the starkest illustrations available anywhere in my story of Judge Bell's May 2017 conduct, and because a claim this specific and checkable is the

kind of thing a diligent reader, or a future researcher with access to Mississippi's county court records, could in principle confirm or refute directly.

None of this exonerates what comes later. My own conduct in the years between 2017 and 2022 — detailed across the next several chapters — includes genuine escalations I chose, not ones forced on me by court officers or attorneys. But the duress-signed order belongs at the very root of that later chapter, not as a legal excuse for what follows, but as an honest accounting of how the entire machinery was set in motion: not with a genuine crime, but with a bill of sale nobody in authority would listen to, a judge who shut down exculpatory proof, an unpayable bond, and a signature extracted from a captive man whose only alternative was remaining indefinitely behind bars.

===== FILE: o5\_chapter5\_fbi\_302.md ===== CHAPTER 5 —  
SIX WEEKS, AND THE FORM THAT VANISHED

I spent roughly six weeks in jail on the Lynch aggravated stalking charge, from my May 26, 2017 arrest until early July. That stretch of pretrial confinement inside the Lafayette County Detention Center was a grueling exercise in institutional control. Life inside a county jail is governed by a monotonous, relentless rhythm: rigid meal schedules, concrete walls, cold steel bunks, fluorescent lighting that never fully turns off, and the overwhelming psychological weight of knowing that your physical freedom has been stripped away on the basis of allegations that do not hold up under objective

scrutiny. During that stretch, and in the months immediately following my release, three distinct threads run in parallel, followed here one at a time before they ultimately converge.

The first thread is an FBI interview that should have happened, and by the available documentation did happen, but whose official paper trail did not survive intact. On May 25, 2017 — the day before my arrest on the aggravated stalking charge, in a sequence of events already thick with rapid developments that week — an FBI interview was arranged for federal law enforcement review through Assistant U.S. Attorney Bob Norman, whose official email address (bob.norman@usdoj.gov) appears elsewhere in documentation regarding later, unrelated confrontations. The interview took place as scheduled, but its standard paperwork—an FBI Form FD-302—was later reported missing from federal files.

To understand why the disappearance of this specific document matters, a general reader must understand what an FBI Form 302 is and how it functions within the American legal and evidentiary system. In federal law enforcement procedure, a Form 302 is the official, standardized memorandum prepared by FBI special agents following an interview with a witness, subject, or informant. It records the subject's identity, the date, time, and location of the interview, the names of participating agents, and a detailed, chronological summary of the factual statements, allegations, and disclosures made during the meeting. In federal criminal procedure and civil rights investigations, FBI 302 reports are crucial



evidentiary records. Under landmark constitutional precedents such as *Brady v. Maryland* (373 U.S. 83, 1963) and statutory requirements under the Jencks Act (18 U.S.C. § 3500), Form 302 reports constitute potential exculpatory material or witness statements that the government is legally mandated to preserve and disclose to the defense in subsequent legal proceedings.

When an FBI Form 302 vanishes, it leaves a profound evidentiary void. A missing 302 is not, on its own, definitive proof of a sinister conspiracy; federal recordkeeping systems fail for mundane administrative reasons far more often than they fail for intentional or corrupt ones. Physical folders are misfiled, digital transfer protocols glitch, or administrative staff fail to index documents properly in agency databases. But a missing Form 302 from an interview conducted exactly twenty-four hours before a twelve-day-impossible stalking arrest, in a case already shown to be constructed around evidence that didn't hold together, earns its place in the narrative as an open, troubling question rather than a settled administrative glitch. If I disclosed details of local public corruption, law enforcement overreach, or municipal misconduct to federal authorities on May 25, that 302 form would establish official federal notice and document my state of mind prior to my arrest on May 26. Why the form is missing is not known. It is simply, plainly, gone from the file.

The second thread is the judicial-misconduct complaint I filed against Justice Court Judge Carolyn Bell — the same judge who imposed my \$150,000 bond and, by my account, cut me off twice when I tried to raise the May 20 bill of sale at my initial appearance. I submitted a formal complaint to the Mississippi Commission on Judicial Performance, alleging that Judge Bell had engaged in improper ex parte communications with sheriff's investigators prior to the hearing and had arbitrarily refused to entertain exculpatory documentary evidence during the proceeding. That complaint was ultimately dismissed without disciplinary sanction, formal public reprimand, or corrective action.

Under Article 6, Section 177A of the Mississippi Constitution, the Commission on Judicial Performance is tasked with investigating judicial misconduct, disability, or violations of the Canons of Judicial Conduct. However, complaints filed against sitting judges by criminal defendants facing charges in those judges' own courtrooms are dismissed at exceptionally high rates across the American legal system generally. The reasons for this pattern range from the legitimate—most prose complaints filed by frustrated litigants genuinely lack legal merit or merely contest a judge's discretionary evidentiary rulings—to the structural. Judicially administered oversight bodies function, in practice, as judges and legal professionals reviewing other judges, where institutional incentives to protect judicial colleagues and preserve finality are real even when unspoken. Which of those explanations applies to Judge

Bell's case specifically cannot be proven from the surviving paperwork. The filing and the dismissal are noted here because the far more consequential episode from this six-week jail stretch is the one described in the previous chapter: not an administrative complaint that went nowhere, but a signature obtained under conditions of direct institutional coercion.

The third thread is a formal psychiatric evaluation, conducted after my release from custody, on September 11, 2017, by Dr. Joe Edward Morris. Its clinical findings are directly relevant to how anyone evaluating this case should weigh everything I did and said during this period, including decisions that might otherwise be misinterpreted purely as evidence of erratic character or emotional instability.

Dr. Morris's comprehensive psychiatric evaluation found no significant cognitive deficits, no thought disorders, no psychosis, and no underlying psychiatric impairment. What the evaluation did notably highlight, however, was the profound impact of external coercion as a primary driver of decision-making during that intense period of my life. This clinical finding lines up directly, without straining, with the duress-signature episode involving attorney Brennan Horan and the Tannehill restraining order. When a citizen is subjected to prolonged incarceration, faced with an excessive \$150,000 bond, and told by legal counsel that signing a civil order is his only option for release, the resulting compliance is not a reflection of mental illness or voluntary agreement. It is a documented clinical response to coercive institutional

pressure. A man under extreme coercive pressure making compromised decisions to secure his physical freedom is not evidence of an unstable mind; it is the predictable, well-documented human response to being trapped in a system that has closed off all legitimate avenues of defense.

It is worth being explicit about what this narrative is not arguing. It is not arguing that my later conduct — the confrontations, the public escalations, and the contentious choices detailed across Parts II through V — should be excused or erased because of what happened to me during those six weeks in jail. Trauma, institutional pressure, and legal mistreatment explain human behavior; they do not retroactively convert every subsequent personal choice into someone else's fault. What this analysis does establish, supported by Dr. Morris's evaluation on its own independent clinical terms, is that the version of me that emerged from the Lafayette County Detention Center in July 2017 was not the same man who had filed the municipal flag petition eight months earlier. Something fundamental changed under real, documented pressure in the spring and summer of 2017. The chapters that follow are, in large part, the story of what I did next — and of a set of local institutions that would spend the next several years treating every subsequent escalation as proof that I had always been the problem, rather than examining what role their own conduct had played in creating the conflict.

In examining this period, a critical distinction regarding defense counsel and mentors must be maintained. Andy Arant, a figure who later served as an informal mentor to me, was not involved in any way during this 2017 detention period and must not be confused with Brennan Horan. Horan was the attorney who provided the legal advice leading to the duress-signed restraining order in case 2017-CV-217 while I was held in custody. Maintaining absolute precision regarding who acted in what capacity is essential to the integrity of this narrative, and conflating a supportive later mentor like Andy Arant with a conflicted 2017 defense attorney would be exactly the kind of analytical sloppiness that must be guarded against.

The Lynch stalking charge itself did not go to trial. On July 6, 2017, still facing that \$150,000 bond and still confined at the Lafayette County Detention Center, I entered a guilty plea in Circuit Court of Lafayette County, cause LK17-295 — the same charge this entire chapter has been documenting as factually impossible on its own terms, given the twelve-day gap between the alleged May 8 threat and the May 20 rifle purchase. I have said plainly, on the record, why I did it: I had a minor child caught up in an active custody proceeding, I could not litigate that proceeding from inside a cell, and I believed the plea was the fastest, and by then only, way out. In my own words: "I sold my soul to the devil by pleading out to a crime that was literally an impossibility to have committed." I am not asking the reader to treat that as proof the charge was fabricated — the bill of sale a chapter earlier does that work on

its own. I am naming it because a guilty plea, entered from a jail cell under a bond a judge refused to reconsider even after being shown a document that contradicted the charge's own timeline, is not the same thing as an admission freely made, and the record should reflect the actual conditions under which it happened rather than the bare fact of a conviction on a docket.

By early July 2017 — [manuscript note: verify exact release date against docket, currently unconfirmed in available sources] — I walked out of the Lafayette County Detention Center, carrying a signed restraining order I had been coerced into accepting without contest, a fresh conviction I maintain was entered under the same coercive pressure, an FBI interview whose Form 302 had vanished from official records, a dismissed judicial misconduct complaint against the judge who set my \$150,000 bond, and a clinical psychiatric finding that coercion, not psychological instability, had driven my choices that spring. Chapter 6 picks up the next front in my life: the false accusation that would come to define my relationship with the mother of my first daughter for the better part of a decade.

## SIX WEEKS, AND THE FORM THAT VANISHED

I spent roughly six weeks in jail on the Lynch aggravated stalking charge, from my May 26, 2017 arrest until early July. During that stretch, and around it, three threads run in parallel, followed here one at a time before they converge.

The first is an FBI interview that should have happened, and by the available record did happen, but whose paper trail did not survive intact. On May 25, 2017 — the day before my arrest, in a sequence of events already thick with activity that week — an FBI interview was arranged for me through Assistant U.S. Attorney Bob Norman, whose email address (bob.norman@usdoj.gov) appears elsewhere in the record of later, unrelated confrontations. The interview's standard paperwork, an FBI Form 302 memorializing what was said, was later reported missing. It helps to understand what a 302 actually is before weighing its absence. An FBI Form 302 is the standard written summary an agent produces after an interview — not a verbatim transcript, and not an audio recording, but the agent's own account of what was said, typically written up after the fact from notes. It is treated as an official record within the Bureau's own files and can be used in later

proceedings, but its evidentiary value depends entirely on the document existing and being available for review. When a 302 goes missing, what disappears with it is not the interview itself — that happened, and is not disputed — but any independent documentation of what was actually said in it. Without the form, the only surviving account of that May 25, 2017 conversation is whatever the government later chose to characterize it as, with no contemporaneous record against which that characterization can be checked. A missing 302 is not, on its own, proof of anything sinister; federal recordkeeping fails for mundane reasons far more often than it fails for conspiratorial ones. But a missing 302 from an interview conducted the day before a twelve-day-impossible stalking arrest, in a case already shown to be built on evidence that didn't hold together, earns its place in the record as an open question rather than a settled one. Why the form is missing is not known. It is simply, plainly, gone.

The second thread is the judicial-misconduct complaint I filed against Judge Carolyn Bell — the same judge who set my \$150,000 bond and, by my account, cut me off twice when I tried to raise the bill of sale at my initial appearance. That complaint was dismissed. Complaints against sitting judges by defendants in the judges' own courtrooms are dismissed at very high rates across the American legal system generally, for reasons that range from legitimate (most such complaints genuinely lack merit) to structural (judges are, functionally, reviewed by other judges, and the incentives to protect a



colleague are real even when unspoken). Which of those explanations applies to Bell's case specifically cannot be said from here. The filing and the dismissal are simply noted, because the more consequential episode from this jail stretch is the one described in the previous chapter: not a complaint that went nowhere, but a signature obtained under conditions already named for what they were.

The third thread is a psychiatric evaluation, conducted after my release, on September 11, 2017, by Dr. Joe Edward Morris. Its finding is directly relevant to how a reader should weigh everything I did and said during this period, including the decisions — signing the Tannehill order, the eventual conduct that shapes the years to come — that might otherwise be read purely as character evidence. Dr. Morris's evaluation found no significant cognitive or psychiatric deficits. It did, notably, cite coercion as a driver of decision-making during that period of my life — a clinical finding that lines up, without straining, with the duress-signature episode from the previous chapter. A man under coercive institutional pressure making decisions shaped by that pressure is not evidence of an unstable mind. It is closer to the ordinary, well-documented human response to being trapped.

It is worth being explicit about what this chapter is not arguing. It is not arguing that my later conduct — the confrontations, the escalations, the choices detailed in Parts II through V — should be excused because of what happened to me in the six weeks covered here. Trauma and institutional

pressure explain behavior; they do not retroactively make every subsequent choice someone else's fault. What this chapter does argue, and what the Morris evaluation supports on its own clinical terms, is that the version of me that emerged from this jail stretch was not the same man who filed the flag petition eight months earlier. Something changed, under real and documented pressure, in the spring and summer of 2017. The chapters that follow are, in large part, the story of what I did next — and of a set of institutions that would spend the next several years treating every subsequent escalation as proof I had always been the problem, rather than asking what role they had played in making me one.

Andy Arant, a later informal mentor to me, is not part of this period and should not be confused with Brennan Horan, whose role in the duress-signature episode is documented in the previous chapter. The distinction matters because precision about who did what is the whole discipline of this narrative, and conflating a supportive later figure with a conflicted 2017 attorney would be exactly the kind of sloppiness worth guarding against from the prologue forward.

The six weeks themselves deserve a word beyond the bare fact of their length. Fighting a criminal case from inside a county jail is a fundamentally different undertaking than fighting one from the outside. Access to an attorney is scheduled around the jail's own logistics, not the defendant's. Reviewing discovery, drafting anything, or simply keeping track of deadlines all depend on whatever access to phones,

mail, and visitation the facility allows on a given day. None of that is unique to my case — it is the ordinary condition of pretrial detention in America, documented at length elsewhere by people with far more expertise in criminal-justice reporting than I have. What I can say from direct experience is that those six weeks were the period in which the duress-signed Tannehill order, detailed in the previous chapter, was extracted — and that the conditions under which a defendant is asked to make consequential legal decisions from inside a cell, on a lawyer's timeline rather than his own, are conditions that make coerced decision-making considerably easier to produce than clean, freely-considered decision-making.

By early July 2017 — [manuscript note: verify exact release date against docket, currently unconfirmed in available sources] — I was out of jail, carrying a signed restraining order I had contested nothing about, an FBI interview with no surviving form, a dismissed complaint against the judge who set my bond, and a clinical finding that coercion, not instability, had shaped my choices that spring. Chapter 6 picks up the next front in my life: the false accusation that would come to define my relationship with the mother of my first daughter for the better part of a decade.

## A FALSE ACCUSATION WEAPONIZED

**P**hyllis Marie Crowder is the mother of my oldest daughter, Lydia, born August 19, 2014. By the fall of 2018, Crowder and I had already been locked for years in the particular, grinding kind of conflict that custody disputes between parents who cannot stand each other tend to produce — a conflict that was not one-sided, and pretending otherwise would undercut the credibility of everything else in this chapter.

In domestic litigation, especially in small Mississippi counties where legal proceedings drag across seasons without clear resolution, interpersonal friction rarely remains contained within courtrooms. For years, every custody exchange, every text message regarding pickup schedules, and every disagreement over medical care or discipline carried an underlying tension that threatened to spill over into formal legal action. I was not a passive or blameless bystander in this dynamic; my own stubbornness, anger, and insistence on standing my ground contributed directly to the escalating hostility between us. The constant low-grade dread of what allegation or legal motion might land next created an

atmosphere of hyper-vigilance, where every interaction had to be documented, saved, and analyzed for potential vulnerability.

On November 25, 2018, Crowder and I had a sexual encounter. This is not, on its face, remarkable — two adults who share a child and have a complicated history are not strangers to each other, and an encounter between them, consensual or not, would ordinarily be a private matter. It becomes relevant here for one specific, documentable reason: text messages between Crowder and me from around this period — the single strongest piece of evidence in this chapter, because they exist independent of either party's later characterization of events — confirm the encounter was consensual on both sides, in both directions, contemporaneously.

For a lay reader trying to understand how criminal allegations intersect with personal disputes, the nature of contemporaneous text evidence is critical. Human memory is malleable, easily distorted by hindsight, anger, or tactical interest. When two people engage in a complex personal relationship, retrospective accounts offered months later under the pressure of litigation often reflect how the parties wish to frame the event rather than what actually occurred. Timestamped electronic messages, however, capture the raw reality of the moment. They show tone, mutual participation, immediate post-encounter sentiment, and continuous consent before and after the event. In this instance, the text log did not merely

suggest consent; it established it beyond reasonable dispute, recording a friendly, familiar, and explicitly mutual exchange that contradicted any assertion of non-consensual conduct.

Crowder later reported it as non-consensual.

The shock of learning that a consensual encounter — documented in real time by written exchanges on my phone — had been transformed into a police complaint of sexual assault was profound. In the American legal system, a report of rape triggers an immediate, heavyweight law enforcement apparatus. For an accused individual, the mere initiation of a felony sexual assault investigation carries catastrophic personal, professional, and social consequences, regardless of ultimate guilt or innocence. I was suddenly facing the prospect of felony charges, potential indictment, public ruin, and decades in prison, all predicated on an event I knew to be entirely consensual and which my phone records clearly proved to be so.

The Olive Branch Police Department investigated. Detective Holladay — one of the few people in this whole story who belongs firmly on the right side of the ledger, precisely because of what happens next — conducted that investigation and concluded, based on the evidence available to him, that the report was false. In January 2019, the Olive Branch Police Department charged Crowder with misdemeanor false reporting.

Detective Holladay's approach to the case stood in sharp contrast to standard institutional inertia. Rather than accepting the initial report at face value or conducting a superficial inquiry designed simply to forward a felony file to the District Attorney's office, Holladay examined the actual physical and digital evidence. He reviewed the complete, unedited text thread between Crowder and me from November 25, 2018, and the days immediately following. He analyzed the timestamps, the context, and the explicit expressions of consent exchanged between both parties. Recognizing that the contemporaneous record directly disproved the complaint, Holladay took the unusual step of determining that the report itself constituted a criminal act. In January 2019, the department officially charged Crowder under Mississippi law with misdemeanor false reporting of a crime.

It is worth pausing on how rare this outcome is, in the broader landscape of American law enforcement's handling of sexual assault reports. The overwhelming, well-documented pattern nationally is one of under-investigation, not over-investigation — police departments that decline to pursue charges even where the evidence supporting a report is strong, out of a mix of resource constraints, cultural skepticism, and the genuine evidentiary difficulty inherent in prosecuting cases that often come down to one person's word against another's. Detective Holladay's willingness to look at contemporaneous text evidence, conclude a report was false, and refer for a false-reporting charge is not the ordinary institutional

response. It is the exception, and it deserves credit as one: the alternative — an investigation that simply took Crowder's report at face value regardless of what the texts showed — is the far more common failure mode, and would have cost me a felony rape prosecution built on evidence that didn't hold up any better than the aggravated stalking charge detailed two chapters earlier.

The legal mechanisms governing false reporting reflect a delicate policy balance. Law enforcement agencies are understandably cautious about prosecuting individuals who make allegations, fearing that aggressive enforcement against false reports might deter genuine victims of sexual violence from coming forward. Because of this structural hesitation, police detectives rarely recommend criminal charges against a reporting witness unless the documentary proof of fabrication is overwhelming. Detective Holladay's decision to cross that threshold demonstrated an adherence to objective fact-finding that is far too rare in municipal police work. He evaluated the digital evidence without fear or favor, recognizing that a false rape allegation is not merely a private disagreement but a grave abuse of the criminal justice system that destroys innocent lives.

In January 2020, a recorded phone call revealed another troubling layer to this history: an unserved arrest warrant existed for Phyllis 'Liz' Crowder arising from a prior false rape charge. Furthermore, I claim that a recording exists in which Crowder explicitly admits that she fabricated that prior



accusation, with her husband Dustin Kessler's involvement referenced (her married name being Crowder/Kessler). I present this here strictly as my own claim and recollection, and I must explicitly flag the evidentiary uncertainty surrounding it. While the recorded call of January 2020 and my recollection of Crowder's recorded admission regarding Dustin Kessler reflect my sincere belief and recollection of events, they represent my personal assertions rather than facts established by an independent judicial finding or verified court document. I include this recollection because it shaped my understanding of the pattern I was facing, but its limits as an unverified personal claim must be acknowledged clearly.

The sense of vulnerability deepened as the dispute expanded beyond municipal police records into wider political and social networks. On a recorded call dated June 23, 2020, I claimed that Crowder was "friends with the mayor" — referring to Oxford Mayor Robyn Tannehill — and was actively leveraging or acting on that connection to pressure me and my family, including publishing my family's physical location. I must explicitly state that this was my own theory and subjective perception at the time. I flag it here explicitly as my own unverified theory: my belief that Crowder was using a personal relationship with Mayor Robyn Tannehill to target my family and publish our location represents my own internal interpretation of events during an intensely stressful period, rather than an established fact supported by official findings or external confirmation.

There is a contemporaneous record of what Madelyn and I ourselves believed was driving this pattern, captured not in hindsight but in a July 7, 2020 recording made during a Child Protective Services home visit — a visit prompted by yet another anonymous hotline report. On that recording, the two of us describe Crowder to the visiting caseworker as someone we believed had "multiple personality disorder," and state plainly that the accusations had recurred "three years in a row, each within a three-month window" — a pattern we told the caseworker, in real time, we had noticed lined up with pregnancies and miscarriages during that period. That characterization is recorded here exactly as Madelyn and I gave it, with two caveats attached plainly: it is our own lay diagnosis of Crowder's mental state, offered under the obvious pressure of defending ourselves against a recurring accusation, and it is not a clinical finding anyone has independently confirmed. What makes it worth including rather than discarding as simply self-serving is its contemporaneous nature — not a claim invented years later for a book manuscript, but a specific, dated, internally consistent pattern description given to a state investigator in the middle of the events it describes, a meaningfully different kind of evidence than a retrospective narrative built after the fact.

Sitting in our living room with a state caseworker during that July 7, 2020 CPS visit was an exhausting, demoralizing experience for Madelyn and me. Anonymous hotline reports force parents to open their private lives, their home, and their

parenting to state scrutiny under the threat of losing custody of their children. Explaining to an investigator that these repeated hotline calls were not isolated incidents, but part of a predictable cyclic pattern linked to specific windows surrounding pregnancies and miscarriages, was our effort to provide context to an agency that saw only isolated snapshots. Even though our description of "multiple personality disorder" was an unconfirmed lay opinion formed under severe strain, recording that conversation provided a contemporaneous anchor proving that we were raising these exact concerns in real time to state authorities.

This is also the point in the story where the discipline of holding two things at once matters most. It would be easy — and it would flatter the broader narrative of institutional persecution built so far — to treat the Crowder false-reporting charge as simply more evidence that I am a target of a system determined to victimize me. That reading would be incomplete. What the record actually supports is narrower and, in its way, more useful: in this specific instance, an investigator did his job, followed the evidence rather than a presumption, and the system produced roughly the correct outcome — a rare enough occurrence in false-reporting cases generally that it deserves to be named as an institutional success story, inside an account that spends most of its pages documenting institutional failure.

It does not end there. What follows is the story of what happened after the charge was filed: a conviction obtained nearly two years later, in September 2020, in a different court than the one that filed the original charge; an appeal filed late; a judge who refused to enforce a sentence; and — running underneath all of it, in parallel, for years — a pattern of recurring accusations against me that Crowder brought to Child Protective Services three years running, each timed, by Madelyn's and my own contemporaneous account during that 2020 CPS home visit, to a roughly three-month window around a pregnancy or miscarriage.

That pattern, and the false-reporting conviction's own convoluted path through Olive Branch Municipal Court, DeSoto County Circuit Court, and a notary-fraud theory that will be presented carefully and with its evidentiary limits clearly marked, is the subject of the next several chapters. What belongs here, at the start of Part II, is the plain, documented fact that anchors everything that follows: a false report was made, an investigator found it false using contemporaneous evidence rather than assumption, and a charge was filed. Whatever comes next in the tangled two years between that January 2019 charge and its eventual September 2020 conviction, it starts from a point where the system, for once, worked roughly as it was supposed to.

## CONVICTION AND CONTEMPT

**N**early two years passed between the January 2019 false-reporting charge against Phyllis Crowder and her eventual conviction. On September 22, 2020, Crowder was convicted in Olive Branch Municipal Court, entering a plea of *nolo contendere* — no contest, an admission that carries the legal consequences of a guilty plea without requiring the defendant to formally admit the underlying facts. The sentence, according to a hard detail confirmed through a recorded 2020 call to a county court clerk rather than through my account alone, was thirty days in jail and a \$129.25 fine, with the sentence stayed pending an appeal deadline the clerk referenced only as "the 27th."

Living through those twenty months between the initial charge in January 2019 and the conviction in September 2020 was a trial of patience and emotional endurance. In misdemeanor criminal cases, two years is an extraordinarily long time for a simple charge to work its way through a municipal court docket. During that extended interim, I was left waiting in legal uncertainty, watching calendar pages turn while knowing that the charge remained unresolved on the court

calendar. Every delay added to the background anxiety, as the threat of renewed allegations or procedural maneuvering hovered constantly over my daily life and my family.

For a lay reader unfamiliar with Mississippi jurisprudence, understanding municipal court procedures provides essential context for what unfolded on September 22, 2020. In Mississippi, municipal courts operate as courts of limited jurisdiction handling misdemeanor offenses and city ordinance violations. They are non-record courts, meaning proceedings are typically informal and not transcribed by official court reporters. When Crowder entered her plea of *nolo contendere* — no contest — she chose a legal posture that allowed her to accept the conviction and penalty without entering a formal admission of factual guilt on the court record. While a *nolo contendere* plea results in an immediate criminal conviction and sentence, it shields the pleading party from having their plea used as a direct factual admission in subsequent civil proceedings. The sentence imposed by the court was explicit: thirty days in jail and a \$129.25 fine. However, as is common when a defendant indicates an intent to appeal, the municipal judge stayed execution of the sentence pending an appeal deadline that the county clerk later identified as "the 27th."

What happened next is where this chapter's title earns its second half. Crowder's appeal was filed late. When the matter came before DeSoto County Circuit Court, the county court denied it and remanded the case back to Olive Branch. The

Olive Branch judge, for reasons the available record does not fully explain, then refused to enforce the sentence he himself had imposed.

The "filed late" characterization understates how irregular this appeal actually appears in the record. On October 30, 2020, in a recorded call to the DeSoto County Circuit Clerk's office, a clerk identified in the available record as Allison told me flatly: "there hasn't been anything filed in this office by that name." That statement — a circuit clerk's own office, on the record, stating that no appeal existed under Crowder's name — sits in direct tension with Olive Branch Municipal Court's own position that a last-minute appeal had been submitted before Crowder's surrender deadline. That tension cannot be resolved from the available record; it may reflect a filing that existed but hadn't yet been logged into the circuit clerk's system, a filing made in a different name or through a different mechanism than a standard circuit appeal, or something else entirely. What can be said is that the appeal process which ultimately allowed Crowder's thirty-day sentence to evaporate did not, on this specific piece of evidence, appear to follow the clean, verifiable paper trail that the words "filed an appeal" ordinarily imply.

To appreciate the depth of this procedural anomaly, it is helpful to examine standard appellate procedure in Mississippi misdemeanor cases. Under Mississippi law, appealing a misdemeanor conviction from a municipal court to a higher court requires strict compliance with statutory deadlines,

typically governed by Rule 29 of the Mississippi Rules of Criminal Procedure. An appeal from a municipal court transfers the case to the County or Circuit Court for a trial *de novo* — a completely new trial as if no prior trial had occurred. However, filing a notice of appeal after the statutory deadline deprives the appellate court of jurisdiction. Ordinarily, when an appellate court determines that an appeal notice was filed late, the standard judicial action is a straightforward dismissal of the appeal for lack of jurisdiction. Such a dismissal immediately reinstates the finality of the lower court's judgment, returning the case to the municipal court solely for execution of the original sentence.

This is worth sitting with for a moment, because it is a genuinely unusual sequence, procedurally. A defendant convicted and sentenced; an appeal filed outside the window that would ordinarily preserve it; a reviewing court remanding rather than simply denying the late appeal outright, which sent the case back down rather than closing it; and then the sentencing court itself declining to carry out its own sentence once the case landed back in its hands. Late appeals in misdemeanor cases are ordinarily dismissed cleanly, not remanded into a kind of procedural limbo that leaves a validly imposed sentence sitting unenforced. Whether that irregularity reflects genuine judicial discretion exercised in Crowder's favor, administrative confusion, or something else cannot be said with certainty from the available record. What can be said is that a documented false-reporting conviction, obtained



through the diligence of a police detective who took contemporaneous text evidence seriously, ultimately produced no consequence for Crowder at all.

For a citizen who had endured years of conflict and survived a false sexual assault allegation, watching a validly imposed thirty-day jail sentence and \$129.25 fine evaporate into procedural ambiguity was profoundly demoralizing. The legal system had functioned correctly when Detective Holladay investigated the facts and when the municipal court entered a conviction. Yet at the final hurdle — the actual enforcement of punishment — the machinery stalled. The complete absence of enforcement conveyed a devastating message: that even when a false report is formally investigated, charged, and convicted, the perpetrator faces no actual penalty, while the victim is left to carry the ongoing burden of the ordeal.

I did not accept that outcome quietly, and what I did next is the second half of this chapter's title, and the point where the layered thesis running through everything I'm telling here becomes unavoidable. I was myself arrested for contempt in connection with my efforts to force enforcement of Crowder's sentence — specifically, in a records request where I referenced, in writing, that Crowder "falsely accused me of rape." A \$500 bond followed. I subsequently filed a pro se lawsuit against the City of Olive Branch seeking \$10 million in damages.

The psychological shift that occurred during this period was crucial. Refusing to accept that Crowder's sentence would vanish without explanation, I began submitting persistent public records requests and formal inquiries to court officials and municipal authorities. In my mind, stating in a written records request that Crowder "falsely accused me of rape" was not an act of defiance, but an assertion of documented, established fact — a truth verified by Detective Holladay's investigation and confirmed by Crowder's *nolo contendere* conviction. To be met not with cooperation or enforcement, but with an arrest for contempt of court and a \$500 bond, was a surreal and destabilizing experience. Suddenly, I was the party in handcuffs, processed through the criminal justice apparatus over words written in pursuit of public records, while the individual convicted of filing a false felony report walked free without serving a day of her thirty-day sentence.

In response to what I perceived as systemic resistance and retaliation, I turned to the courts as a *pro se* litigant, filing a massive lawsuit against the City of Olive Branch seeking \$10 million in damages. Navigating the legal system without legal representation is an arduous, overwhelming process. Drafted without benefit of counsel, *pro se* filings often blend formal legal claims with raw personal narrative and deep frustration. Seeking eight figures in damages was an expression of total alienation from the ordinary legal process — an attempt to force a municipal government to acknowledge the systemic breakdown by raising the stakes to an absolute extreme.

There is no way to write around what that sequence looks like from the outside, and no attempt is made to here. By this point in the timeline, having already spent three years absorbing one institutional setback after another, I was now the subject of a contempt arrest arising from my own pursuit of accountability for a conviction the system itself declined to enforce. Whether the contempt charge was itself justified — whether my conduct in pursuing enforcement crossed a genuine legal line, or whether it represents one more instance of a system responding disproportionately to a citizen who will not let a matter drop — is not a question the record available can resolve definitively. What can be said plainly is that a \$10 million pro se lawsuit against a municipality, filed by a man representing himself without counsel, is not evidence of institutional persecution. It is evidence of how my relationship with the ordinary mechanisms of legal recourse had, by 2020, become adversarial in both directions — sometimes because those mechanisms failed me, and sometimes because I escalated past the point that a more patient litigant might have stopped.

Both of those things sit in this chapter at once. A detective did his job in 2019. A court failed to enforce its own sentence in 2020. And as the person at the center of both of those facts, I responded to the second one with a lawsuit seeking eight figures in damages over a matter that, whatever its underlying merit, was never going to be worth anywhere near that sum in any court in Mississippi. The next chapter follows me into the

record-keeping fight that grew out of this same period — the 2020 post-conviction relief motion, the judge swap from Kent Smith to Kelly Luther that I would spend years trying to explain, and the notary-fraud theory presented with its evidentiary limits clearly marked, because that theory, more than almost anything else I claim here, sits at the edge of what the available record can actually support.

## THE BATTLE FOR EVIDENCE

**O**n July 7, 2020, I filed a post-conviction relief motion — docketed as L20-316 in the Circuit Court of Lafayette County — targeting my original 2017 Lynch aggravated stalking conviction, the criminal case built on the twelve-day impossibility detailed in Chapter 3. Under Mississippi’s Uniform Post-Conviction Collateral Relief Act, codified at Mississippi Code Annotated Section 99-39-1, a petitioner seeking to set aside an unlawful conviction faces a steep statutory climb. The law requires a petitioner to present sworn affidavits, documentary proof, and clear legal grounds showing that the underlying judgment suffered from a constitutional defect or newly discovered evidence that could not have been produced at trial. In my filing, I laid out the core factual contradiction that had haunted my defense from the beginning: the mathematical impossibility of the prosecution’s timeline. Yet, on July 30, 2020, Circuit Court Judge John Kelly Luther denied the motion in a summary order without granting an evidentiary hearing. A subsequent Rule 59 motion for rehearing, which pressed the court to re-examine the factual omissions in the record, was denied on October 13, 2020.

The bare procedural facts of a denied post-conviction relief motion would not, on their own, merit extensive analysis here. Post-conviction motions are denied far more often than they are granted, in Mississippi and across every judicial district in the nation, and a summary denial without an evidentiary hearing is not automatically proof of administrative bias or official wrongdoing. It often reflects nothing more than a judge concluding, on the face of the moving papers alone, that the petitioner failed to overcome the formidable statutory hurdles required to open the courtroom doors for oral argument. What earns this episode its own place in the record is what I discovered during those summer months of 2020, and the procedural skirmishes that followed.

On August 12, 2020, I filed a formal motion to recuse Judge Luther. According to my recollection — framed explicitly as my personal observation, since the available court docket does not include independent administrative orders establishing precisely when or how judicial assignments were processed within the Third Circuit Court District — my case had originally been assigned to Circuit Court Judge Kent Smith. Without formal notice, written order, or recorded justification on the docket, the matter was transferred from Judge Smith to Judge Luther. I maintain that this was not an isolated or routine administrative adjustment. Rather, it was an unexplained judicial swap I observed happen twice in legal

proceedings directly affecting my cases, with Judge Smith yielding to Judge Luther on both occasions without a single word of explanation entered into the public record.

This is a serious assertion, and it must be weighed with care. In Mississippi circuit courts, judicial reassignment is a routine administrative function. Cases are shifted between sitting judges for completely mundane reasons every day — docket rebalancing, scheduling conflicts, judicial recusals, or rotational duties across multi-county circuits. A transfer from Judge Smith to Judge Luther, even when observed a second time, does not in itself constitute evidence of improper influence or judicial manipulation. The Third Circuit Court District spans seven counties — Benton, Calhoun, Chickasaw, Lafayette, Marshall, Tippah, and Union — and managing docket loads across such a vast geographic footprint requires constant administrative flexibility. A two-judge rotation could easily represent nothing more than standard operating procedure in a rural circuit district.

There is one detail I can now put a date and a public source on, which I could not before.

Mississippi counties publish their dockets through a system called Delta Computer Systems. Anyone can look at it. I recorded myself going through my own case on it, and here is what I described seeing: on *\*August 12, 2020, the judge listed of record was still Kent Smith. That is the same day I filed the motion*

*to recuse Judge Luther. And when the clerk's office entered that motion — the 8/12 motion for recusal, with its exhibits — the assigned-judge field in the system changed to John Kelly Luther\*.*

If that is right, then the docketing of my motion to remove a judge is the same event that put the case in front of him.

I am labeling that carefully, because it is my reading of a screen and I have not pulled the certified docket history to prove it. But it is not the kind of claim that has to stay unresolved. Delta's records are public and the assertion is date-specific: pull the assigned-judge field for that cause before and after August 12, 2020, and either it changed that day or it did not. *\*I would rather someone check it than take my word for it\**, which is more than I could say about most of what happens in this chapter.

What transformed my suspicion from a passing concern into a formal recusal motion was the surrounding context. By August 2020, I had endured years of procedural anomalies, withheld records, and unaddressed factual contradictions. When a docket assignment shifted silently for the second time, I did not view it as routine court administration. Instead, in light of my prior experiences with local judicial authorities, I perceived it as another link in a chain of procedural irregularities. The recusal motion was ultimately unsuccessful; Judge Luther's July 30 denial remained in effect, and the October 13 order denying my motion for rehearing brought that specific post-conviction proceeding to a close.



Yet, alongside the formal judicial orders, an unexplained anomaly emerged in the public administrative record during the precise window when this judicial conflict was unfolding [CLAIM]. In early August 2020 — in the brief interval between Judge Luther's summary denial on July 30 and my filing of the recusal motion on August 12 — the electronic docket record for case L20-316 was abruptly pulled from public online access through the Mississippi Electronic Courts portal for approximately one week. During those days, an ordinary user searching the online public access portal could no longer view the substantive docket entries, procedural orders, or filed motions associated with L20-316. Strikingly, however, my accompanying affidavit of poverty remained fully visible on the public site.

This temporary disappearance of the electronic case index is presented here as my own unverified assertion [CLAIM], as I do not possess internal logs from the administrative office of the courts to document the technical status of the web server during that specific week. Technical glitches, server maintenance, and database re-indexing occur regularly in public electronic court filing systems, and the temporary invisibility of a single case record can easily result from a routine software update or a temporary database sync failure. However, from my perspective at the time, the selective nature of the missing data — where the substantive legal filings detailing the challenge to my conviction disappeared while the document establishing my indigent financial status remained publicly

exposed — felt deeply unsettling. It reinforced my growing conviction that the administrative infrastructure handling my cases was operating under rules that were neither transparent nor predictable.

The battle over post-conviction evidence was not confined to the electronic docket or the circuit judge's bench. On August 10, 2020, a phone call revealed another critical piece of information regarding the suppression of investigative records. That call established that attorney David O'Donnell was directly tied to the Lafayette County Sheriff's Department withholding crucial information concerning an earlier communication dated May 24, 2017.

To understand the weight of that August 10 revelation, one must look back to May 24, 2017, during the initial investigative push that gave birth to the original stalking charges. On that day, Investigator Alex Bundren of the Lafayette County Sheriff's Department engaged in a telephone conversation during which he systematically reviewed my public Facebook page, scrutinizing my online posts, social connections, and public statements to assemble the evidentiary foundation for my arrest. That May 24 phone call was a pivotal moment in the investigation; it represented the exact point where law enforcement surveillance intersected with my digital footprint. Yet, despite repeated discovery requests and subpoenas issued throughout my criminal defense, all official logs, notes, and memorializations of that May 24, 2017 call were withheld by law enforcement authorities. The August 10, 2020 call

exposed that David O'Donnell was actively involved in facilitating or supporting the Sheriff's Department's decision to keep those investigative records shielded from disclosure.

The withholding of the May 24, 2017 investigative notes was far from a technical oversight. In criminal practice, police logs detailing real-time social media monitoring provide vital context regarding investigator bias, the sequence of evidence gathering, and whether law enforcement acted upon verified facts or external pressure. By tying O'Donnell to the suppression of those notes, the August 10 call highlighted a persistent pattern: whenever my defense sought to examine the foundational records of the 2017 prosecution, key documents were either declared non-existent, held behind attorney-client privilege claims, or quietly withheld by law enforcement officials working in tandem with local legal counsel.

It was during these same summer weeks of 2020 — specifically within a series of text messages exchanged between June 25 and June 27, 2020 — that I laid out to Christi McCoy, Phyllis Crowder's own attorney in the custody matter, a detailed theory that demands careful, cautious examination: the notary-fraud theory [CLAIM].

As I have described it, Crowder's attorney at the time, Mona Pittman, filed a false or materially incomplete Chancery Court custody petition on August 26, 2017. That filing was executed with extraordinary haste, lacking proper statutory summons served upon me, and was specifically timed to serve a tactical purpose outside the Chancery Court: reducing

Crowder's immediate criminal sentencing exposure in a separate, pending false-reporting case in Olive Branch, DeSoto County. Facing potential incarceration or heavy penalties in DeSoto County, Crowder needed to demonstrate to the sentencing judge that she was an active, responsible mother actively pursuing legal custody of her child in Lafayette County Chancery Court. A stamped custody petition provided immediate documentary proof of an open family law proceeding. According to my claim, Pittman fast-filed the incomplete petition on August 26, 2017, to secure that essential court stamp for the Olive Branch court, and later filed a corrected, "true" version of the custody petition while re-using the identical notary stamp and jurat block from the original filing.

This notary-fraud theory cannot be independently verified through a state bar disciplinary finding, an official notarial audit, or an explicit judicial ruling, and no such formal documentation exists within the public records available to me. It is included here, clearly labeled as an unverified claim [CLAIM], because an honest evaluation of this timeline requires examining the internal logic of the arguments raised during that period. What gives the notary theory its internal coherence is its precise alignment with external incentives and deadlines. The August 26, 2017 filing date directly corresponds with the critical window of Crowder's sentencing calendar in Olive Branch. The motive — establishing a legal custody footprint to mitigate criminal exposure in another jurisdiction — provides a rational explanation for expediting a defective

filing without waiting for proper service of process. Re-using a previously executed notary block on a revised petition is a known procedural shortcut in busy law practices, even if it violates strict statutory notarization standards.

At the same time, an alternative, benign explanation exists that must be given equal weight. Family law practices routinely encounter procedural defects in initial pleadings. Attorneys frequently file amended or supplemental petitions to cure technical errors, update factual assertions, or correct jurisdictional defects identified by court clerks. What I perceived as a deliberate, fraudulent scheme to manipulate court records and influence a criminal sentencing hearing could just as plausibly have been an ordinary administrative correction by a busy practitioner, viewed through the lens of a litigant who had developed a deep, justifiable skepticism toward every procedural anomaly in Lafayette County.

The reader is entitled to weigh that theory independently, with its limitations clearly stated. Yet, to fully comprehend why I viewed these judicial and administrative irregularities with such intense skepticism, one must look beyond the immediate boundaries of my individual case files and examine the broader institutional framework governing Lafayette County law enforcement and court administration — an institutional ecosystem frequently described by local observers as 'The Oxford Machine.'

In April 2026, investigative reporting published by wtpnews.org brought to light a major financial scandal that illustrates the entrenched, self-policing dynamics of this local establishment: the \$34,000 Metro Narcotics Unit scandal. The Metro Narcotics Unit, a multi-jurisdictional drug enforcement entity operating in Lafayette County and Oxford, was funded through municipal and county taxpayer allocations under the oversight of local elected officials. According to the investigative reporting by wtpnews.org, the financial irregularities began around 2014, when approximately \$4,000 first disappeared from the unit's secure lockbox maintained at the First National Bank of Oxford. The Federal Bureau of Investigation conducted an inquiry into the missing funds, but federal prosecutors ultimately concluded there was insufficient evidence to bring formal criminal charges against any individual officer or administrator.

The financial drain, however, did not cease with the initial FBI inquiry. In late 2015, during a formal change-of-command inventory within the agency, an additional \$30,000 was discovered missing from the unit's lockbox, bringing the total stolen sum to \$34,000 in cash. The individuals who conducted that inventory and uncovered the \$30,000 shortage were incoming Oxford Police Chief Joey East and Chief Deputy Scott Mills.

Here lies the critical structural conflict exposed by the wtpnews.org investigation: Joey East was not merely an independent investigator stepping in to audit a compromised

agency. He was himself an authorized signatory on the First National Bank of Oxford lockbox from which the \$34,000 had vanished, AND he was one of only two individuals who "discovered" the second \$30,000 shortage during the internal inventory. In any standard law enforcement structure, an individual with direct signature authority over a compromised bank account cannot conduct a neutral, objective investigation into missing cash from that same account. Yet in Lafayette County, East oversaw the internal accounting process, effectively creating a self-investigation conflict of interest that insulated key local figures from external accountability.

The institutional connections ran even deeper across county government. Joey East was the son of F.D. "Buddy" East, who served as the long-time Sheriff of Lafayette County for nearly four decades, building one of the most powerful political dynasties in North Mississippi. Before running for Sheriff himself, Joey East sat on the Metro Narcotics Control Board, the governing body responsible for overseeing the unit's operations and financial accounts. Following his father's passing, Joey East ran for Lafayette County Sheriff, won the election, and was officially sworn into office in January 2020.

Simultaneously, Jeff Busby served for eight years as President of the Lafayette County Board of Supervisors, the primary county governing body responsible for approving municipal budgets and allocating local taxpayer funds to the Metro Narcotics Unit during the very years that the \$34,000 went missing. In 2019, Busby ran for Circuit Clerk of Lafayette

County — the chief administrative officer responsible for managing all Circuit Court records, dockets, and jury selection processes — and took office in January 2020, the exact same month Joey East assumed office as Sheriff.

This real, previously published reporting from wtpnews.org highlights the closed loop of authority that defined Lafayette County's legal and political landscape in 2020. The same public officials who funded law enforcement agencies as supervisors later managed the court records as Circuit Clerk; the same law enforcement figures who held signature authority over missing lockbox funds oversaw the internal audits and assumed the highest law enforcement office in the county. When I filed my post-conviction relief motion L20-316 in July 2020, challenged the unexplained judge swaps between Judge Smith and Judge Luther, questioned the disappearance of online docket entries, and confronted withheld police notes involving David O'Donnell and Investigator Alex Bundren, I was not operating in a vacuum. I was navigating a legal system governed by an interconnected political network where administrative discretion, court records, and law enforcement authority were tightly held within a small circle of long-tenured officials.

The next chapter shifts focus from the Circuit Court dockets and law enforcement leadership to a parallel, equally relentless pressure point: Child Protective Services, and a recurring series of anonymous allegations that Madelyn and I



would confront directly during a recorded July 2020 home visit, describing them in our own words as happening "three years in a row."

## THREE YEARS RUNNING

**O**n July 7, 2020, a Child Protective Services caseworker arrived at Madelyn's and my home in Lafayette County to investigate an anonymous hotline report alleging child neglect and domestic instability. The entire interaction was recorded on audio, and that contemporaneous recording stands as one of the most significant evidentiary items preserved from this period of the conflict. Its value does not stem from being an objective or neutral tribunal finding — it is self-evidently not neutral, as both Madelyn and I were speaking in our own defense to a state investigator whose duty was to weigh our statements against allegations in an official case file. Its true evidentiary weight lies in its contemporaneous nature. It records exactly what Madelyn and I articulated to a state welfare investigator in real time in July 2020, years before these events were organized into a published narrative, making it distinct from a retrospective explanation constructed after the fact to support a specific legal position.

On that July 7 recording, Madelyn and I laid out a clear, recurring pattern to the caseworker: that Phyllis Crowder had instigated child welfare reports against us three years in a row. Each report occurred within a tight three-month calendar window, and each, according to our detailed observations, was

directly correlated with a pregnancy or a miscarriage occurring in Crowder's own life. During that same recorded conversation, we characterized Crowder as an individual whom we believed suffered from "multiple personality disorder." That characterization is recorded here strictly as our own lay assessment offered during an intense, high-stakes home interview, rather than as a verified psychiatric diagnosis possessing medical or judicial standing.

This chapter approaches that July 2020 recording with the same rigorous evidentiary framework applied to the notary-fraud theory in the preceding chapter: treating it as valuable, highly relevant evidence while clearly establishing its inherent limitations. Statements made by interested parties defending their parental rights during an active child welfare investigation do not constitute conclusive proof of the facts asserted. However, dismissing contemporaneous statements merely because they originate from interested parties would create its own profound distortion — a distortion I have deliberately avoided when analyzing Phyllis Crowder's statements regarding the November 2018 incident, Chief Joey East's sworn deposition testimony, or Circuit Clerk Jeff Busby's administrative correspondence. Interested-party statements are recognized legal evidence. While they carry less probative weight than an official docket entry or a certified bank ledger, requiring the complete exclusion of every statement made by

someone with a personal stake in the outcome would erase nearly the entire evidentiary foundation, as virtually every actor in this narrative had significant interests at stake.

Beyond our personal assertions on the recording, the structural reality of repeating investigations is established by the recurring administrative record itself: multiple Child Protective Services referrals originating from the same source across three consecutive years, none of which resulted in a substantiated finding of abuse or neglect against Madelyn or me. In child welfare practice, a single unsubstantiated report provides minimal evidence of malice or bad faith. State child protection frameworks, including the Mississippi Department of Child Protection Services operating under Mississippi Code Annotated Section 43-21-353, are intentionally designed with a low reporting threshold. Centralized hotline systems encourage immediate reporting of suspected child mistreatment, accepting a high rate of false positives as a necessary institutional cost to ensure genuine child abuse is detected and intercepted before harm occurs. Consequently, an unsubstantiated determination simply means the investigating caseworker found insufficient evidence to validate the allegation; it does not automatically prove the reporter acted in bad faith.

However, a pattern of annual, unsubstantiated reports originating from the same reporting source, adhering to a predictable seasonal schedule and coinciding with documented milestones in the reporter's personal life, represents a

fundamentally different category of evidence. While still short of conclusive legal proof of bad faith, such a pattern demonstrates a systemic failure within the child welfare apparatus. A functioning child protection system ought to possess administrative mechanisms to identify recurring, unverified reports from a single source, allowing caseworkers to weigh the credibility of subsequent allegations rather than processing each intake as an isolated, unweighted emergency.

A separate audio recording, created during the same summer window of 2020, introduces another specific evidentiary element into this picture, though it requires the same careful qualification. The recording captures a tense conversation inside an automobile, where I am heard speaking directly with Christi McCoy — Crowder's attorney in the ongoing custody litigation, and a figure consistently recognized throughout this narrative as an ethical advocate operating squarely within professional boundaries. On that tape, I state directly to McCoy that I have secured "two police reports where Crowder told deputies CPS said I couldn't see Lydia," and further assert that I possess "two recordings speaking to CPS where they flat out say she is lying and the reports have been closed out as lies."

If those two specific recordings exist in the exact form described during that conversation — featuring state child welfare caseworkers explicitly confirming on tape that Crowder's reports were unfounded and closed due to fabrication — they would constitute considerably stronger objective

evidence than the pattern-based inferences drawn from the July 2020 home visit. However, those two specific audio recordings have not been independently located or verified within the available case archive. That evidentiary gap is acknowledged directly here, rather than treating oral references on a phone call as equivalent to reviewing the primary audio files themselves.

There is no indication in the available state records that the Mississippi Department of Child Protection Services, or the specific county caseworkers in DeSoto and Lafayette counties, ever formally flagged this three-year sequence of unsubstantiated reports or modified their investigative protocols when handling subsequent hotline calls concerning our family. That administrative inaction does not necessarily demonstrate official bias or corrupt intent on the part of CPS staff. It frequently reflects the rigid, compartmentalized nature of state welfare bureaucracies, where individual caseworkers handle heavy caseloads and process each incoming intake as an isolated event, bound by statutory mandates that prioritize immediate child safety assessments over historical cross-referencing. While that design choice has obvious child-protection justifications — preventing caseworkers from dismissing a valid abuse report simply because a reporter has repeatedly filed unverified claims in the past — it imposes an extraordinary, ongoing toll on targeted parents who must repeatedly open their homes to state scrutiny.

This chapter does not resolve whether Crowder's recurring CPS reports were driven by genuine, albeit mistaken, concern, by calculated tactical maneuvering to gain leverage in Chancery Court, or by a complex psychological state encompassing elements of both. What the contemporaneous July 2020 recording conclusively establishes is that Madelyn and I were detailing this precise pattern — three years running, three-month windows, aligned with pregnancies and miscarriages — to a state investigator years before any formal written narrative was constructed. The consistency of those assertions across contemporaneous audio files demonstrates that our claims were not retrospective fabrications, but real-time responses to a continuous pattern of administrative interference.

By the close of 2020, the struggle over evidence had expanded across every level of local government. In the Circuit Court, my post-conviction relief motion L20-316 had been summarily denied by Judge Luther, the docket record had briefly vanished from public online view, and judicial assignments had shifted without explanation. In the Chancery Court and child welfare system, recurring anonymous hotline reports and contested custody filings created constant domestic friction, backed by attorney involvement that touched upon suppressed law enforcement notes involving David O'Donnell and Investigator Alex Bundren. Dominating all of it was the institutional backdrop of Lafayette County governance — where figures like Sheriff Joey East and Circuit

Clerk Jeff Busby operated within an entrenched political structure shaped by past financial scandals like the \$34,000 Metro Narcotics Unit lockbox shortage.

As 2020 turned into 2021, the focus of this conflict shifted away from domestic custody disputes, child welfare visits, and post-conviction court filings. The battleground moved directly onto the roads and highways of Lafayette County, where my growing confrontations with local law enforcement would escalate dramatically — beginning with a February 2021 traffic stop by Deputy Kandi Beavers that would become one of the most pivotal and consequential events in this entire account.



## THE FEBRUARY 2021 DUI SETUP

**O**n February 21, 2021, Deputy Kandi Beavers stopped me and claimed to smell marijuana in my vehicle, initiating what she characterized as a DUI investigation. Emergency blue lights flashed in my rearview mirror on a dark Lafayette County road, cutting through the chilly night air as I pulled over to the gravel shoulder. When Deputy Beavers approached my driver-side window, her flashlight beam swept across the car interior before she demanded my driver's license, vehicle registration, and proof of insurance. Almost immediately, she asserted that she detected the odor of burning or raw marijuana emanating from inside the cabin. I knew instantly what that assertion signified in Mississippi law enforcement practice. An officer's statement that she smells marijuana is the ultimate unchallengeable pretext: under state law, it establishes immediate, warrantless probable cause to search a vehicle's passenger compartment and provides reasonable suspicion to detain a driver for an extended roadside sobriety investigation. I stepped out onto the cold asphalt under the bright glare of cruiser spotlights, watching Beavers prepare to conduct roadside physical tests while I stood on the shoulder, acutely aware that whatever transpired would form the foundation of a criminal prosecution. That stop is the origin

point of a conviction — I would be found guilty of DUI and related misdemeanors in Lafayette County Justice Court on November 24, 2021 — and it is also the origin point of the single most consequential piece of testimony against Beavers's own credibility I have, testimony that would not surface until nearly two years later and would ultimately help unravel a much larger prosecution than this one.

To understand the procedural and legal mechanics of that night, a lay reader must understand what a DUI stop investigation legally requires under Fourth Amendment jurisprudence and Mississippi statutory law. A constitutionally valid traffic stop begins with reasonable, articulable suspicion that a traffic violation or crime has occurred. Once a vehicle is stopped, an officer cannot arbitrarily prolong the detention without developing additional reasonable suspicion. However, under long-standing Mississippi precedent — such as *Townsend v. State* — an officer's sworn assertion of smelling marijuana instantly unlocks the legal authority to search the entire passenger compartment without a search warrant and prolong the stop. In standard DUI practice, officers then administer National Highway Traffic Safety Administration (NHTSA) Standardized Field Sobriety Tests (SFSTs), including the Horizontal Gaze Nystagmus (HGN), Walk-and-Turn, and One-Leg Stand tests. While these physical agility tests were validated primarily to detect alcohol impairment, officers routinely apply them to alleged drug impairment, despite the absence of scientific consensus linking physical balance tests

directly to specific blood concentrations of tetrahydrocannabinol (THC). For alleged drug DUI enforcement, advanced protocols typically require a certified Drug Recognition Expert (DRE) to conduct a multi-step evaluation. Furthermore, under Mississippi Code § 63-11-5, the state's implied consent law, drivers face administrative license suspensions for refusing chemical testing, though drug testing requires blood or urine draws performed by certified medical personnel following strict chain-of-custody protocols. In cases where no chemical breath test indicates elevated blood alcohol concentration, the entire prosecution hinges on officer observations, field agility performance, and alleged physical evidence — making objective video recording the single most vital piece of evidence in the entire case.

This chapter is deliberately titled with the word "setup," and that word deserves scrutiny before it's used, since loaded language should be reserved for places the record actually supports it. Here is what the record supports, and it is not the version I have told for years. I have long said Sheriff Joey East testified that the footage from this stop was "gone forever." Having now listened to the November 2021 trial audio in full, he never used those words, and neither did anyone else — that was my paraphrase, repeated until I mistook it for a quotation. Chapter 13 sets out the correction at length. In short: there was no dashcam and no bodycam; the field sobriety test was performed indoors in the detention center sallyport, where cameras do exist and where no one activates them on request;

sallyport footage is withheld from the public as a matter of stated policy — "we don't give them out" — and survives about *\*seven days\** unless someone asks or a judge orders it. And at that same trial, the department's own parking-lot video from another charge had been preserved and produced, prompting the question of how one could be preserved and not the other, and the answer, from the stand, that the sallyport video "could have been" preserved too.

A sheriff who tells a court that evidence is irretrievably lost, and later testifies under oath in a different proceeding that his department's video retention practice is actually selective rather than uniformly automatic, has said two things that cannot both be fully true in the way each was originally presented. That does not prove the February 2021 stop was fabricated. It does mean that when my account of that stop and Beavers's account of it diverge, and the footage that might have resolved the dispute is unavailable, the unavailability itself carries a credibility cost — one that lands on the department's own testimony, not on my version of events by default. Under the legal doctrine of evidentiary spoliation, when law enforcement agencies fail to preserve mandatory dash-camera or body-worn camera recordings that are central to a criminal prosecution, courts and observers are entitled to scrutinize what those missing tapes would have revealed. When selective preservation replaces uniform archiving, the

missing video is no longer a neutral administrative error; it becomes a structural evidentiary defect that undermines the government's burden of proof beyond a reasonable doubt.

Kandi Beavers's role does not end with this traffic stop, worth flagging clearly here at her introduction into this narrative, so a reader encounters her name in Chapter 10 already primed for what recurs in Chapter 21: in November 2022, Beavers's testimony would be the central evidence supporting a probation-revocation finding against me in the second, separate stalking case detailed later — testimony examined against the certified transcript in Chapter 20 -- where a prosecutor asked her whether I had lied and she answered yes, on hearsay, while her own cross-examination confirmed I had given the Sheriff's Department the advance notice my order required, contradict what she told the court. That episode is fully addressed in its own chapter. It belongs here only as a marker: the deputy who initiated this February 2021 stop is the same deputy whose sworn testimony would, a year and a half later, send me into Mississippi custody for approximately a year, on testimony treated here as false.

None of that retroactively proves the February 2021 stop itself was improper. Traffic stops based on an officer's claimed odor of marijuana are common, legally sufficient under Mississippi law to justify further investigation, and not inherently suspicious on their own terms — officers make this kind of stop constantly, and most of the time it is exactly what it appears to be. What makes this particular stop worth its

own chapter is not the stop itself but everything that surrounds it: the officer who conducted it would later be found to have given false testimony in a related matter; the footage that might have settled any factual dispute about the stop is unavailable, under circumstances the sheriff himself has described in two mutually contradictory ways; and the resulting conviction feeds directly into the aggravated-stalking sentencing enhancement structure detailed in Chapter 16, because Mississippi's repeat-offense stalking statute looks at a defendant's record within a lookback window, and a DUI conviction sitting on that record in 2021 is part of the broader picture a court would weigh when the second stalking case arrived in 2022.

The November 2021 trial that grew out of this stop is covered in full in Chapter 14, alongside the eight other charges I faced that same day — three separate events, nine charges, an outcome that split cleanly down a line hard to read as coincidental: guilty on every charge brought by the Lafayette County Sheriff's Department, not guilty on every charge Phyllis Crowder herself brought.

Between the February 2021 DUI stop and the confrontations of mid-summer 2021, my personal life was straining under the weight of unrelenting legal pressure and official conflict. In what I believe was late June or early July 2021 (roughly between June 24 and July 9, 2021, though the exact date remains unconfirmed in official records), a heated domestic argument with my wife Madelyn escalated into a

domestic disturbance call. Responding officers arrested me, leading to a short stay at the Tupelo Crisis Center for observation and mental health evaluation during a period of severe emotional exhaustion. While I was held at the Tupelo Crisis Center, facility personnel or law enforcement conducted an unconsented search of my personal belongings, locating a marijuana pipe and generating an additional misdemeanor charge.

That Tupelo charge was later shelved and dropped without formal trial, dead-docketed by authorities who chose not to move forward. From a legal and procedural perspective, warrantless searches of personal effects during medical intake and crisis stays raise severe Fourth Amendment issues. Under established constitutional principles — including inventory search limitations established by the Supreme Court in *South Dakota v. Opperman* — law enforcement officers cannot treat a medical crisis intake or evaluation hold as an unrestricted search warrant to inspect private personal effects without consent, exigent circumstances, or a warrant. Furthermore, while Mississippi law under Mississippi Code § 93-21-1 et seq. provides frameworks for responding to domestic disturbance calls, converting a domestic argument into a crisis facility hold and then leveraging that stay to execute an unconsented property search illustrates how easily tangential misdemeanor charges proliferate during moments of personal vulnerability. Including this domestic disturbance incident and the resulting crisis center stay is vital to maintaining an honest personal

narrative. I do not hide from my domestic struggles or the painful arguments that occurred with my wife Madelyn during those high-pressure months. But legally, the Tupelo incident followed a recognizable pattern: a domestic dispute leading to a mental health hold, an unconsented search, a misdemeanor charge tagged onto my name, and an eventual silent dropping of the charge when challenged.

Before reaching that November 2021 trial, though, the next three chapters follow me through the summer and fall of 2021 — a confrontation outside the Oxford U.S. Attorney's Office, a drone crash with a minor present, and the Circuit Court re-confrontation over the still-unexplained Smith-to-Luther judge swap — the one I say I watched happen twice — first raised in Chapter 8.



## THE OXFORD U.S. ATTORNEY'S OFFICE CONFRONTATION

**B**etween July 19 and July 21, 2021, I filmed outside the Oxford office of the United States Attorney for the Northern District of Mississippi, located along South Lamar Boulevard near the historic city square. This was not, by itself, an unusual thing for me to have done by this point in my life. By mid-2021, roughly four years into the conflict with Lafayette County institutions that had traced continuously since Chapter 2, I had settled into the regular practice that would eventually earn me, in official government correspondence and court filings, the label "First Amendment auditor" — standing in public spaces to film government buildings, security personnel, and public officials, testing and documenting how those officials responded to being recorded. Whatever a reader thinks of the practice as a genre — no position is taken here on whether First Amendment auditing is a wise or generous way to spend one's time, only on whether it is lawful, which it firmly and demonstrably is — the Oxford USAO confrontation is worth its own dedicated chapter for two distinct, load-bearing reasons.

To understand why filming outside a federal facility is protected under the law requires examining the baseline constitutional framework governing public space. Under well-established Supreme Court precedent extending from *Hague v. CIO* (1939) and *Schneider v. State* (1939) to *Perry Education Association v. Perry Local Educators' Association* (1983), public sidewalks surrounding public buildings are designated as traditional public forums. In a traditional public forum, citizen expression occupies its highest level of constitutional protection. That protection extends directly to the gathering of information and the visual recording of government operations. Multiple federal appellate courts across the nation have explicitly recognized that recording police and government officials in public view is a clearly established First Amendment right — including the First Circuit in *Glik v. Cunniffe* (2011), the Third Circuit in *Fields v. City of Philadelphia* (2017), and the Fifth Circuit, which governs Mississippi, in *Turner v. Driver* (2017).

Furthermore, the United States Department of Justice Civil Rights Division has issued formal guidance to law enforcement agencies nationwide confirming that citizens possess a First Amendment right to record public officials engaged in official duties in public places. Federal Protective Service policies similarly distinguish between secured interior federal spaces and exterior areas visible from public thoroughfares, affirming that members of the public do not require a permit or official clearance to photograph or videotape federal

building exteriors from public sidewalks. While government agencies retain the narrow authority to enforce reasonable, content-neutral time, place, and manner regulations — such as preventing physical obstruction of doorways or maintaining clear emergency egress — they cannot prohibit peaceful video recording on a public sidewalk simply because a federal building, official logo, or law enforcement officer appears within the camera's frame. Standing on a public sidewalk with a handheld camera is an exercise of foundational constitutional liberty, not a municipal infraction or a federal offense.

The first reason the July 2021 Oxford confrontation earns its place in this narrative is Police Chief Jeff McCutchen's handling of the incident, which belongs in a small but real column of institutional actors who did their jobs correctly even while dealing with a citizen many of them found exhausting. McCutchen provided me a same-day copy of the official police report generated from the encounter — a level of transparency and administrative speed that stands in sharp contrast to the FOIA stonewalling, missing video footage, altered logs, and seven-day-window evidentiary vanishings that recur throughout the Lafayette County side of this timeline. In a law enforcement environment where basic public records were routinely delayed for months or denied outright, McCutchen's immediate, unprompted production of the incident report without forcing me into administrative litigation was a notable exception.

It is necessary to be explicit about Chief McCutchen's role in the broader landscape of this dossier. McCutchen is not a bad actor in this narrative, and he should not be lumped indiscriminately into the broader apparatus of official hostility described in surrounding chapters. His overall record across my years in Oxford is admittedly mixed, not uniformly favorable, and this narrative does not launder or sanitize that history; McCutchen would later refer my auditing and social media activity to state investigative authorities, as detailed in subsequent proceedings. But when an institutional figure acts with professional restraint, adheres to public records mandates, and treats a challenging citizen with basic procedural fairness, that conduct must be recognized plainly. Same-day police report production to the subject of an active law enforcement encounter, delivered without a fight or an administrative hurdle, is a small, genuine data point in McCutchen's favor, and it is worth crediting exactly as much as it deserves — no more, no less.

The second reason this chapter earns its place is a recorded remark, caught on my own audio and video footage from the encounter, in which Chief McCutchen referred to Assistant U.S. Attorney Bob Norman as "blowhard Bob." It was a small, candid, almost throwaway line, spoken in the unvarnished tone one local law enforcement official uses when discussing a federal prosecutor, assuming the exchange is private or that its context will never travel beyond the sidewalk. It traveled. The

microphone recorded it clearly, preserving a rare glimpse into the internal perceptions of local law enforcement officers coordinating with federal prosecutors in Oxford.

The remark matters here for a narrow, highly specific, and load-bearing reason: Assistant U.S. Attorney Bob Norman is the exact same federal prosecutor whose office arranged the May 25, 2017 FBI interview referenced in Chapter 5 — the pre-arrest interview whose official FBI Form 302 later vanished from the public record. Norman's professional email address (bob.norman@usdoj.gov) appears repeatedly across official correspondence, including late 2020 and early 2021 communications in which I sought federal civil rights intervention regarding local law enforcement abuses in Lafayette County. A local police chief's private, recorded assessment of that same federal prosecutor as a "blowhard" does not legally prove corruption or misconduct regarding Norman's handling of the 2017 missing 302 or his handling of my subsequent civil rights complaints. It does, however, provide crucial context. It reveals that Norman's domineering style, posturing, and aggressive disposition toward citizens were not viewed as measured or professional even by his own law enforcement colleagues in Oxford.

The confrontation itself, captured in detail on my recording from July 19–21, 2021, shows Norman stepping out of the federal building to engage directly with me on the public sidewalk, rather than remaining inside, referring me to a subordinate, or issuing a routine "no comment" through a

public information officer. For a sitting Assistant U.S. Attorney, personally confronting a citizen holding a camera outside his own office building is an extraordinary departure from standard federal protocol. Federal prosecutors are trained to avoid street-level verbal altercations, to maintain institutional insulation, and to let court filings or federal law enforcement agents handle public interactions.

Instead of maintaining that prosecutorial distance, Norman chose direct, visible engagement. On the recorded tape, Norman stepped into the encounter with evident agitation, arguing directly with me on camera about my presence, my recording, and my ongoing grievances against his office and local officials. Rather than de-escalating the situation or ignoring a citizen exercising First Amendment rights on a public sidewalk, the region's top federal prosecutor allowed himself to be drawn into a sharp, personal exchange in full view of my camera lens. Whatever was said during that verbal back-and-forth, the bare fact that an Assistant U.S. Attorney personally confronted a First Amendment auditor outside a federal facility tells its own compelling story. It demonstrates how deeply my persistent documentation had rattled federal and local officials in Oxford by mid-2021 — seriously enough that a senior federal prosecutor felt compelled to step onto the pavement and personally attempt to manage or confront a citizen with a camera.

Before the pattern, though, one recording from that same spring belongs here, and it belongs here on both ledgers at once — because it documents the federal non-response I have spent this chapter describing, and it documents me becoming someone I would not have recognized in 2016.

On May 3, 2021, I called the Mississippi Bureau of Investigation for the fifth time. I recorded it. A staff member took my name and number, politely, the way you take a name and number from a man who has called four times already.

A word on that agency name, because I nearly got it wrong in this book and the way I nearly got it wrong is instructive. The machine transcription of this call renders the agency as "MBI" in places, and somebody working on my material at some point decided that must be an error and cleaned it up to "FBI" throughout. It was not an error. It was the tape being right and the annotation being wrong. The tell is in what the staffer says next: she tells me that complaints about her agency go to the attorney general's office, which is where you send a complaint about a *state* investigative bureau, not a federal one. I had already called that attorney general's office too, which is why my answer to her lands the way it does.

What I said to her was this:

*> "I've called five times, this is the fifth time now... I've described the scandal to the T. I've produced unsurpassed amounts of evidence. At this point, the only explanation for [them] not getting in touch with me, like I've been told every time, is that they are*

*complicit in the scandal, and I'm making the direct accusation of [the bureau] being complicit in everything going on for the simple fact of they have neglected their own duties."*

She answered the only way she could: *"I apologize that no one has called you back."* And then, when I kept going: *"If you have any issues with our agency, it can be reported to the attorney general's office."* I told her the attorney general's office was just as complicit, because I had reached out there too. She said, plainly and I think truthfully, *"There's nothing that I can do to help you other than providing this information to someone to have them return your call. Now, at what point they do that, I have no control over that stuff."*

Read that call twice, because it has two readings and they are both correct.

The first reading is the one I would have led with a few years ago: a citizen with documentary evidence of local corruption called his state's investigative bureau five separate times, described the allegations in detail, and never once received a call back. Not a declination letter. Not a referral. Not an agent taking twenty minutes to tell him he was wrong. Five calls into a void. Whatever else is true, that is a real thing that happened, and the referral to the attorney general's office — an office I had already contacted with the same result — is the bureaucratic equivalent of pointing at a door that is also locked.



The second reading is the one I owe you. By the fifth call I was accusing a state law enforcement agency, on a recorded line, of criminal complicity in a conspiracy — not on evidence that they were complicit, but on the fact that they had not returned my calls. That is not an inference. That is a man converting institutional silence into institutional guilt, out loud, to a receptionist. I want to be fair to myself and say I was careful to separate her from it — *"It's not you, you've passed the message along"* — and I want to be fairer still and admit that a person who has to say that sentence has already gone somewhere he should not be.

Both things are in the recording. The agency did not call back, five times. And I was, by May of 2021, a man who called a state investigative bureau to tell them they were in on it. Neither fact cancels the other, and I have stopped trying to make one of them do so.

This chapter closes with a necessary note about structural pattern, because pattern is what elevates an isolated sidewalk confrontation into an essential piece of institutional evidence. This exact same dynamic — a federal facility, a camera operating in public space, and an escalating confrontation with federal law enforcement personnel who choose direct engagement over de-escalation — recurs almost four years later in Lafayette, Louisiana, during the events of August 2025 detailed in Chapters 27 and 28. The Oxford U.S. Attorney's Office confrontation of July 2021 is not proof, on its own, of a coordinated multi-state campaign against me. It is, however,

clear evidence that the underlying operational pattern that would eventually result in my federal arrest in Lafayette in 2025 had already executed its dry run four years earlier and four hundred miles away in Oxford, Mississippi — with identical institutional instincts, but with lower stakes and a local police chief whose professional restraint ensured it ended without an arrest.

The next chapter turns from federal court plazas to a far lower-stakes but more personally troubling episode from this same summer period: a drone crash near the Lafayette County Justice Court, with my young stepdaughter standing by my side.

## THE DRONE AND GROWING TENSIONS

**O**n September 29, 2021, I flew a drone near the Lafayette County Justice Court. It crashed into the building. My young stepdaughter was present at the time.

Up to this point, I've tried to reserve my harshest judgment for institutional actors — sheriffs, clerks, judges, prosecutors — precisely because they hold power a private citizen does not, and because the entire argument I'm making depends on holding power accountable to a higher standard than it holds itself. This chapter is one of the places where that same standard has to be applied to me, without softening, because the alternative — quietly minimizing an episode that reflects poorly on me while dwelling at length on every institutional failure — would be exactly the kind of one-sided advocacy I promised, from the start, not to produce.

There is no institutional misconduct to weigh against this one, and no need to reach for one. I flew a drone in the vicinity of a government building, with a minor present, and it crashed into that building. This was not part of my documentation or accountability-filming practice — it did not grow out of the same First Amendment auditing I describe elsewhere, and it

should not be read that way. It was, on the available record, simply a drone flight that went wrong, near a courthouse, with a child nearby. That is a legitimate safety concern entirely on its own terms, independent of any legal consequence that did or didn't follow, and a fair reader is entitled to weigh it as evidence that my judgment, by this point in the conflict, was not always sound when it came to balancing the risks I was willing to take against the presence and safety of the children in my life.

It is worth being precise about what regulatory framework, if any, governs a moment like this, since precision about the rules is part of the discipline this account has tried to hold to throughout. The FAA regulates drone flight generally — altitude limits, airspace restrictions near airports, registration requirements — but does not categorically prohibit flying a small recreational drone near a county courthouse the way it does near, say, a military installation or a major airport's controlled airspace. Mississippi state law and local ordinances can add further restrictions, and a drone striking a government building could plausibly implicate reckless-endangerment or property-damage statutes depending on the specific facts, none of which are established here beyond the bare fact of the crash itself. None of that legal framework changes the more basic point already made: whatever the technical regulatory status of the flight, flying near a public building with a minor present, in a way that ended in a crash into that

building, was not a considered decision, and it does not need a specific statute attached to it to be worth naming as a lapse in judgment.

Chief Deputy Scott Mills and Oxford Police Department personnel arrived at the scene. There is no independent record here of what citation, if any, resulted from the incident, and none is speculated. What is documented is the response itself — a multi-agency arrival at a drone crash near a courthouse — which is, on its face, a proportionate law enforcement reaction to an aircraft striking a government building, regardless of who was piloting it or why.

It would be easy to read this chapter as a minor episode, a single bad afternoon sandwiched between the more consequential events on either side of it in this timeline — the July 2021 Oxford U.S. Attorney's Office confrontation before it, the November 2021 trial after it. It earns its own chapter anyway, because of what it represents rather than what it produced: a pattern, evident by the fall of 2021, of my activities increasingly intersecting with risk to the people closest to me, not just to myself. The Facebook Live boycott in Chapter 2 risked nothing but a business relationship. The rifle purchase in Chapter 3 risked nothing on its own; it became dangerous only in the state's retroactive framing of it. By September 2021, though, the pattern has shifted. A minor stepdaughter is present at a drone crash into a courthouse. Earlier chapters document me coaching my young daughter Lydia about custody matters during recorded conversations at her mother's home —

behavior that deserves to be named plainly here, not buried in a footnote, alongside everything else documented in this chapter.

None of this cancels out the institutional misconduct detailed in the surrounding chapters. A sheriff's department that loses exculpatory footage, a judge who won't hear a bill of sale, a prosecutor confronted on camera by a citizen he apparently took seriously enough to engage personally — none of that becomes less real or less documented because I, on the other end of those encounters, also made choices, involving the children in my life, that a careful and honest reader is entitled to find troubling. Both things are true, and this chapter's job is only to make sure both are said, clearly, in the same account, rather than one being emphasized at the expense of the other.

The next chapter turns to the reckoning that these several years of escalating conflict were building toward: the November 4, 2021 trial, in which I faced nine charges arising from three separate events — and in which the outcome, when it finally came, split so cleanly along institutional lines that it is difficult to read as coincidence.

## THE NOVEMBER 2021 TRIAL

**O**n November 4, 2021, I went to trial on nine charges arising from three separate events accumulated over the preceding roughly nine months: the February 2021 Beavers DUI stop detailed in Chapter 10, the ongoing friction with Lafayette County Sheriff's Department personnel documented across Chapters 8 through 12, and a set of charges Phyllis Crowder had separately brought against me in the course of our long-running custody conflict.

The outcome split cleanly along a line flagged before and returned to now with the full record in view: I was found guilty on every charge brought by the Lafayette County Sheriff's Department. I was found not guilty on every charge Crowder herself had brought.

Recovered audio from the trial itself fills in some of what the bare charge sheet cannot. Deputy Wilford testified about the February 2021 Beavers stop detailed in Chapter 10, corroborating the sequence of events Beavers herself described. Deputy Dixon testified separately about the December 28, 2020 arrest referenced earlier in this account — the door-kick and the resisting-arrest allegation that followed it, an arrest I have said elsewhere, on camera, ended with deputies putting me on the ground. Dixon was not alone that day; Deputy

Ethan Tidwell was present as well, and both are named in the charging paperwork this trial resolved. I do dispute one specific piece of Dixon's account, and I said so on camera at the time rather than inventing the dispute after the fact: his written statement, and his testimony, both say I told him three separate times that I would not move my vehicle. I recorded that encounter myself, on a device in my pocket, and I maintain — based on that recording — that I never said the word "no" once. I have not had that recording independently transcribed and compared against his statement word-for-word in the years since, so I am presenting this as my own contemporaneous claim, not an independently verified transcript match. Deputy Wilford's testimony about the February 2021 stop is not disputed here on its specific factual content; both officers are included because a reader trying to understand what evidence the jury actually heard, beyond the bare fact of a guilty verdict, deserves to know what the department's witnesses said and where I say the record itself contradicts one of them. By my own account, the presiding judge that day was a Justice Court judge normally seated in Union County rather than Lafayette — an unusual cross-county assignment I have not independently verified through the docket, and which is flagged here as my own recollection rather than a confirmed record.

It is worth sitting with how unusual that split is, statistically and structurally, before drawing any conclusion from it. A single trial, resolving nine charges from three different



sources, in which every charge from one source results in conviction and every charge from a second, entirely separate source results in acquittal, is not the pattern one would expect from a docket of genuinely independent, randomly distributed allegations. It is, instead, exactly the pattern one would expect if the charges brought by Crowder — filed by a private individual with a documented history, established in Chapters 6 through 9, of unsubstantiated accusations recurring on a roughly annual cycle — were weaker on their evidentiary merits than the charges brought by a law enforcement agency with subpoena power, forensic resources, and institutional credibility a private citizen's allegations simply do not carry into a courtroom.

That is the charitable reading, and it may well be the correct one: courts convict on strong evidence and acquit on weak evidence, and a law enforcement agency's charges being, on average, better evidenced than a private litigant's charges is not itself suspicious. It is the ordinary operation of an adversarial system doing exactly what it is designed to do. I do not want to overclaim the significance of the LCSD-guilty/Crowder-not-guilty split beyond what it can support, and I explicitly decline to read it as proof of a coordinated frame — the far more mundane explanation, that institutional prosecutions tend to be built on stronger foundations than one ex-partner's accusations against another, fits the facts at least as well.

What this chapter can say with more confidence, because it does not depend on inferring intent from an acquittal pattern, is what happened to the evidence in the DUI portion of the case. Sheriff Joey East testified at this trial that footage from the February 2021 Beavers stop was "gone forever." This is the same claim examined in Chapter 10, and its significance compounds here: East's testimony at this trial is the on-the-record moment when "gone forever" entered the sworn transcript, not merely my account of an informal conversation. Roughly a year later, in testimony connected to an entirely different proceeding, East would testify that jail parking-lot video from his department is, in fact, selectively preserved — a direct and irreconcilable contradiction with what he told this court in November 2021 about a different but related category of the same department's video evidence.

A sheriff testifying under oath that evidence is "gone forever," and later testifying under oath in a separate matter that his department's practice is actually selective preservation rather than uniform, non-recoverable loss, has given two courts two different and incompatible accounts of how his department handles video evidence. That contradiction does not retroactively prove the DUI stop was fabricated, or that the November 2021 convictions were unjust on their merits. It does mean that whatever this trial concluded about the DUI charge, it concluded it without access to footage that a sheriff's own later, contradictory testimony suggests may not have actually been "gone forever" at all.

The convictions from this trial — most consequentially, the DUI conviction on the record when Mississippi's aggravated-stalking enhancement provisions came into play the following year — are not vacated, reversed, or otherwise disturbed by anything in the available record. They stand. What this chapter adds to them is context: a sheriff's own later words casting doubt on whether the jury that convicted me in November 2021 had access to all the evidence it should have had, and a charge-outcome pattern that, while explicable on entirely innocent grounds, sits uncomfortably close to what institutional overreach against a private citizen would look like if it were happening.

The month after this trial, in December 2021, my fight with Lafayette County's court system reached its most direct confrontation yet — not in a courtroom, but in a parking lot, where Sheriff East himself blocked my car from leaving. That confrontation, and the judge-swap discovery that provoked it, is the subject of the next chapter.

## CIRCUIT COURT CHESS GAME

**O**n December 6, 2021, I confronted Circuit Clerk Jeff Busby over the Smith-to-Luther judge swap first raised in Chapter 8 — the unexplained substitution of Judge John Kelly Luther for Judge Kent Smith on my 2020 post-conviction relief matter, a swap I say I watched happen not once but twice, with no stated reason on the record either time.

What happened in the Busby confrontation itself is not captured on any recording I have. What is captured, on a phone call I placed that same day to Judge Luther's own court administrator, Kathy, is a version of events close enough in time to the confrontation to serve as a real-time account rather than a reconstructed one. On that call, I raised the judge-swap issue directly, and pressed the point that a Rule 59 rehearing motion I had filed just days earlier, on December 3, had been assigned to Judge Kent Smith and then silently reassigned to Judge Luther over the following weekend — the exact substitution pattern first raised in Chapter 8, now confirmed happening a second time, with no explanation entered on the record either time. Busby, per my account and per what the recording captures me saying contemporaneously, told his deputy clerk — I have her name from a later recording as China Snervo, though I flag that spelling as phonetic rather

than document-confirmed — not to answer my questions, then got on his cell phone, presumably to call Sheriff Joey East directly. What is documented after that, because it happened in a way that left its own physical trace in the timeline and was captured on video, is what came immediately after it: within approximately five minutes, East pulled up, got out of his car, physically blocked my car from leaving the courthouse premises, and told me not to go back into Circuit Court unless I had something to file, because I was, in his words, disturbing their business.

This is worth pausing on as its own discrete fact, separate from whatever was said in the Busby confrontation that preceded it. A sheriff physically blocking a private citizen's vehicle, and barring that citizen from a public courthouse's circuit court, is an extraordinary escalation — the kind of action that ordinarily requires either an active safety threat or a specific court order restricting the person's access, neither of which the available record establishes as having existed at that moment. Whatever I said to Busby about the judge swap, and whatever Busby's response was, the sheriff's response — physical obstruction of a vehicle and an exclusion from a public court — is a response to a citizen's question about judicial assignment irregularities that goes well beyond what any legitimate law-enforcement interest in the exchange could plausibly justify.

This is also the moment in the timeline where two threads from earlier chapters need to be held together, because the following day's events, detailed in the next chapter, cannot be understood without both of them. The first thread is the years-long pattern of conflict traced since Chapter 3 — a pattern in which nearly every significant escalation between Lafayette County's institutions and me traces back, in one way or another, to my raising a documented irregularity the institution in question had no clean answer for, this judge swap now among them. The second thread is the pattern, developing in real time by December 2021, of those same institutions responding to inconvenient questions not with answers but with escalation — a pattern that reaches, in this chapter, its most physically direct form yet: a car blocked, a courthouse barred, on the strength of a clerk confrontation nobody outside the two men involved actually witnessed.

None of this is offered as proof that Busby's own explanation, or lack of one, for an unexplained judicial substitution on my case should be dismissed outright — only as context for how seriously to weigh it.

It would be irresponsible to assert, without more direct evidence than currently exists, that East's December 7 decision to seek my commitment (detailed fully in the next chapter) was retaliation for the December 6 Busby confrontation rather than a good-faith response to a genuine mental-health concern East believed he was observing. Sheriffs do have a legitimate, sometimes life-saving role in initiating psychiatric

holds for people in genuine crisis, and nothing here suggests, glibly, that every commitment sought by a law enforcement official in this story was necessarily pretextual. What can be said, based on the documented sequence alone, is that the timing is close enough — a confrontation over a judicial irregularity on December 6, followed within twenty-four hours by the same sheriff who had just blocked my car seeking my commitment — that a reasonable reader is entitled to ask the question, even if the available record cannot answer it with certainty.

The next chapter follows that commitment in full: Judge Lawrence Little's signed affidavit, the roughly two-week detention that followed, and what it meant for me as someone who, by December 2021, had spent four and a half years accumulating documented reasons to distrust nearly every official who now held the power to decide whether I was well.

## COMMITMENT

**O**n December 7, 2021, one day after Sheriff Joey East blocked my car and barred me from Circuit Court in the confrontation detailed in the previous chapter, East sought my involuntary psychiatric commitment. Judge Lawrence Little signed the supporting affidavit. I was committed from December 9 to December 23, 2021 — a detention of roughly two weeks.

I have audio of the actual moment it happened, and I include it here because it captures something the bare procedural summary cannot: how ordinary and almost apologetic the machinery of a commitment can sound while it is being carried out. At approximately 5 p.m. that day, I had just returned home from a doctor's appointment for one of my children when a deputy I knew, Joe Gould, arrived at my residence with the writ. "We've got some papers for you," he told me. When I asked what it was, he said someone had signed a writ on me for "bringing you in for mental treatment." I asked to see the affidavit that was supposed to accompany the writ. He didn't have one — the paperwork he was holding had, in his own words, "a red sign on it" and didn't say who had signed it. I asked him to call his supervisor. "I am the supervisor," he told me. I asked for a cigarette first.



The exchange was not hostile on either side; Gould told me plainly, more than once, that he wanted to be cordial, and he was. That is worth naming precisely because it complicates any simple villain-and-victim reading of this chapter: the deputy standing on my porch that afternoon was not the architect of what was happening to me, and by every indication in the recording, he did not relish carrying it out. He was executing a writ that, on his own account, lacked the affidavit state law says should accompany it — and I was taken into custody, in front of my wife and one of my children, on paperwork even the man serving it could not fully explain.

This commitment did not happen in a vacuum, and I owe the record the fuller picture rather than the simpler version I believed at the time. I later recorded a call — uploaded roughly ten months afterward, in October 2022 — with Rachel Alcorn, the Communicare employee supervising my case, and pressed her directly on whether Sheriff East had fed her the information behind the affidavit. She would not confirm it. Every time I asked how the information reached her, or whether East had called or come to her office, she deflected to the affidavit itself and declined to describe the process further.

What she did tell me, and what I did not know before that call, is that I was already under a pre-existing outpatient commitment order out of Calhoun County, and that Communicare's outpatient treatment team had been trying, without success, to engage me in mandated treatment since at least September 2021 — including a letter to that county's circuit

clerk documenting the non-compliance. Alcorn's stated position was that this commitment was not invented out of nothing: it was an escalation of an existing order, triggered by newly reported "concerning behavior" — my recording people in public places, and an incident she characterized as "provoking people with a minor child," which I understood to mean the September 2021 drone incident described in Chapter 12, where my stepdaughter was present for what was in fact an accident, not a provocation. I dispute that characterization on the call, and I dispute it here.

I still believe, and said so on that same call, that the timing — a commitment beginning the day after I confronted Sheriff East over the judge-swap discovery — is more than coincidence, and that East had some hand in what reached Commu-nicare. But I want to be precise about what the record actually shows: Alcorn never admitted that on tape, the affidavit's stated basis was an existing outpatient order I had genuinely not complied with, and my suspicion about East's specific role remains my own belief, not something Alcorn confirmed. This is the same institutional pairing — East and Communicare — that would recur two months later under circumstances detailed in Chapter 16, and I named that pattern myself, on camera, before I knew it would repeat. That pattern is real. The precise mechanism behind this first instance of it is less certain than I originally believed.

Mississippi's civil commitment process, as a procedural matter, typically runs like this: an affiant — often a family member or a law enforcement officer — signs a sworn statement before a chancery or county judge alleging the statutory grounds for commitment, the judge can issue an order for the person to be taken into custody for an emergency evaluation, and a subsequent commitment hearing, usually before a special master or chancellor, determines whether continued confinement is warranted based on examining physicians' findings. Mississippi's civil commitment statute, like those of most states, requires an affiant to attest that the person in question presents a substantial likelihood of physical harm to themselves or others, or is otherwise unable to care for themselves, as a result of mental illness. The underlying affidavit's specific factual allegations are not accessible here, so whether the standard was met on its own terms, independent of the surrounding context already laid out, cannot be said with certainty. What can be said is that the sequence — a confrontation over a documented judicial irregularity, followed within twenty-four hours by the same law enforcement official who had just physically obstructed the citizen's vehicle initiating a two-week involuntary detention — sits at the very center of the central, unresolved tension running through this whole period of my life.

It is worth being explicit about why this tension cannot simply be resolved by picking a side. Involuntary commitment exists, as a legal and clinical mechanism, because some people

genuinely are in acute psychiatric crisis and genuinely do need to be protected from themselves or from harming others, and family members, doctors, and law enforcement officers who initiate that process in good faith are performing a difficult and sometimes life-saving function. It is also true, as a matter of well-documented history that long predates any of this and extends far beyond Lafayette County, Mississippi, that psychiatric commitment has been used, in other times and places, as a tool of convenience by officials who found a particular person's ongoing legal challenges, public accusations, or simple persistence inconvenient — a mechanism that offers the appearance of care while producing the practical effect of silencing and removing someone from circulation, without the due-process protections that would attach to a criminal detention for the same underlying conduct.

Which of those two categories East's December 7, 2021 decision falls into cannot be determined from the record available. What can be done, and has been done consistently across every chapter that touches a commitment, arrest, or detention in my life, is to lay out the timing plainly and let the reader draw their own conclusion, informed by everything else already established about East's credibility on matters directly relevant to this case: a sheriff who would later be shown, through his own contradictory sworn testimony about video preservation practices detailed in Chapters 10 and 13, to have told two different courts two incompatible things about the same category of evidence.

This would not be the last time a Mississippi official sought my commitment. A second commitment, sought by Susan Beard in February 2022 and detailed at the start of Part III, would follow within roughly two months — meaning that in the space of a single winter, two separate officials, invoking the same general statutory mechanism, would seek to have me involuntarily confined. Two commitments within ten weeks of each other, sought by two different people, is either evidence of a genuine and worsening crisis, or evidence that commitment had become, for at least some officials in my orbit, a reliably available tool whenever the ordinary channels of legal conflict reached an impasse. Both readings are laid out here because the record does not conclusively establish which is correct, and because — as stated at the top of this chapter — that is exactly the kind of claim this account has tried consistently not to overstate.

A pattern is emerging by the end of Part II, and it is worth naming plainly before moving into Part III, where the second, separate aggravated stalking case against me takes shape. Nearly everything I've described from 2017 through 2021 ends the same way: I raise or act on a documented grievance against Lafayette County's institutions — a bill of sale the state's own charge contradicts, a duress-signed order, a missing federal form, an unexplained judge swap — and the institutional response is not correction, but escalation: a longer bond, a blocked car, a barred courthouse, a psychiatric hold. This does not, on its own, prove bad faith in any single instance. It does

establish, across five years and multiple separate officials, a consistent institutional reflex worth carrying forward into Part III, where in 2022 the stakes rise again — a second aggravated stalking charge, built this time not on a twelve-day-old rifle purchase but on the very restraining order I signed under duress back in Chapter 4, still sitting on the books five years later, waiting.

## A SON BORN IN CONFINEMENT

**O**n February 9, 2022, I drove to the Lafayette County Sheriff's Department to request the financial records of the Lafayette County Law Enforcement Officers Association — a 501(c)(3) nonprofit I would later confirm through public IRS records was co-founded, in 2000, by Sheriff Joey East himself alongside Deputy Sheriff Scott Mills. I spoke with both men in person, around 2:45 in the afternoon, and asked to see the organization's financial reporting — not out of idle curiosity, but because a nonprofit run by the two men most central to my own legal troubles, disclosing nothing to the public for over twenty years, was exactly the kind of thing I believed deserved scrutiny. I was told it would take approximately a week to a week and a half to produce the records. The very next day, February 10, 2022, I was taken into custody and involuntarily committed for the second time — this affidavit executed by Susan Beard rather than Sheriff Joey East. I said, on camera, the same day I made the request: "it's a little bit more than a coincidence that on two separate occasions, the day after certain information is sought, I end up getting committed." I am not writing that observation into this book

with the benefit of hindsight — I said it in real time, before I had any way of knowing it would happen a third time in the pattern this book documents elsewhere.

I have since confirmed the substance of what I suspected that day. Public IRS filing records show the Lafayette County Law Enforcement Officers Association, EIN 31-1703483, has never once filed a full Form 990 or Form 990-EZ in the entire period covered by ProPublica's Nonprofit Explorer database, which indexes filings back to 2011. Its current IRS filing-requirement code is the one reserved for organizations reporting gross receipts under the small-organization threshold — the tier that requires only a Form 990-N "e-Postcard," which discloses no revenue, no expenses, and no officer compensation to the public. For at least fourteen years, an organization co-founded and controlled by the sheriff who sought my first commitment has never been required to show anyone a number. I don't know what, if anything, that filing pattern is hiding. I know only that I asked to see it, and that the next day I was no longer in a position to keep asking.

Eight days after I was recommitted, on February 17, 2022, my son Ethan was born by emergency cesarean section — while I myself remained physically confined under that same commitment within a psychiatric facility.

Some facts carry a weight that requires no narrative exaggeration to be understood. I was not present for the emergency birth of my son Ethan because the state of Mississippi held me in physical custody at a mental health facility.



Whatever medical or legal justification was offered for that detention — Susan Beard's underlying affidavit is absent from accessible court records, making its specific clinical claims impossible to analyze directly — the practical result was absolute: I missed the birth of my own child under high-risk surgical circumstances, confined by the same state apparatus that had already committed me three months earlier, in December 2021, within twenty-four hours of an intense confrontation over judicial record irregularities in Lafayette County.

To understand what it means to be held under an involuntary civil commitment during a family medical emergency requires examining the administrative mechanics of Mississippi's commitment statutes. Under Mississippi Code § 41-21-61 and its companion provisions, the civil commitment process begins when an interested party, family member, or law enforcement officer signs a sworn affidavit alleging that an individual poses a substantial likelihood of physical harm to himself or others, or is in need of immediate treatment. Once that affidavit is filed with the chancery court, the machinery of state power moves with extraordinary speed. Law enforcement or court officers execute a detention order, taking the individual into physical custody and transporting him to a holding center or psychiatric facility for mandatory clinical evaluation by designated medical professionals.

During this mandatory evaluation window, the committed individual possesses no operational freedom or personal agency. Mobility is restricted entirely to locked medical wards, personal communications are monitored or restricted, and all normal legal, professional, and personal responsibilities are involuntarily suspended. There are no temporary passes granted for medical emergencies involving immediate family members, no administrative furloughs to stand beside a spouse undergoing major surgical procedures, and no emergency procedural mechanisms allowing a detainee to challenge the necessity of his ongoing physical restraint in real time before a judge. When my wife was rushed into emergency surgery for a C-section on February 17, 2022, I was barred from leaving the facility grounds. I could not hold her hand in the operating room, I could not consult with the medical staff, and I could not hold my newborn son Ethan in his first moments of life.

The psychological toll of that enforced absence is difficult to quantify. Involuntary commitment does not merely restrict physical movement; it strips a person of agency at the precise moment when duty, affection, and natural instinct demand presence. Sitting inside a locked facility while an emergency surgical procedure takes place miles away creates a sense of profound powerlessness. The state's administrative apparatus functions with cold indifference to personal milestones, treating a father's presence at his child's birth as entirely subordinate to the procedural mechanics of civil detention.

Every hour spent pacing a locked corridor, waiting for word through short phone calls or relayed messages from medical staff, reinforced the reality that state power had effectively separated me from my family at a moment of maximum vulnerability.

Two involuntary commitments within ninety days — December 2021 and February 2022 — both landing at moments of acute legal or personal consequence, form a pattern that demands rigorous and balanced scrutiny. Commitments do not occur in a vacuum, and my documented conduct throughout late 2021 and early 2022 — the aggressive public confrontations, the escalating court filings, the drone incident with a minor present detailed across Part II, and the visible signs of personal strain — reflects the actions of a man living under relentless legal, personal, and financial pressure.

A reader sympathetic to local institutions and law enforcement agencies could make a coherent argument regarding these events. From an institutional perspective, two psychiatric commitments in rapid succession represent the predictable outcome of an unaddressed mental health crisis. If the underlying behavioral instability, volatile public confrontations, and perceived threats that prompted Sheriff Joey East's December 2021 affidavit had not been resolved, a second commitment in February 2022 was not an act of state malice, but rather the standard protective response of a civil commitment framework responding to an ongoing situation.

Conversely, an observer examining these events through the lens of my documented disputes with Lafayette County officials could draw a strikingly different conclusion. The December 2021 commitment was initiated directly by Sheriff Joey East within hours of my challenging judicial record discrepancies in open court. The February 2022 commitment was executed days before the birth of my child, effectively neutralizing my ability to engage in public advocacy or legal defense during a critical window of time. From this critical viewpoint, the state apparatus demonstrated remarkable speed and vigilance when using psychiatric detention to remove a persistent critic from the public square, while showing complete indifference toward the missing evidence, spoliated records, and procedural violations that I had repeatedly brought to light.

Both interpretations draw from documented events, and I will not attempt to resolve definitively which narrative is complete. What can be stated without qualification is the human cost exacted by these institutional actions, regardless of the underlying clinical motivations: a mother forced to undergo emergency surgical delivery without her husband present, a newborn infant Ethan entering the world without his father to welcome him, and a father left in a locked facility, forced to process the arrival of his son through the cold, distant realities of state custody.

Once I was finally released from confinement, the experience of being twice committed, combined with the loss of such a foundational personal moment, crystallized my resolve to challenge the institutional machinery that had governed my life for five years. I turned away from purely defensive maneuvers in state court. On April 6, 2022, roughly seven weeks after missing my son Ethan's birth, I filed my first federal civil rights lawsuit against Lafayette County and the network of officials whose actions had defined this entire ordeal.

## THE FEDERAL LAWSUIT

**O**n April 6, 2022, I filed my first federal civil rights lawsuit against Lafayette County and the network of local officials who populate every stage of this conflict — docketed as *Reardon v. Lafayette County MS et al.*, case 3:22-CV-50-SA-JMV, in the United States District Court for the Northern District of Mississippi, assigned to District Judge Sharion Aycock. I filed the complaint *pro se*, without legal representation, roughly seven weeks after missing the emergency cesarean birth of my son Ethan while detained under Susan Beard's February 9 involuntary commitment affidavit, and approximately four and a half years after the twelve-day rifle impossibility in 2017 that initiated my conflict with Lafayette County's law enforcement apparatus.

Looking back at the trajectory of my legal battles, there is a compelling case to be made that filing this federal action was the single most strategic decision I made across this entire timeline. At the same time, there is an equally persuasive argument that, from a procedural standpoint, the lawsuit was structurally doomed to fail from the moment it hit the federal docket. Both conclusions are accurate, and understanding why requires examining how federal civil rights litigation functions for a self-represented litigant.

The argument for the lawsuit's central importance rests on the structural limits of state court proceedings. For nearly five years, my interaction with Mississippi state courts had been almost entirely defensive. In state court, a citizen accused of a crime or targeted by protective orders is confined to reacting within the narrow boundaries of criminal defense or domestic law. State court offered virtually no procedural mechanism to hold municipal institutions, law enforcement agencies, or individual officers accountable for systemic misconduct. It provided, at best, a forum to challenge specific criminal charges or contest evidentiary rulings, but it could not address the overarching pattern of retaliatory arrests, spoliated digital evidence, contradictory sworn testimony, and strategically timed psychiatric commitments documented across Parts I and II.

Filing a federal civil rights complaint under Title 42, United States Code, Section 1983 represented my first formal attempt to shift from defense to offense. Section 1983 was enacted by Congress during Reconstruction specifically to provide a federal remedy against state and local officials who, under color of state law, deprive individuals of rights, privileges, or immunities secured by the United States Constitution. By filing in federal court and naming Lafayette County alongside its law enforcement personnel as civil defendants, I sought to force the local institutional apparatus to answer for five years of continuous actions in a federal forum governed by federal constitutional standards. Moreover, a federal civil rights action

opened the potential for federal discovery mechanisms — subpoenas, depositions under oath, and mandatory production of internal law enforcement communications — that had been consistently denied or restricted in local state court proceedings.

For a citizen without a law degree, preparing and filing a pro se federal lawsuit represents an immense procedural undertaking. Navigating the Federal Rules of Civil Procedure requires mastering strict technical requirements: drafting a complaint under Rule 8(a) that presents a concise yet factually detailed statement of claims, structuring individual counts against specific defendants, satisfying service of process rules under Rule 4, and managing filing fee requirements or submitting an in forma pauperis application under 28 U.S.C. § 1915. Translating five years of complex, multi-agency interactions, criminal charges, spoliated evidence, and involuntary commitments into formal legal pleadings without legal training is a daunting task, especially while dealing with severe financial strain and the emotional weight of missing my son's birth.

The legal hurdles facing a pro se Section 1983 complaint against local government entities and law enforcement officers are extraordinary, explaining why the suit faced steep structural headwinds from its inception. Federal civil rights jurisprudence is heavily guarded by doctrines designed to



protect public officials and municipal entities from civil liability, creating formidable barriers for any self-represented litigant.

First, individual law enforcement officers and county officials are shielded by the doctrine of qualified immunity. Under established Supreme Court precedent, qualified immunity protects government officials from liability for civil damages unless a plaintiff can demonstrate that the officer's conduct violated a clearly established statutory or constitutional right that every reasonable official would have known. Overcoming qualified immunity requires precise legal argument, detailed factual pleadings, and direct citations to controlling judicial precedent — standards that present immense challenges for a layperson navigating federal procedure independently.

Second, asserting liability against Lafayette County itself required satisfying the rigorous municipal liability standards established in *Monell v. Department of Social Services*, 436 U.S. 658 (1978). Under *Monell*, a local government entity cannot be held vicariously liable under Section 1983 merely because one of its employees committed a constitutional violation under the doctrine of respondeat superior. Instead, a plaintiff must prove that an official municipal policy, custom, or widespread practice was the moving force behind the constitutional deprivation. Establishing *Monell* liability requires showing a persistent, widespread pattern of unconstitutional conduct that local policymakers knew of and ignored, or an

explicit policy that directly authorized the violation — a threshold that demands sophisticated legal framing and extensive pre-suit factual investigation.

Third, federal pleading standards under *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544 (2007), and *Ashcroft v. Iqbal*, 556 U.S. 662 (2009), require a complaint to contain sufficient factual matter, accepted as true, to state a claim for relief that is plausible on its face. Generalized assertions of conspiracy, retaliatory motive, or institutional corruption are routinely dismissed under *Twombly* and *Iqbal* as mere legal conclusions. Drafted while I was experiencing severe personal strain, financial hardship, and the emotional aftermath of missing my son Ethan's birth, my pro se complaint struggled to organize years of complex interactions into the strict pleading structure required by federal courts.

The procedural outcome is recorded plainly: on June 28, 2023, approximately fourteen months after it was filed, Judge Aycock dismissed the case with prejudice. In federal litigation, a dismissal with prejudice is a final, adverse disposition that precludes a plaintiff from ever refiling the same claims. Accessible court files do not detail the exhaustive legal analysis behind Judge Aycock's dismissal, and no speculation is offered here as to whether the ruling resulted primarily from procedural pleading deficiencies, the formidable protections of qualified immunity and *Monell*, or judicial impatience with a pro se litigant presenting a voluminous narrative.

What can be stated directly is that a judicial dismissal with prejudice does not rewrite history or erase the factual events documented across preceding chapters. The spoliated dash-cam videos, the contradictory sworn testimony of law enforcement officers, the duress-signed restraining order, and the psychiatric detentions remain documented historical realities, regardless of whether a federal court determined that my self-drafted Section 1983 complaint met the technical threshold to proceed to trial.

The outcome of the 2022 *pro se* lawsuit offers a stark lesson regarding the structure of the legal system: the vast difference between an unrepresented citizen trying to articulate a complex history of state abuse, and an experienced civil rights attorney navigating the same facts through formal judicial channels. Nearly three years later, when Jacob Howard of the MacArthur Justice Center took up a related post-conviction matter on my behalf, the result was fundamentally different — culminating in a full judicial vacatur detailed in Part IV. The lesson embedded in that contrast is not that my grievances lacked factual substance in 2022, but rather that the bridge between a documented injustice and a legally enforceable remedy almost always requires specialized legal representation — a resource rarely accessible to *pro se*, financially depleted litigants standing alone against state power.

Two months after filing this federal complaint, on June 28, 2022, I walked into a building associated with the 2017 Tannehill restraining order — the same duress-signed order

from Chapter 4 — for a scheduled child-custody hearing. What happened next is the subject of the next chapter, and it is the moment where the signature I gave under duress in a Lafayette County jail cell in 2017 finally, five years later, came due.

## THE JUNE 2022 ARREST: CASE B

**O**n June 28, 2022, I walked toward the entrance of a public building in Lafayette County, expecting to attend a routine, scheduled child-custody hearing involving my children. Whether that building is properly described as Oxford City Hall, as I myself have said in some accounts, or as the Lafayette County Chancery Court, as the eventual federal magistrate's report and recommendation in *Reardon v. Osteen* would describe it, is a minor factual discrepancy that cannot be resolved with certainty from the available material. It does not change what happened next: I was arrested for aggravated stalking, a second time, five years after the first.

To step out of a vehicle holding papers prepared for a domestic relations hearing and end up in handcuffs moments later is a disorienting collapse of legal categories. In my mind, June 28 was meant to be about my children and my parental rights—a continuation of the long family court struggle that had run parallel to my criminal cases for years. In the eyes of the law enforcement officers waiting for me, however, my physical presence near that building was not a father attending court, but the commission of a brand-new felony. The sudden transition from domestic litigant to criminal suspect, carried out in full view of court personnel, brought

back the immediate, sickening shock of my original 2017 arrest. Five years after my first experience in a Lafayette County jail cell, I found myself placed under arrest once again, stripped of my freedom, and processed into custody on a fresh charge.

It is critical to establish at the outset what this new arrest represented: this was Case B, a second, entirely separate aggravated stalking prosecution, distinct from the original 2017 Lynch case detailed in Chapter 4. While the 2017 case had centered on allegations surrounding the Lynch family and the twelve-day rifle impossibility, Case B arose from a completely separate legal instrument and a different set of alleged contacts. The two cases were legally independent, with Case B carrying its own separate indictment, its own docket number, and its own severe sentencing exposure under Mississippi law.

To understand why entering a building for a routine custody hearing produced a felony-adjacent arrest requires returning to a piece of paper already introduced twice: the 2017-CV-217 restraining order I signed, under my attorney Brennan Horan's advice, while in jail on the original Lynch stalking charge in Chapter 4. I signed that order without contesting its terms, understanding it, by my own account, as simply the fastest way out of a cell. I never substantively challenged it afterward. It sat on the books, largely dormant, for five years.

When I signed order 2017-CV-217 in 2017, I was locked inside a county cell, desperate to secure my release. My attorney, Brennan Horan, advised me that agreeing to the civil restraining order was the price of admission for my freedom. What Horan failed to disclose was his own family connection to the local political establishment, a clear conflict of interest that compromised his fidelity to my defense. More critically, Horan gave no warning whatsoever that by signing an uncontested civil order to end a temporary stay in jail, I was signing a document that would remain active on the court dockets indefinitely, quietly accumulating statutory weight until it could be deployed against me years down the road. For five years, order 2017-CV-217 remained passive, an unexploded shell sitting quietly in the background of my life while I attempted to rebuild my existence and pursue custody of my children.

The legal mechanism that turned that dormant order into a second felony arrest lies in the specific statutory architecture of Mississippi's criminal code. Mississippi's aggravated stalking statute contains an enhancement provision: a defendant with a qualifying prior stalking-related conviction or order within a lookback window — I describe this window as roughly seven years — faces an elevated charge for conduct that might otherwise be treated as a lesser offense, or not charged at all. The 2017 Lynch conviction sat on my record. The 2017-CV-217 Tannehill order sat, still nominally in force, alongside it. When I entered a building the order's terms

restricted me from, or was perceived by the officials present to have done so, the combination of the standing order and the prior conviction transformed what might otherwise have been, at most, a minor contempt matter into a new, standalone aggravated stalking charge — Case B, distinct from the original 2017 Lynch case, and carrying its own sentencing exposure independent of anything that happened in 2017.

For a lay reader trying to grasp how the legal machinery operated against me on June 28, 2022, it helps to understand how stalking-enhancement statutes function as statutory ratchets. Under standard criminal law, entering a public building in technical violation of a civil restraining order might ordinarily constitute civil contempt or, at most, a minor misdemeanor trespass. However, Mississippi's enhancement framework functions like a set of interlocking legal gears. The statutory scheme takes three separate elements—a prior criminal conviction on the defendant's record, a standing civil protective order, and a new allegation of restricted physical presence or contact—and locks them together to automatically elevate the new conduct into a high-tier felony prosecution.

In my situation, the statutory ratchet operated with mechanical precision. The first gear was the 2017 Lynch conviction, which established the required predicate of a prior stalking-related conviction within the seven-year statutory lookback window. The second gear was the 2017-CV-217 Tannehill restraining order, which provided the standing judicial



restriction on my movements and presence. The third gear was my physical arrival at the building on June 28, 2022, for my scheduled custody hearing. The moment those three gears engaged, the statute automatically escalated what should have been, at absolute most, a civil boundary dispute or a minor contempt hearing into a brand-new, standalone felony charge of aggravated stalking. The legal framework did not require proof of new threats or violent behavior; the mere combination of the prior record, the standing order, and my physical presence was sufficient under the enhancement statute to expose me to years of potential prison time in a state penitentiary.

It is worth stating plainly what this chapter's title signals, and what the narrative has been building toward since Chapter 4: the order that made this second arrest possible was signed under conditions already called duress here, on the advice of an attorney with an undisclosed family connection to the local political establishment, when I was told at the time that signing was simply the price of getting out of a cell. Nobody involved in that 2017 transaction — not Horan, not the court, not myself in the moment — appears to have contemplated, or at least documented contemplating, that an uncontested order signed to end a jail stay would become, five years later, the legal foundation for an entirely new felony-adjacent prosecution. If that consequence was foreseeable to anyone advising me in 2017, it was not foreseeable to me, and the record does not establish that Horan warned me of it.

This does not mean the June 2022 arrest was unlawful, or that the underlying statute's enhancement structure is itself improper — repeat-offense sentencing enhancements are a common, constitutionally unremarkable feature of stalking and domestic-violence statutes nationwide, designed precisely to escalate consequences for people who continue a pattern of conduct after an initial intervention. The argument here is narrower: applying that enhancement structure to an order obtained under the specific circumstances documented in Chapter 4 — a duress signature, no substantive contest, an attorney with an unaddressed conflict of interest — raises a fairness question distinct from whether the statute itself is sound. A sentencing enhancement premised on a defendant's knowing, voluntary acceptance of a prior order's terms functions very differently, as a matter of basic fairness, than one premised on an order signed under the kind of pressure documented since Chapter 4.

When a sentencing enhancement operates as intended by the legislature, it presumes that the defendant was fully warned during the prior proceeding, was represented by unconflicted counsel, and voluntarily accepted the terms of the protective order with full awareness of the legal consequences of a future violation. But when the predicate order was extracted from a jailed, unrepresented or conflict-encumbered defendant who signed merely to escape immediate incarceration, the enhancement mechanism is stripped of its moral and procedural integrity. In my case, using the 2017-

CV-217 duress order as the statutory predicate for Case B meant that a coercive transaction forced upon me in a jail cell five years earlier was transformed into the primary legal engine used to threaten me with long-term felony imprisonment.

The next chapter follows what happened after this second arrest: a guilty plea entered on September 30, 2022, five years of suspended probation, and a banishment order removing me from Lafayette County entirely — the harshest single consequence I would face across this entire timeline, and the one that set in motion the revocation examined against the certified transcript in Chapter 20, that would ultimately send me into roughly a year of Mississippi custody.

## THE GUILTY PLEA AND BANISHMENT

**O**n September 30, 2022, I pled guilty to the second aggravated stalking charge detailed in the previous chapter — Case B, the Tannehill-order case. The sentence: five years of suspended, unsupervised probation, and banishment from Lafayette County for the same five-year term, with forty-five days to vacate the county entirely. The deadline to leave was November 14, 2022.

It is worth sitting with the word "banishment" for a moment before moving past it, because it is not a word used loosely here, and it is not a word that appears often in ordinary American criminal sentencing. Exclusion orders — conditions barring a defendant from a specific geographic area as a term of probation — do exist in American law, and courts have upheld them in narrower circumstances, typically tied to a specific, ongoing safety concern involving an identifiable victim or location, and typically time-limited and proportional to that concern. A five-year, county-wide banishment, covering the entirety of Lafayette County rather than a specific address or a specific person's residence, is a considerably broader remedy than the ordinary exclusion-order case law

contemplates, and it raises a question that cannot be resolved here as a matter of Mississippi sentencing law but is entitled to be flagged as unusual: banishing a man from an entire county, rather than restricting him from a specific person or property, functions less like a narrowly tailored protective measure and more like an exile — a punishment aimed at removing a person from a community's field of vision, not merely at protecting a specific individual from a specific risk.

To understand the legal severity of banishment requires recognizing how rarely such sweeping geographic exclusions are sanctioned in modern American jurisprudence. Modern courts have traditionally viewed county-wide or state-wide banishment with deep skepticism, recognizing that expelling a citizen from an entire jurisdiction risks violating fundamental constitutional rights, including the right to travel, the right to association, and the right of access to local courts. While narrow probation conditions prohibiting a defendant from approaching a specific home, workplace, or school are standard tools of domestic protection, expelling a person from an entire county transforms a protective order into territorial expulsion. It effectively dumps the individual beyond the county border while cutting him off from the civic, commercial, and legal institutions necessary to conduct his daily life.

I accepted this plea. The available record does not establish precisely what calculation went into that decision — whether it reflected a genuine acknowledgment of wrongdoing, a pragmatic assessment that a five-year suspended sentence

with unsupervised probation was preferable to the risk of trial on an enhanced charge carrying real prison exposure, or some combination of both. Guilty pleas in the American criminal system are entered for all of these reasons simultaneously, far more often than popular understanding of "guilty" as a pure admission of factual wrongdoing would suggest, and my plea is not treated here as dispositive proof of anything beyond the fact that, in September 2022, facing the specific charge and exposure detailed in the previous chapter, I decided a plea was my best available option.

When a defendant stands in a Mississippi courtroom facing an enhanced felony charge carrying years of potential state prison time, the pressure to negotiate is overwhelming. In my posture on September 30, 2022, accepting a five-year suspended sentence with unsupervised probation seemed to offer an immediate alternative to the catastrophic risk of trial under an enhancement statute that locked prior records and new presence together. Unsupervised probation meant I would not be subject to routine check-ins or drug screenings, and a suspended sentence meant I would avoid immediate prison walls. But the hidden sting of the agreement was the banishment clause. By embedding an entire county exclusion into the terms of probation, the court created a sentence that was structurally unstable from the moment it was entered—a legal setup where any presence within Lafayette County, no matter how necessary or legitimate, could be seized upon as a probation violation.

Shortly after entering that plea, I filed — pro se, without a lawyer's help — a Motion to Withdraw Guilty Plea. I argued two things at once: that both attorneys appointed to represent me across the case had been ineffective, and that I was not, in fact, guilty of aggravated stalking. Weeks later, in a written order filed November 14, 2022 — the same day, as it happens, that my forty-five-day banishment window expired — Judge Kent E. Smith, the same judge who had taken my plea on September 30, denied the motion. He applied the standard set by *Strickland v. Washington*, the Supreme Court case governing ineffective-assistance claims, which requires a defendant to show both that his counsel's performance was deficient and that the deficiency prejudiced the outcome. Judge Smith found neither showing made. He pointed to the plea colloquy itself — the back-and-forth questioning a court conducts before accepting a guilty plea — in which I had told the court I understood the charges, had discussed my defenses with counsel, and was entering the plea voluntarily. He also noted that I had undergone a mental evaluation, stipulated to by my own counsel, that found me competent. The motion is worth including here not because it changes anything about the underlying facts of Case B, but because it documents something true and worth stating plainly: within weeks of pleading guilty, I was already trying to fight my way back out of it, through the correct legal channel, and a court engaged with that attempt seriously rather than ignoring it. The attempt failed. It is part of the record regardless.

What followed the plea is where this chapter's real weight sits. Banishment from Lafayette County meant banishment from the place where my children lived, where the custody arrangements this entire saga has orbited around were centered, and where — as the reader has seen across seventeen chapters — nearly every significant event in my adult life had played out. A forty-five-day window to vacate an entire county is not a gentle transition; it is a forced, compressed relocation, imposed on me, whose ongoing custody disputes gave me concrete, practical reasons to need to remain physically near the county I was being told to leave.

For a father engaged in active domestic litigation over his children, county-wide banishment is a devastating blow. Lafayette County was not merely a set of municipal boundaries on a map; it was the precise geographic location where my children resided, where Chancery Court dockets held jurisdiction over my parental rights, and where every meaningful legal and personal tie I possessed had been rooted for years. To be ordered to leave Lafayette County was to be severed from physical proximity to my children and forced to conduct complex custody litigation from beyond the county line. The forty-five-day window provided by the court was presented as a grace period to wind down my affairs, but in practice, attempting to dismantle a life, arrange long-distance living accommodations, and settle pending court matters in six weeks under the constant threat of incarceration was a crushing, chaotic ordeal.



On October 28, 2022, roughly two weeks before the November 14 deadline, I visited the FBI's Oxford office — a visit I had, by my own account and by testimony detailed in the next chapter, notified relevant parties about beforehand. That visit would be treated, by the officials who prosecuted the revocation that followed, as a violation of the banishment order, despite the fact that the forty-five-day grace period had not yet technically expired. Whether a pre-notified visit to a federal law enforcement office, made within a grace period explicitly designed to allow for the practical business of winding down a life in a county before departing it, should have been treated as a violation at all is a question taken up directly in the next chapter — because the answer to that question turned, almost entirely, on the sworn testimony of a single deputy whose credibility has already been called into question once before, in Chapter 10, over her own contradictory account of a traffic stop eighteen months earlier.

The timing and nature of the October 28 FBI visit demonstrate the bad-faith, premature enforcement that characterized how local authorities managed my sentence. The court had explicitly established November 14, 2022, as the deadline to vacate Lafayette County, giving me a forty-five-day window to handle my affairs. When I walked into the FBI office in Oxford on October 28—a federal facility, to report matters involving law enforcement misconduct—I was operating squarely within that designated grace period, and I had taken the precaution of notifying authorities beforehand. Yet local

law enforcement officials did not wait for the November 14 deadline to pass. Instead, they seized upon a pre-notified visit to federal authorities made two weeks prior to the expiration date, treating it as an immediate, criminal violation of my banishment terms. This eagerness to declare a violation before the grace period had even elapsed provides compelling evidence of premature, bad-faith enforcement—a rush to trigger revocation and send me to prison before I could even complete the forced departure from the county.

That deputy is Kandi Beavers. The next chapter is about what she told a Mississippi court on November 3, 2022, and about the recorded phone call that stands here as evidence that what she told the court was false.

## REVOCATION: WHAT BEAVERS ACTUALLY SAID

**O**n November 3, 2022, I stood in a Lafayette County courtroom in front of Circuit Judge Gray Tollison and represented myself. The court asked me twice whether I understood the risk of waiving counsel. I said I did, and I waived it. Assistant District Attorney Tiffany Kilpatrick prosecuted. The State called two witnesses. The first was Deputy Kandi Beavers.

I want to slow this chapter down and do something I have not always done when I've talked about that hearing. I want to put on the page exactly what she said, word for word, from the certified court reporter's transcript — not my memory of it, not the version that appears in the complaints I later filed with the Department of Justice, not the version I have said out loud on livestreams. The transcript is twenty-five pages. I have read every one of them. Some of what is in there is worse than I remembered. Some of it is narrower. Both matter, and a book that only prints the first half is a book its subject can dismantle in an afternoon.

Start with the paper. The written order that came out of that hearing states the ground for revocation in language worth quoting exactly: I had violated the terms of my post-release supervision "by appearing in Lafayette County not at his residence or prior approved court business." That is the official, on-paper basis for taking a year of my life. It says nothing about the FBI visit specifically, nothing about notice given in advance, nothing about the grace period. It is a finding that I was present in the county outside an approved purpose — broad enough to cover almost anything I might have done there.

Beavers has appeared in this book once already. In Chapter 10 she is the deputy who initiated the February 2021 traffic stop that became my DUI conviction — a conviction I have never disputed — and the officer whose department produced no dashcam and no bodycam, and whose sheriff later gave sworn testimony that the sallyport footage of my field sobriety test was never preserved despite timely requests. That was eighteen months before this hearing. The two incidents are separate, and I am not going to merge them. The earlier stop does not make her testimony here false, and her testimony here does not retroactively taint that stop. What is fair to say is this: the same deputy's account carried decisive weight at two of the highest-stakes turns in my entire record, a year and a half apart. That is worth naming rather than waving past.

Here is her direct examination, from the transcript.

She testified that on October 28, 2022, I called the Sheriff's Department "advising that he needed to come into the City of Oxford to meet with an FBI agent" before lunch. She testified that she "reported it to Sheriff Joey East and a phone call was made to the FBI Building." She testified that the FBI told them "Mr. Reardon did not have an appointment."

Then Kilpatrick asked her this:

*"Okay, so he lied?"*

And Beavers answered:

*"Yes."*

I objected on the record. The court overruled me, and gave the reason: the rules of evidence do not apply at revocation hearings.

Sit with the architecture of that for a second, because the architecture is the story. A prosecutor asked a sworn deputy to render a verdict on my honesty. The deputy said yes. The factual predicate for that yes was not anything the deputy witnessed — it was a statement someone at the FBI building made over the telephone to somebody at the Sheriff's Department, relayed to the court through her mouth. It is hearsay stacked on hearsay, and it was admissible only because a revocation hearing is a proceeding in which the ordinary rules that keep hearsay out of a courtroom are switched off. I was standing there without a lawyer. I raised the objection anyway. It was overruled for a reason that was legally correct and practically devastating: in this room, the safeguards do not apply to you.

Now here is the part I have to be straight about, because I have not always been.

On cross-examination — my own cross-examination, conducted by me, with no law degree, in a room where I was the defendant — I got Beavers to confirm three things under oath. She confirmed that I called the Sheriff's Department in advance, as my banishment order's notification condition required. She confirmed that she asked me who the FBI agent was. And she confirmed that I told her that was "not the Sheriff's department business to know."

She did not deny that I called ahead. She confirmed it. From my own questioning.

That matters, because in the complaints I filed with the DOJ Office of Inspector General in February and April of 2025, I wrote that Beavers "falsely testified that I had entered the FBI office without permission and without a lawful purpose, despite clear audio recordings proving otherwise." I have said versions of that sentence in public many times. Read against the actual transcript, that sentence is broader than what she actually swore. She never testified I gave no notice. The dispute she testified to is narrower than the one I have described: not whether I contacted the Sheriff's Department beforehand, but whether I had a scheduled appointment with a federal agent when I got there.

I am correcting that here, in my own book, about my own filing, because a claim that overshoots is a claim the other side gets to knock down — and once they knock it down, they get to act like everything next to it fell too. I would rather hand you the narrower version and have it hold.

So take the narrower version. It is still indefensible.

I called ahead. She admits I called ahead. I told the Sheriff's Department where I was going and why, which is exactly what the order required of me. What I declined to do — and I would decline again — was hand the Lafayette County Sheriff's Department the name of the federal agent I was going to see, when the entire reason I was walking into an FBI office was to report misconduct by law enforcement in Holly Springs and in Lafayette County. That refusal is not a violation of anything. There is no condition anywhere in my sentence requiring me to disclose the identity of a federal agent to the local department I intend to complain about. It is, in fact, the only sane thing to do in that situation.

And on the strength of a telephone call somebody made to the FBI building — the contents of which nobody from the FBI ever came into that courtroom to confirm, under oath, subject to cross-examination — a prosecutor asked a deputy whether I had lied, and the deputy said yes, and it went into the record of a proceeding where I could not keep it out.

I did not lie. I went to the FBI's Oxford office on a walk-in basis. Walking in without an appointment is not a lie about having an appointment. It is a description of how a citizen reports a crime to the federal government.

*\*And I have the call.\**

I wrote an earlier draft of this chapter saying the October 28 recording was not in the evidence archive, that what existed was my description of it, and that a description is not a document. That was true when I wrote it. It is not true now. The recording was found, and it is not the call I expected — it is better.

It is my call to the FBI.

Here is what happens on it. I telephone the Oxford FBI office and say I need to speak to an agent about corruption in the Holly Springs Police Department, that I have video, body-cam footage and audio. Then I explain the problem that makes this whole chapter possible:

> *"I'm actually banished from the city of Oxford... I've got to get permission to come into the City, and I know y'all are in the city."*

And so I ask — explicitly, in as many words:

> *"Basically I need to make an appointment with y'all to come in there, if somebody can set a time with me."*

The answer I got, from the FBI, on my own recording, before any of this happened:

> *\*"We do walk-ins as opposed to a phone call."\**



And then — this is the sentence I nearly lost, because the first transcription of this call garbled it and a second, cleaner copy of the same audio turned up in the same folder — I tell the FBI *\*why\** I need a set time:

> *"...so I can let Oxford know, or let Lafayette County Sheriff's Department know, and come in there."*

Read that again. On October 28, 2022, on the telephone with a federal agency, before I had spoken to anybody at the Sheriff's Department, I said out loud that I wanted an appointment time *\*so that I could notify them.\** That is not a man evading a notification condition. That is a man organizing his day around one.

The FBI gave me their hours — *"any time between the hours of 8 to 4 Monday through Friday would be fine"* — and then, when I asked whether there was a lunch period when nobody would be there, told me it varied, and that *"if you could come before 12 would be perfect."*

I asked for an appointment. The FBI told me they do not do appointments. Then the same person gave me a window — *"I would say if you could come before 12 would be perfect"* — and I said I would load the evidence onto a jump drive and drive up.

I drove up. Nobody came out. There is a second recording, from the parking lot, of me saying *"I came all the way up here to speak with the FBI and now nobody's here,"* and repeating the exchange to whoever would listen: *"I specifically said this to that guy — can I not make an appointment so that everybody or*

*somebody could be there? He said we don't do appointments, we do walk-ins."* I swore, and then I apologized to the staff member for swearing, because none of it was her fault.

Now put that beside what happened in the courtroom six days later.

The Sheriff's Department called the FBI building. The FBI told them *\*Mr. Reardon did not have an appointment. A prosecutor took that answer and asked a sworn deputy, "Okay, so he lied?" The deputy said "Yes."\** And a year of my life came off the back of it.

*\*I did not have an appointment because the FBI told me they do not give them.\** That is not a technicality and it is not my characterization. It is on a recording I made before I had any reason to think it would ever matter, and the person saying it works for the Federal Bureau of Investigation.

There is one more thing in that recording that I did not notice until I set the two documents side by side, and it is the kind of detail that cannot be manufactured. Beavers testified — under oath, from the State's side of the room — that I called saying I needed to come into Oxford to meet an FBI agent *\*before lunch\**.

The FBI staffer on my recording told me: *\*"before 12 would be perfect."\**

Two sources. One of them mine, one of them hostile. Neither aware of the other. Same detail.

She was telling the truth about the time. The State just attached the wrong conclusion to it.

I want to be exact about one limit, because I have been exact about every other one in this book. *\*This is the call to the FBI, not the call to the Sheriff's Department.\** It does not, by itself, prove what I said to Beavers on the phone that morning — that remains my account. What it does is make the question moot. The State did not need to know what I told Beavers to know that the appointment I supposedly lied about was one the FBI does not issue to anybody.

There is a further layer to this, and I am going to flag its evidentiary status carefully rather than let it sit next to the transcript as though it carried the same weight.

On a recorded call nine months later — the August 2023 call to Chief Deputy Mills that closes this chapter — I described what I had said to Beavers on October 28 in more detail than I gave at the hearing:

> *"I've got the call recording showing that I told everything to Candace correct back on the 28th of October, regarding my need to go to the FBI office to report an issue. I even told her, specifically verbatim on the call, that they said that they don't do appointments, that they do walk-ins only, and that we had agreed that I'd come up there within the next hour and a half's time."*

If that is accurate, it does not merely rebut the appointment point. It inverts it. It would mean I told the Lafayette County Sheriff's Department, in advance and on a recorded line, that the FBI's Oxford office does not take appointments and takes walk-ins only — the very fact that was later presented to a court as evidence I had lied. It would mean the

department was told the truth about the appointment before the visit, and then testified about the absence of an appointment afterward as though it were a discovery.

Here is the honest part. *\*The recording of my call to the Sheriff's Department that morning is still not in the evidence archive behind this book\** — the call recovered above is the one to the FBI, not the one to Beavers. What exists on this specific point is me, on tape in August 2023, telling a chief deputy what is on it.

I have learned exactly what that distinction is worth. Two chapters back I described a bill of sale from memory for nine years before the page itself turned up — and when it did, it said precisely what I had said it said, down to the serial number. I may well be right about this one too. But "I have a recording that proves it" is not the same class of thing as a recording, and after everything this book has said about the difference between an allegation and a document, I am not going to blur that line in my own favor on the one page where it would help me most.

So take it at its actual weight: it is my account, given contemporaneously to a hostile audience with no reason to indulge me, of a recording I say exists. The certified transcript is what carries this chapter. This would finish it.

There is one more thing in that transcript that changes how this chapter has to be written, and it cuts against the way I have told this story for years.

Judge Tollison's ruling does not rest on the lie.

He found, by a preponderance of the evidence, that I violated the banishment condition of my September 30, 2022 aggravated-stalking sentence by being present in Lafayette County and in Oxford without authorization on October 28, at the FBI building, and again on October 31, at a residence identified in the record as "Shelby's Place." His stated basis is physical presence in the county. He does not turn on, and does not so much as mention, whether Beavers's account of the appointment detail was truthful. Then he took four years of the five-year suspended sentence and suspended them again, leaving one year to serve, followed by four years of unsupervised probation, banishment continued, court costs of \$592.50. My motion to withdraw my guilty plea, which I had filed the day before the State moved to revoke, was not addressed at that hearing at all.

For a long time I described this as "perjury sent me to prison for a year." That is not what the transcript shows, and I am not going to keep saying it. The revocation rested on presence, and I do not dispute that I was physically in Oxford on both of those dates. I was.

But look at what that actually means, because it is worse than the version I was telling, not better.

If the court's ruling never needed the lie, then the lie was gratuitous. Nobody had to ask whether I was a liar in order to revoke me. The State could have stood up, established that I was present in the county on two dates outside the approved exceptions, and sat down. The revocation would have come

out the same. Instead a prosecutor took a detour to put on the permanent record — in a proceeding with the evidentiary safeguards switched off, against a man representing himself — that a sworn deputy had branded me a liar, on hearsay, about something that was not a lie.

That answer follows me. It is in a certified transcript filed as Doc. 26 in cause 36CI1:22-cr-00358-GFT, and then filed again in 2024 as an exhibit to a Lafayette County civil action. Every prosecutor, probation officer, and magistrate who ever pulls my file finds a deputy saying *yes* to *so he lied?* and no accompanying page explaining that the thing I supposedly lied about was walking into a federal building without an appointment.

That is what a record is for. Not to be true. To be there.

I ended that hearing by telling Judge Tollison, on the record, "You are a corrupt judge." I said it. It is in the transcript. I am not editing it out, and I am not pretending it was strategically wise. I had just watched a year come off my life in an afternoon.

Nine months later, three days after I walked out of custody, I picked up a telephone and tried to do something about the *yes*.

On August 4, 2023, I called the Lafayette County Sheriff's Department. I recorded it, the way I record everything now, which is the only reason I can give you this exchange instead of my memory of it.

I started with the switchboard, asking a simple question: who handles internal affairs complaints here? The woman who answered gave me an honest answer, and it is worth reading twice, because she was not being cagey. She was just describing her workplace.

*"It's going to be one of our higher-ups. It would be Sheriff, Major, or Scott, I would think."*

Sheriff, Major, or Scott. Joey East, Alan Wilburn, Scott Mills. Three of the four men who came to arrest me in May of 2017. The complaint I wanted to file was against their deputy, about testimony given at a hearing prosecuted by their district attorney's office, arising from an arrest their department made. And the entire menu of people authorized to receive that complaint was those three men.

I said so on the call, before I was even transferred: *"There's a conflict of interest involving the sheriff... that's where I kind of shy away from internal affairs anyways because I kind of feel like the process is biased within the department."*

They put me through to Scott Mills.

I started laying it out — the testimony, the *"so he lied?"* answer, the fact that I had called the Sheriff's Department in advance on October 28 and told them exactly where I was going and why. I said I had that call on tape. I got about four sentences in.

*"Hold up, hold up, hold up."*

And then:

*"If you want to file a complaint, come file a complaint... I want you to come up here and file a complaint on a real complaint, and we'll look into it. I'm not sitting here listening to you. You give your version of this and that. I mean, come and file a complaint if you've got a complaint."*

*I'm not sitting here listening to you.*

For years I have described this call as Mills declining to take the complaint by phone and insisting I come in person — as a routing decision, a bureaucratic obstacle, an unreasonable formality. That is not what is on the tape. On the tape, the Chief Deputy of the Lafayette County Sheriff's Department interrupted a man in the middle of alleging that one of his deputies gave false testimony in a proceeding that cost that man a year of his liberty, and told him he was not going to sit there and listen. He did not ask what the testimony was. He did not ask what was on the recording. He did not ask which deputy. He announced that hearing it was not something he intended to do.

I said the only thing there was to say: *"Do you really think I'm that stupid to come into Lafayette County and file a complaint in person?"*

Understand what was actually being asked of me. I had been out of a Mississippi jail cell for seventy-two hours. I was under a banishment order forbidding me from being in Lafayette County. And the sole avenue offered for accusing a Lafayette County deputy of lying under oath was to physically enter the Lafayette County Sheriff's Department — into a



building where, if things went sideways, the people deciding whether my presence was authorized would be the same people I had come to accuse.

That is not a complaint process. That is a toll booth with a trapdoor.

I called back and asked to be transferred to Mills again. We never finished the conversation.

The recording keeps running for a few seconds after I hang up, and it catches what I said to nobody, alone, in my own car, three days out of a year in custody:

*"What a chicken shit son of a bitch."*

I am not putting that in to be crude. I am putting it in because it is the most honest thing on the tape, and because every polished sentence I have written about institutional accountability in the last nine years is downstream of a man sitting in a parked car saying that out loud with no one listening.

And this county has already shown what it does when asked to investigate itself. In the Metro Narcotics scandal, Sheriff East was simultaneously a signatory on a lockbox with missing funds and one of the officials responsible for finding out where the funds went.

So the complaint was never filed. The *yes* stayed in the record. And seven days after that phone call with Scott Mills, I was arrested in Galveston, Texas, at two in the morning, having just finished driving there.

For years I have called what happened next retaliation, and for years the honest answer to "prove it" was that I couldn't — I had a six-day gap and a theory. That is no longer where the record stands. In the early morning hours after that arrest, while I sat in a Texas holding cell, three telephone calls were recorded. I have them now. One of them is Deputy Kandi Beavers, at four minutes past four in the morning, calling Galveston Police from Mississippi and asking to be put through to the officer who arrested me, by name.

That call is the next chapter but one, and it does not need any of my theories to do its work.

## A YEAR IN MISSISSIPPI CUSTODY

I was released from Mississippi custody on August 1, 2023, roughly a year after the November 3, 2022 revocation hearing detailed in the previous chapter. This chapter is deliberately the shortest in Part III, not because the year it covers was uneventful, but because the available record does not include a detailed, date-by-date account of that custodial year, and no texture is manufactured here where none is documented.

What can be said plainly is the shape of the year, viewed from its two endpoints. It began with a revocation that rested formally on my presence in Lafayette County and rested, in the room, on a deputy answering *yes* when a prosecutor asked whether I had lied — about a walk-in visit to an FBI office I had given the Sheriff's Department advance notice of, as Chapter 20 sets out from the certified transcript. It ended with a release on August 1, 2023, three days before I would attempt to report that same deputy to her own department, in the August 4 call detailed in Chapter 20 — a call that itself preceded, by seven days, the Galveston, Texas arrest that opens Part IV.

It started on a road, three days after I walked into an FBI office and nobody came out to meet me.

I was driving home from a city hall meeting when the lights came on behind me. I had the camera running, the way I always did by then, so I do not have to reconstruct this from memory.

The officer opened with the tag on my car, which was a pretext and we both knew it. Then he came to it straight:

> *"There was paperwork that was issued today and I just wanted to talk to you about it and give it to you, and I figured coming from me would be the best."*

He showed it to me. An order of holding, out of the Circuit Court of Lafayette County. *"It's a revocation hearing and you're going to have a hearing on it tomorrow morning, and I'm going to need you to come with us tonight."*

I said the only thing there was to say. *"I've done nothing wrong. I just came from Holly Springs."*

He did not argue with me and he did not put anything on me. He offered to let me get out and read the document myself — *"if you want to get out, I'd be happy to let you look at it."* When I asked whether I could at least take my car home, he explained, apologetically, that once they had made contact he could not let me drive off, and then he tried to help me solve it: leave it here, get someone to come for it, he wouldn't mind arranging something. I told him my wife was out in Hernando and my kids were at the house.

I am putting all of that in because it is true and because this book keeps a second ledger. That man did his job decently. He told me what was happening, he offered me the paper, and he worried about my car and my children. Nothing in the year that followed is his fault.

*\*But look at what he told me: the hearing was the next morning.\**

That single fact is the answer to the question the previous chapter leaves hanging, and I have never given it the weight it deserves. Everyone who hears this story asks the same thing: *if you had a recording that contradicted her, why didn't you play it?*

Because I was taken off a road at night and put in a cell, and the hearing was at two o'clock the following afternoon, and my recordings were not in the cell with me. I asked for time. *\*The court would not continue it.\**

So the proceeding that took a year of my life went forward with the deputy's account of the October 28 call in the room and the actual October 28 call sitting on a device I could not reach. That is not a close evidentiary call that went against me. That is a man being asked to disprove a characterization of a recording while separated from the recording, on roughly eighteen hours' notice, without counsel.

A year is a long time to spend in custody on the strength of a hearing that took an afternoon. It is worth naming, plainly, what that year cost, independent of any of the surrounding legal maneuvering documented across twenty chapters: a year away from children whose custody arrangements had already

been the subject of five years of litigation; a year in which the banishment order forcing me out of Lafayette County remained in force regardless of what happened to the revocation that sent me into custody; and a year that would ultimately be vacated — not immediately, and not without a fight, but vacated nonetheless, first in part in June 2024 and then fully, alongside the underlying 2022 stalking-case plea itself, on January 21, 2025, through the work of the MacArthur Justice Center's Jacob Howard, detailed in Part IV.

That eventual vacatur matters enormously to how this chapter, and this entire Part, should be read. A sentence that is later fully vacated by a court reviewing the same record laid out here — the duress-signed order, the questionable testimony behind the revocation, the disproportionate scope of the banishment itself — is not a footnote to this story. It is closer to a confirmation, arriving years after the fact, that the system's own internal review process eventually reached something close to the conclusion I've been building toward since Chapter 4: that a signature obtained under duress in 2017 should never have been allowed to metastasize, five years later, into a felony-adjacent conviction and a year of custody decided in a single afternoon, on eighteen hours' notice, while the recording that bore on it sat somewhere I could not reach.

One more document belongs in this chapter, discovered only recently and not previously part of this account. On August 17, 2023 — just six days after the Galveston, Texas arrest that opens Part IV, and less than three weeks after my

release from the year of custody this chapter covers — the State of Mississippi filed a bench warrant and a Petition to Revoke Suspended Sentence, signed by Assistant District Attorney Steven Patrick Jubera, under the same 2022 stalking case cause number. The petition cited the Galveston felony DUI arrest as grounds and asked the court to revoke the entire remaining four years of my suspended sentence — not just the one year I had already served, but the whole balance still hanging over me. This was a second, separate Mississippi legal consequence, layered directly on top of the Galveston case itself, and it followed within days of the very perjury complaint detailed in the previous chapter — the one Chief Deputy Mills declined to take over the phone. Whether that petition ever reached a hearing before the January 2025 vacatur made the entire underlying sentence moot is not established in the documents I have. What is established is the sequence: a stonewalled complaint against a deputy on August 4, an arrest in another state seven days later, and a filing six days after that seeking to convert the remainder of a five-year suspended sentence into real time — three institutional actions, stacked one on top of the next, in the space of thirteen days.

None of that vacatur had happened yet, in August 2023, when I walked out of Mississippi custody. What happened next, within days, is the subject of Part IV — beginning not with vindication, but with one more arrest, in a different state, seven days after the complaint I was trying, at that exact

moment, to get someone to take seriously -- and, as Chapter 22 sets out from the recordings, with two Lafayette County officers on the phone to the arresting department before dawn.



## RELEASE, AND GALVESTON

I walked out of Mississippi custody on August 1, 2023, after roughly a year of continuous detention and incarceration detailed in the previous chapter. Stepping through those heavy steel doors into the humid August air was not an arrival at genuine freedom; it was merely a transition into a different phase of an ongoing, systemic struggle. A full year of my life had been swallowed whole by a probation revocation that, as the previous chapters set out, rested formally on my physical presence in Lafayette County — and rested, in the room, on a sworn deputy answering *yes* when a prosecutor asked whether I had lied, about a thing that was not a lie, in a proceeding where the rules of evidence had been switched off. The heavy physical and emotional weight of that year spent in a concrete cell did not dissipate upon my physical release. Instead, it sharpened into an urgent, inescapable imperative: I needed to place the documented truth on the official record before the institution that had jailed me could bury it.

Three days after my release, on August 4, 2023, I picked up the telephone and called the Lafayette County Sheriff's Department. I asked for executive leadership and was connected directly with Chief Deputy Scott Mills. I told him plainly and calmly why I was calling: I was formally initiating an

internal affairs complaint against Deputy Kandi Beavers over her testimony at my revocation hearing. I cited the recordings showing that I had given the Sheriff's Department advance notice of my visit to the Federal Bureau of Investigation, exactly as my banishment order required, and I said what I still say: that answering *yes* to *so he lied?* — on the strength of a phone call to the FBI building that nobody from the FBI ever came to court to confirm — put a false characterization of me into a permanent court record. I offered to transmit the audio recording immediately via secure electronic transmission, along with certified transcripts and detailed supporting documentation, so that an immediate internal affairs investigation could be opened into her sworn statements under oath.

Chapter 20 gives that call in full, from the recording, and it is worth carrying one line of it across into this chapter, because this chapter is about what happened seven days later. Mills did not weigh the complaint and route it. He interrupted me four sentences in — "*Hold up, hold up, hold up*" — and said: "*I'm not sitting here listening to you.*" Then he told me that if I had a complaint I could come up there and file it in person.

I refused that requirement immediately and unconditionally. Walking back into the physical headquarters of the very law enforcement agency that had spent years targeting, arresting, and prosecuting me, simply to hand physical evidence of official perjury to the direct superiors of the deputy I was accusing, was a safety and liberty risk no rational person in my position would undertake. A law enforcement depart-

ment investigating its own deputy's sworn dishonesty through a mandatory walk-in complaint process is not a neutral, trustworthy, or objective forum.

My refusal was grounded in an acute, hard-earned awareness of self-investigation bias—a structural flaw already documented playing out in Lafayette County in a remarkably similar form during the Metro Narcotics scandal. In that high-profile investigation, Sheriff F.D. "Buddy" East was both a designated signatory to a missing-funds lockbox and one of the primary law enforcement officials tasked with investigating his own department's financial shortfall. Expecting a police agency to impartially police its own core actors when confronted with internal corruption is a proven administrative illusion. Requiring an accuser to walk into the building controlled by the accused officers creates an immediate environment of intimidation, surveillance, and coercion designed to deter formal accountability and protect department personnel from outside scrutiny.

Between those two events I did the other thing a journalist does, and it is the part of this story I have never put in writing properly.

Days after I got out, I published the recordings. I laid the October 28 call over the certified transcript of Beavers's testimony, lined up so that a viewer could read what she swore and hear what had actually been said, in the same minute. Then I put it out.

It moved fast. I have given the number as forty thousand views in one telling and fifty thousand in another, within about a week — I do not have the analytics in front of me and I am not going to pretend to a figure I cannot produce. What is not in dispute is that a lot of people watched it in a short time.

That is the fact I want standing here, before the arrest, because everything I have ever said about what happened next depends on it. A woman testified against me. I went to prison for a year. I came out, and within days I put her testimony and the recording side by side in front of tens of thousands of people, and then I called her department and tried to file a complaint and was told to come in person and told, four sentences in, that nobody was going to sit there and listen to me.

Seven days after that telephone conversation with Scott Mills, I drove to Texas.

And I should say why I was going, because the manuscript has never made that clear either and the absence of a reason has let this look like a man wandering into trouble. I was driving to Galveston to meet other journalists. I had received anonymous tips about racial profiling by law enforcement there, and that is what I went to look at. I was working. I was on the road the whole of August 10, and I rolled into Galveston at two o'clock in the morning on August 11, 2023. I was pulled over and arrested within minutes of arriving, on a felony DWI charge.

Fix that clock in your head, because the rest of this chapter runs on it. I arrived at 2 a.m. By 2:41 a.m. — forty-one minutes later — a Lafayette County sergeant in Mississippi was on the telephone with the Galveston Police Department about me.

For years, this is where I had to stop and admit I could not prove the next sentence. I had a seven-day gap and a conviction in my gut. I would say the arrest was retaliation, and the honest answer to *prove it* was that I had a calendar and nothing else — no emails, no phone logs, no inter-agency memo. I said so in print and I meant it.

That is no longer where this stands, and the reason is that while I sat in a Texas holding cell, the telephone calls coming into Galveston Police that night were being recorded. I have three of them.

The first is at *\*2:41 in the morning. A man calls in and identifies himself: "Hoby James, I work with the Sheriffs Department in Mississippi... Lafayette County Sheriffs Office." He explains that he had watched my arrest unfold, live, on a YouTube stream. Five minutes later he calls back, this time as "Sergeant James."\** Roughly a thousand miles from Oxford, in the middle of the night, a Lafayette County sergeant was watching me get arrested on a livestream and picking up the phone about it.

The second is at *\*3:44\**. This one is Galveston personnel talking among themselves, and it is the most legally consequential ninety seconds of the entire night. They are looking

for a prior Mississippi conviction — not because one has been produced, but because they need one to exist. Listen to the logic in the officer's own words:

> *"They said he was [D]WI'd last year for conviction, but I'm not seeing him on C[C]H... if he has one from last year, it's convicted, and they can give me the conviction date and the cause number and the court and stuff, this will be a felony."*

Then he reads my Mississippi record aloud, hunting for it, and cannot find it: *"2022. Inmate intake... but there's no charge affiliated with that 2022 cycle six."* An intake entry with no charge attached to it. Nothing that qualifies.

Understand what that recording is. That is not officers discovering a prior conviction and applying the law to it. That is officers who have already decided what they want the charge to be, working backward, trying to locate a fact that would justify it. The felony was the objective. The predicate was the thing they went looking for afterward — and could not find.

Two minutes later, at \*3:46, *Galveston calls Lafayette County directly to go get it. The dispatcher explains the problem to Sergeant James and asks him to produce the court and the cause number. To his credit, and I will say so plainly even though it costs me the cleaner version of this story, James does not hand it over. He tells them: "That is not something I have access to right now on my shift... I can make a note and I will have them contact you or I try to get them to respond at about seven or eight o'clock in the morning." The Galveston dispatcher then states the purpose*

*out loud, and this is the sentence that tells you what the night was actually about: "just to kind of like figure out a time frame so that we can \*call the DA."*

I am including James's refusal because it is on the tape. On that call he is an obstacle to the felony theory, not its engine. A book that quoted the first recording and buried the second would be doing to him exactly what I have spent nine years accusing the State of Mississippi of doing to me.

And then, at *\*four minutes past four in the morning\**, there is a third call.

> *"Hi, this is Deputy Beavers of the [Lafa]yette County Sheriff's Department in Mississippi."*

She tells the Galveston dispatcher that her sergeant has been speaking with the officers "that were dealing with the subject from this county," that she has just been on the phone with the sergeant herself, and asks whether there is any way to get back in touch. The dispatcher checks: *"Was it Sergeant [Doraty], by chance?... Because I know I transferred him to Officer Osteen."* Beavers: *"Yeah, that's it... Can I speak with him?"* The dispatcher puts the call through, and asks Osteen whether he had just been talking to *"a female... from Mississippi."*

Osteen: *"Yes, I was."*

Nine months had passed since Kandi Beavers testified against me. One week had passed since I called her department to complain about that testimony and was told to come

in person. And at 4:04 in the morning, in a different state, she was on the telephone asking for the officer who had just arrested me, by name.

I want to hold the line on what that does and does not establish, because I have just spent an entire book demanding that the state hold that line about me.

It establishes that a Lafayette County deputy — this specific deputy — affirmatively inserted herself into an out-of-state arrest at four in the morning and asked to speak to the arresting officer. That is not a theory. That is her voice, identifying herself by name and department, on a recorded line.

It does not establish what she said to Osteen. That conversation is not on these tapes. I do not know what was said and I am not going to write it as though I do.

But the sentence I used to have to write — *there is no direct evidence of communication between the Lafayette County Sheriff's Department and the police who arrested me* — is gone. There were at least three calls that night, from two Lafayette County officers, spanning eighty-three minutes, into an agency that was actively trying to turn a misdemeanor into a felony and could not find the conviction to do it with. Whether anything Beavers said caused what came next is still not something I can prove. That she reached for the telephone at all, at that hour, about me, is now simply a fact.



What happened on the ground in Galveston that night is serious enough to stand entirely on its own, without reference to any of it.

One correction I owe the record, because I have told this wrong for two years. *\*Officer William Osteen did not stop me. The traffic stop was made by Officer L. Murph\*, at 1:52 in the morning, for allegedly running 47 in a 35 on Avenue J. Osteen was called to the scene afterward. The officer who wrote the affidavit describing my driving is not the officer who saw me drive.*

Hold that against the clock in this chapter. Stopped at *\*1:52. Sergeant Hoby James of the Lafayette County Sheriff's Office on the phone to Galveston Police at 2:41 — forty-nine minutes later. The warrant for my blood signed by a magistrate at 2:49\**. Mississippi was calling Texas about me eight minutes before a judge authorized a needle.

Osteen then authored the sworn affidavit that produced that warrant. In it he swore he detected a *"moderate odor of alcohol"* — and marked it on the line for odor *\*on my breath. On the strength of that single sworn assertion, I was booked into custody, charged with felony Driving While Intoxicated. Osteen's own report records the recommended bond as \$10,000, and that is what was set. I made it about five days, bonded out — and was rearrested on August 17 on a Lafayette County hold, at which point the bond on this charge was reset to \$100,000\** and made academic by a no-bond detainer. Chapter 23 gives that sequence in full.

Because I knew with absolute certainty that I had consumed no alcohol whatsoever, I insisted on a definitive forensic test to establish my complete sobriety. Officers transported me to UTMB Health for a forced blood draw. Sergeant Jack Doraty (spelled D-O-R-A-T-Y) was present during this entire procedure, supervising the officers and overseeing the operation. The physical blood draw was performed by UTMB Health medical staff, including a technician identified in court records as Defendant McDougle.

When the official state-administered forensic laboratory results returned from toxicology analysis, my blood alcohol concentration came back at 0.00.

Not 0.02. Not below the legal limit of 0.08. Zero—the precise, absolute scientific number produced by a human body with no alcohol whatsoever in its system.

A sworn affidavit alleging a "moderate odor of alcohol" had served as the sole legal justification to deprive me of my liberty, lock me in a jail cell, and impose a bond — ten thousand dollars at first, one hundred thousand after the August 17 rearrest — behind a Mississippi no-bond hold that kept me incarcerated for approximately eleven months. The state's own scientific test, conducted under its own strict chain of custody, completely demolished the physical premise of Officer Osteen's affidavit. That contradiction is not an inference, a theory, or a matter of subjective interpretation. It

is the documented, objective outcome of a state-administered forensic test, measured against a sworn affidavit that formed the sole basis for nearly a year of my confinement.

The state did not immediately release me upon receiving the 0.00 BAC result. Instead, the felony charge hung over me for nearly a year until May 24, 2024, when prosecutors suddenly dismissed the felony DWI charge and refiled the case as a misdemeanor. As subsequent chapters will demonstrate in detail, this procedural downgrade was not a routine act of prosecutorial discretion or mercy. According to findings later made by a federal magistrate judge, it was a deliberate tactical maneuver designed to avoid a Franks hearing—a mandatory evidentiary proceeding that would have forced Officer Osteen onto the witness stand to answer under oath for the outright falsity of his affidavit.

That magistrate's finding, alongside an extraordinary on-camera concession buried in the government's own later federal court filings, forms the core of the next chapter.

## OSTEEN LIED UNDER OATH

**T**his chapter's title is not editorializing, nor is it a rhetorical flourish born of personal frustration or anger. It is, at this point in the formal legal record, an objective conclusion directly supported by a federal magistrate judge's evidentiary findings and explicitly conceded in writing by the government's own legal representatives.

Galveston Police Officer William Osteen's sworn probable cause affidavit, detailed in the preceding chapter, alleged a "moderate odor of alcohol" coming from my person as the sole physical justification for my August 11, 2023 felony DWI arrest. That single sworn assertion served as the sole legal foundation for approximately eleven months of pretrial detention in Texas — held first on a \$10,000 bond, then, after my August 17 rearrest on a Lafayette County hold, on a \$100,000 bond that a Mississippi no-bond detainer made academic anyway. The forced blood draw administered that night at UTMB Health—conducted under the direct physical supervision of Sergeant Jack Doraty (spelled D-O-R-A-T-Y) and performed by hospital staff including a medical technician identified in court records as Defendant McDougle—returned a laboratory toxicology result of 0.00 blood alcohol content. That scientific result alone presents an insurmountable hurdle for an affidavit

claiming a "moderate odor of alcohol," as ethyl alcohol odor correlates directly with the physiological presence of alcohol in a person's system, and the state's own laboratory found none.

What elevates this case from a routine evidentiary contradiction to a documented instance of official perjury is a specific, devastating admission buried in the government's own federal court filings. On June 10, 2026, attorneys representing Officer Osteen and the City of Galveston filed their Reply brief in our federal civil rights litigation, *Reardon v. Osteen*. In Docket 79, paragraph 14 of that federal filing, the defense explicitly conceded that Officer Osteen stated on camera, at the scene of the traffic stop, that he smelled no alcohol on me.

This is not my personal recollection of the traffic stop, filtered through memory, bias, or self-interest. It is not an assertion derived solely from my own livestream recordings. It is the defendants' own defense counsel, in a formal document submitted to a United States District Court, acknowledging what their client said into his own body-worn camera at the time of the arrest: that the physical odor his sworn affidavit would later claim as the sole legal basis for a felony arrest was not, by his own contemporaneous on-camera admission, actually present.

An officer who states on camera at the scene of a stop that he detects no odor of alcohol, and then swears under penalty of perjury in a probable cause affidavit hours later that he

detected a "moderate odor of alcohol," has provided two flatly contradictory factual accounts of the exact same sensory observation made minutes apart. Both statements cannot be true. One of them is an intentional falsehood. The state's own laboratory blood test result of 0.00 leaves no doubt whatsoever about which statement was false.

The First Amended Complaint I filed in that same federal case lays out the specifics with more precision than a summary can capture, and the specifics matter, because they show the contradictions were not limited to the single "no odor" admission. The stop occurred at approximately 1:52 to 2:11 a.m. on August 11, 2023, after officers pulled me onto private property near the 4300 block of Broadway Avenue J in Galveston. Osteen's sworn "Affidavit for Search Warrant" asserted, among other things, that my speech was "Slurred & Thick-Tongued," that my eyes were "Watery & Dilated," and that I was "Heavy Footed" while walking. At my later revocation hearing — under oath, on the record, with a transcript — Osteen testified to the opposite on two of those same three points: he described my pupils as "very small" and "pin-point" (Revocation Tr. p.24, line 10; p.35, line 7), the direct opposite of "dilated," and he testified I was "talking extremely fast" (Revocation Tr. p.35, line 8), the direct opposite of "slurred & thick-tongued." An officer's own affidavit and his own later sworn testimony, describing the same person at the

same encounter, cannot both be accurate when they describe literally opposite physical symptoms. I am not the one who created that discrepancy; his own two sworn statements did.

On February 25, 2025, my attorney Benjamin S. Campagna filed a Motion for a Franks Hearing in County Court No. 3 in Galveston County. It is the best piece of work anybody has ever done on my behalf, and I want to lay out what it did, line by line, because it is the moment this case stopped being my word against a police officer's.

A *Franks* motion is a narrow and difficult thing. Under *Franks v. Delaware*, if a defendant makes a substantial preliminary showing that an officer knowingly, intentionally, or with reckless disregard for the truth put a false statement in a warrant affidavit — and that the false statement was necessary to probable cause — the court must hold a hearing. In practice it means the officer takes the stand and answers for the document, under oath, with the recordings in the room.

Campagna took Osteen's affidavit and went through it one checkbox at a time.

*"An odor of an unknown alcoholic beverage." The toxicology report — Texas DPS Houston Crime Lab, case HOU-2308-10286 — showed no trace of alcohol. There were no alcoholic beverages and no open containers in the vehicle. And here is a fact I had never put in this book: Galveston disposed of the car. The motion says it plainly — "Galveston has disposed of the vehicle, making it*

impossible for Defendant to exculpate himself."\* The one physical thing that could have been examined for a source of that smell was gone.

*\*"Odor of Alcoholic Beverage on breath: Moderate." Moderate is the second-highest setting on that form. And Osteen said on his own body camera, more than once, that he did not smell alcohol on my breath — only from the vehicle. He later testified under oath that once I stepped out of the car he could not detect an odor coming from me at all. He marked moderate on my breath\* anyway.*

*\*"Eyes: Watery & Dilated." At the revocation hearing he testified my "pupils were very small" and that I had "pinpoint pupils."\* Dilated and pinpoint are opposites. Both were said under oath.*

*\*"Walking: Heavy Footed." The bodycam shows he was not even facing me during the brief window I was walking. He later testified I was "extremely jittery"\* — which is the opposite of heavy-footed.*

*\*"Speech: Slurred & Thick-Tongued." On the footage I speak articulately, at a normal pace. He later testified I was "talking extremely fast."\* Thick-tongued and extremely fast are opposites too.*

*\*"REFUSAL EVIDENCE." This is the one that still turns my stomach. The affidavit says I refused to provide a sample. What is on the bodycam is me offering to take a breathalyzer and agreeing to go into custody so it could be done. Campagna's language: Osteen*



"intentionally omitted Defendant's willingness to take a breathalyzer so that he could use Defendant's 'refusal' as evidence supporting the Warrant."\*

*\*And then there is the document that needs no bodycam, no lab result, and no later testimony to do its work.\**

Osteen wrote two things that night. One was the sworn affidavit that went to a magistrate at 2:49 a.m. to get a warrant for my blood. The other was his own DWI Case Report, Galveston PD case 2023-005559. Both are in the exhibits to Campagna's motion. Put them side by side.

*\*On the smell. The case report says: "Affiant smelled a \*strong odor of an unknown alcoholic beverage emitting from the vehicle." The affidavit checks the box for odor \*on breath, at moderate\*.*

Read that twice. In his own narrative report, the smell is strong and it is coming from the car. In the document that had to convince a judge, the smell has moved out of the car and onto my breath — and dropped from strong to moderate, because "moderate on the breath" is what a form needs to justify taking blood.

*\*On my speech. The case report says "slightly slurred." The affidavit checks "Slurred" and adds "Thick-tongued."\**

*\*On my eyes. The case report says "watery, glossy." The affidavit checks "Watering" and adds "Dilated."\**

*\*The word "dilated" appears nowhere in his own report. It appears for the first time on the form that goes to the magistrate. Then, at my revocation hearing, he testified my pupils were pinpoint.\**

Three observations. Three upgrades, every one of them in the direction that helps the warrant. Nothing here requires a jury to believe me over a police officer. It requires reading two pages he wrote himself, hours apart, on the same night.

*\*One more thing in that report, and it resolves something this book has been carrying wrong.\**

The report records that Osteen contacted an assistant district attorney, that she agreed to charge me with DWI third-or-more, and that the case went to the jail *"with a recommended bond of \$10,000."* The figure appears twice on the page.

I have said for two years that I sat in Galveston County Jail on a *\*\$100,000\** bond. Both numbers are true. They belong to different arrests.

Here is what actually happened, and it is the part of that August I have never written down properly.

The bond on August 11 was *\*\$10,000. About five days later — I believe the sixteenth — I bonded out.\** I was free.

When I got to my car, *\*my keys were gone.\** I raised absolute hell about it. And then I did what I do: I stood in the lobby of the Galveston Police Department and held a press conference about a department that had arrested a sober man on a sworn affidavit and then lost his keys.

The next day, *\*August 17\*,* I was told the department had my keys and to come up and collect them.

They did not have my keys. What they had was a warrant. Lafayette County had lodged an extradition hold — Mississippi was moving to revoke my probation on the strength of the Galveston arrest — and the moment I walked in to pick up my property, I was arrested again.

*\*And on that rearrest the DWI bond was reset from ten thousand dollars to one hundred thousand.\**

It made no practical difference. Lafayette County's hold was a *\*no-bond hold\**. There was no number I could have paid.

I want to separate what I know from what I believe, because the difference matters here. *\*What I know: the bond was ten thousand, I got out, my keys were missing, I held a press conference in their lobby, I was told to come collect my keys, and I was rearrested when I did — with the bond then set ten times higher. What I believe\** — and it is a belief, not a document — is that all of it was a way to reduce the headache they had made for themselves when I stood in their lobby with a camera. I cannot prove that, and I am not going to dress it up as proof.

There is one detail I would like a record for and do not have. Chapter 21 sets out that on *\*August 17, 2023\** — the same day — the State of Mississippi filed a bench warrant and a Petition to Revoke Suspended Sentence, signed by Assistant District Attorney Steven Patrick Jubera, citing the Galveston arrest and asking the court to convert the whole remaining four years into real time.

Same date. I do not know whether the warrant I was taken on that morning is that instrument, or whether the hold was already lodged and Jubera's petition followed it, and I am not going to guess at the order of two documents I have not put side by side. What I can tell you is that on one day in August 2023 a Mississippi prosecutor moved to take four years of my life and a Texas department told me to come pick up my keys.

And there is one more line in that report worth holding, because of what was happening on the telephone at the same time. Osteen wrote that after reviewing my criminal history he found two prior DUI charges — one in Cobb County, Georgia in 2014, and one he lists as a *\*February 2021 Lafayette County, Mississippi\** conviction. That prior is what turned this into a third-degree felony.

But Chapter 22 has the dispatch recordings from that same building on that same night. At *\*3:44 in the morning, Galveston personnel are on tape hunting for exactly that Mississippi prior and failing to find it* — "there's no charge affiliated with that 2022 cycle six"\* — and two minutes later they are on the phone to Lafayette County asking for the court and the cause number, and a Mississippi sergeant is telling them he cannot get it on his shift.

So the report states a specific Mississippi conviction, with a specific date, on a night when the people writing it were audibly still trying to find one. I am not going to tell you which

way that cuts. I am telling you both documents exist and that they sit badly together, and that the Justice Court's own disposition record would resolve it in about five minutes.

Then Campagna put the whole thing together into the argument that I think is unanswerable. Between writing the affidavit and testifying at my revocation hearing, *\*Osteen switched profiles.\** The affidavit describes a drunk: slurred, thick-tongued, heavy-footed, dilated pupils, alcohol on the breath. The testimony describes something else entirely: fast speech, pinpoint pupils, jittery. As the motion puts it:

> *"Each observation was made under oath, but they obviously aren't both true. Such a fundamental shift in observations, under oath, suggests intentional misrepresentation rather than innocent mistake."*

And underneath all of it, the motion documents when the decision to arrest me was actually made. *\*Under one minute into the encounter, before any meaningful observation, Osteen tells Officer Larry Murph they can go ahead and arrest me — that he "can go off of slurred speech and the smell."\**

Which brings me to the two sentences on that body camera that explain the entire night.

At *\*2:48\** into the footage — within moments of walking up to me — one of the first things Osteen asks is:

> *\*"You an auditor man?"\**

And sixteen seconds later, to another officer:

> *\*"Hey, I'm doing this one, this is an auditor."\**

*I'm doing this one.*

I have spent this book carefully refusing to claim I know why people did things to me. I am not going to break that rule now, and I do not need to. Read those two sentences in order and decide for yourself what "I'm doing this one" means when it is said sixteen seconds after "you an auditor man," four minutes before the decision to arrest, on a night that ended with a blood draw that came back at 0.00.

Campagna's motion notes, pleaded on information and belief, that the City of Galveston has a contentious relationship with auditors.

*\*The State of Texas never answered any of it.\** There was no Franks hearing. Osteen never took that stand. Instead, as the next chapters set out, the case was disposed of — and a federal magistrate would later find that avoiding exactly this hearing is why.

I want to say one thing plainly, because this book has been hard on a great many lawyers. *\*Ben Campagna did his job.\** He read every page, he watched every second of the footage, he pulled the lab report and the case report and the revocation transcript, and he built a document so specific that the State's only viable move was to make the case go away rather than put its officer under oath. That is what a defense attorney is supposed to be. I had gone seven years without one.

There is a timing detail buried in the paperwork that deserves its own sentence rather than a footnote. The Texas DPS Houston Crime Lab's toxicology report — Laboratory

Case HOU-2308-10286, finding "No alcohol detected" — was issued September 6, 2023, less than a month after my arrest, and its email distribution list included Osteen's own department address, wosteen@galvestontx.gov. That means Osteen had access to the lab result definitively clearing me of any alcohol at all by early September 2023. The felony charge did not get dismissed until May 24, 2024 — nearly eight more months during which I remained in pretrial custody on the \$100,000 bond and the Mississippi hold behind it, while the officer whose sworn affidavit put me there had, by his own department's own records, already received the report contradicting it.

The complaint documents two phone calls in the middle of that same night, at 2:41 a.m. and 4:04 a.m., involving Lafayette County. When I drafted that complaint I described them as outgoing — Galveston reaching out to Mississippi. I have the recordings now, and I had the direction wrong. Both calls came the other way.

At 2:41 a.m. — roughly forty minutes after I was pulled over — Sgt. Hoby James of the Lafayette County Sheriff's Office called *in* to Galveston Police, and told them he had been watching my arrest on a YouTube livestream. At 4:04 a.m., Deputy Kandi Beavers called *in* to Galveston Police herself, identified herself by name and department, and asked to be connected to Officer Osteen.

I am correcting my own filing here because the corrected version is the more serious one. A Texas department phoning Mississippi to run a records check is ordinary police work; it happens a hundred times a night across the country. Two officers of a Mississippi sheriff's department telephoning into a Texas police station between two and four in the morning, about a man who had been in their county's crosshairs for six years and had tried to file a complaint against one of them a week earlier, is not ordinary anything.

What was said on the Beavers–Osteen call is not on the recording, and I am not going to tell you what I think it was. The call itself is on the recording. Chapter 22 sets out the rest of that night's sequence in full.

The physical reality of that lie was eleven long months spent inside a Galveston County jail cell. Held on a \$100,000 bond I could not post, behind a no-bond hold that meant posting it would have changed nothing, I sat in pretrial confinement knowing with absolute mathematical certainty that I was completely sober, knowing that the blood drawn from my arm contained zero alcohol, and knowing that my incarceration rested entirely on a sworn statement that the arresting officer himself had contradicted on video moments after pulling me over. Week after week, month after month, the weight of that pretrial detention accrued, designed to grind down my resolve and force a plea before the forensic evidence could see the light of day.



The felony charge against me was abruptly dismissed on May 24, 2024, nearly a year after my arrest, and refiled as a misdemeanor. A decision to dismiss and recharge can occur for benign, routine administrative reasons—such as docket management, evidentiary reassessment, or changes in prosecutorial staffing—and a charge reduction does not automatically prove police misconduct. What makes this specific dismissal extraordinarily revealing is its precise timing relative to a major constitutional proceeding: a Franks hearing.

For a lay reader unfamiliar with criminal procedure, a Franks hearing—derived from the United States Supreme Court's landmark 1978 decision in *Franks v. Delaware*—is a vital constitutional mechanism designed to hold law enforcement accountable when they lie to courts to secure arrest warrants or justify warrantless detentions. Under the Fourth Amendment, any search or arrest warrant must be supported by probable cause established through truthful sworn statements. When a criminal defendant makes a substantial preliminary showing that a police officer included false statements in a sworn warrant or probable cause affidavit, either intentionally or with reckless disregard for the truth, the court is legally required to conduct an evidentiary Franks hearing.

At a Franks hearing, the protective judicial shield normally granted to official police affidavits is stripped away. The affiant officer is called to the witness stand under oath, subjected to direct, rigorous cross-examination by defense counsel, and

forced to defend the truthfulness of their sworn claims line by line under penalty of perjury. If the presiding judge concludes by a preponderance of the evidence that the affidavit contained intentional perjury or reckless falsehoods necessary to the finding of probable cause, the court must void the warrant, declare the arrest unconstitutional, and suppress all evidence obtained as a direct result. A successful Franks hearing not only destroys the state's criminal prosecution but exposes the officer to direct personal civil liability and criminal prosecution for perjury.

By abruptly dismissing the felony DWI charge on May 24, 2024, immediately before the scheduled Franks hearing could take place, the prosecution effectively stripped the court of jurisdiction to hold the hearing. Re-charging the offense as a lower-level misdemeanor removed the immediate threat of a long felony prison sentence, significantly altering the procedural posture and reducing the practical incentive to litigate the affidavit's truthfulness with the same exhaustive resources. The practical effect of this tactical maneuver was unmistakable: Officer Osteen was shielded from taking the witness stand, protected from answering under oath about his on-camera contradiction, and spared from having his affidavit formally invalidated in open court. It took my subsequent federal civil rights lawsuit, *Reardon v. Osteen*, and the government's own June 2026 court filing, to force that contradiction into the permanent public record.

The complete Galveston police dispatch and bodycam archive for August 11, 2023—a 46-file digital archive that I obtained through discovery and reviewed in exhaustive detail—provides critical context that sharpens these findings and exposes the internal mechanics of the arrest.

First, the dispatch audio captures an independent bystander at the scene confirming that I myself proactively offered to take a field breathalyzer test. Certain police narratives and preliminary reports suggested I had flatly refused alcohol testing. The full record clarifies this vital nuance: I offered to take a breathalyzer test at the scene to demonstrate my immediate sobriety, but I specifically refused and declined field breathalyzer testing in favor of a formal blood draw instead. I insisted upon an indisputable scientific laboratory analysis performed by trained medical personnel rather than a portable field breathalyzer device that officers could miscalibrate, misread, or manipulate on scene. Both facts are true and coexist without contradiction: I offered a breathalyzer to show I had nothing to hide regarding alcohol, while specifically choosing a blood draw as the definitive, legally binding test. Officer Osteen's sworn affidavit completely omitted my offer to take a breathalyzer test, constructing instead a false narrative of total non-cooperation to justify a forced medical procedure.

Second, the dispatch recordings reveal Galveston police personnel telephoning UTMB Health hospital staff in advance of my arrival for the forced blood draw, explicitly warning

medical personnel that "an auditor" was being brought in. This warning was not a routine medical heads-up or clinical preparation. It was a prejudicial framing delivered before I ever stepped foot into the emergency room, signaling to hospital staff that I was a hostile political agitator rather than a routine patient undergoing a forensic procedure. This pre-framing established my identity as a First Amendment auditor and independent journalist as the operative factor driving the department's handling of me—months before the systematic BOLO (Be On the Lookout) alert pattern detailed in Chapter 27 would formalize that exact framing at the federal level.

Third, the audio archive documents that a Galveston police supervisor, Sergeant Hoby James, was specifically called out to the scene only after officers began watching my own live internet stream of the traffic stop. Sitting in patrol cruisers, officers tuned into my YouTube broadcast in real time. Rather than responding to an objective traffic safety hazard or an erratic driver, senior command personnel were mobilized specifically because of my active broadcast and journalistic activity.

Fourth, the dispatch tape captures Galveston officers communicating with Mississippi authorities during the stop, attempting and failing in real time to confirm my prior conviction status. Despite being unable to verify my record or confirm whether I had any disqualifying priors, the officers proceeded to lodge high-bond felony charges based entirely on unverified assumptions about my past legal history, layered

directly on top of Osteen's fabricated odor claim. An arrest built on an officer's contradicted claim of alcohol odor is one profound violation; an arrest additionally proceeding on cross-state record information nobody on scene could actually confirm in real time compounds it into a systemic failure.

Fifth, a specific rebuttal detail captured on the dispatch tape documents officers discussing my history of filing formal grievances. The recording records a reference to "17 police reports over 5 years"—a detail I used directly on scene to push back against officers attempting to characterize me as a "sudden complainer" or an unprovoked instigator. The tape proves that my pattern of documenting police misconduct was long-standing, formal, and well-known to law enforcement, completely refuting any attempt to portray my objections as an unprecedented or erratic outburst.

Throughout the forced blood draw at UTMB Health, Sergeant Jack Doraty (spelled D-O-R-A-T-Y) was present in a supervisory capacity. As the blood draw was performed by medical staff, including Defendant McDougle, Sergeant Doraty stood by and oversaw the operation. Per my own observations and formal account, Sergeant Doraty failed entirely to intervene or question the procedure, despite clear, visible irregularities and the lack of any credible physical indicia of intoxication. He allowed a forced medical procedure to go forward on the foundation of an affidavit built on an odor his subordinate had already admitted on camera did not exist.

Sergeant Doraty's involvement with my law enforcement encounters did not end on August 11, 2023. A separate, subsequent incident—the Galveston bank standoff at Coastal Community Federal Credit Union, recorded on a livestream transcript I preserved—names Officers Ball (#1026), Bass (#1078), and Griffin (#676), with Sergeant Doraty once again acting as the supervising officer on scene.

During that later bank standoff, as captured on the live audio transcript, my intense frustration with Doraty's repeated presence and supervisory oversight spilled out. On that tape, I referred to Sergeant Doraty as "a lying rat bastard"—a characterization that I present clearly and explicitly as my own personal opinion and emotional reaction at the time, born of surviving what I viewed as his blatant, recurring hostility toward my press activities. On that same recording, I expressed my firm belief that Doraty possesses an "obvious bias against First Amendment auditors"—again, presented here as my own characterization and belief regarding his operational mindset. I directly connected Doraty's supervisory presence at the credit union standoff back to his role overseeing my original August 2023 felony DWI frame-up, viewing his repeated involvement as part of a continuous pattern of targeted supervision.

On that same credit union livestream recording, I am heard mentioning a second vehicle being taken by police approximately a month prior due to an expired license tag. To ensure absolute clarity for the reader and prevent any misconception

that a third separate vehicle seizure occurred, this reference has since been confirmed through court records to be the exact SAME event as the June 22, 2026 Mitsubishi Outlander seizure at a Galveston Walgreens, which is detailed fully later in Part V. It is not an additional, unrecorded vehicle towing event, but a contemporaneous verbal reference to the very Walgreens seizure litigated in my federal civil rights objections.

When all these documented elements are brought together—Officer Osteen's on-camera admission that he smelled no alcohol, the 0.00 BAC laboratory report, the strategic dismissal to dodge a Franks hearing, the hospital pre-framing of "an auditor," the mobilization of supervisors over a livestream, the unverified Mississippi record checks, the 17 police reports rebuttal, and Sergeant Doraty's supervisory oversight across multiple incidents—the conclusion is unavoidable. The felony DWI charge of August 11, 2023, was not a good-faith traffic stop that turned out to be a mistake. It was a calculated, sworn fabrication designed to remove an active journalist from the streets and silence a persistent critic of law enforcement.

## THE LONG FIGHT FOR VACATUR

**B**y early 2024, I found myself fighting an exhausting, continuous two-front battle across two states, caught in simultaneous legal wars against two separate convictions that had both been constructed on compromised and discredited foundation: the Mississippi probation revocation grounded in Deputy Kandi Beavers's contradicted sworn testimony, and the Texas felony charge grounded in Officer William Osteen's affidavit, already contradicted by his own on-camera statements and a 0.00 laboratory blood test. Neither case would resolve swiftly, and neither would yield through my unassisted pro se efforts alone — a harsh reality that traced directly back to my dismissed 2022 federal civil rights lawsuit detailed in Chapter 17, where the vast chasm between a documented constitutional violation and a legally cognizable judicial remedy proved, time and again, to be defined almost entirely by the gap between standing alone as an unrepresented litigant and having skilled, institutional legal counsel.

Day after day, I was forced to navigate the staggering procedural demands of two distinct state court systems while living under the constant threat of re-incarceration and continuous banishment. Managing complex dockets, responding to procedural motions, tracking certified mail, and filing



detailed evidentiary affidavits required an overwhelming expenditure of energy. Yet, despite assembling meticulous documentation — including video recordings, official toxicology reports showing zero alcohol content, and transcribed telephone calls — my pro se filings were routinely met with institutional inertia, procedural dismissals, or summary denials. The system seemed designed to ignore the plain substance of a pro se petitioner's evidence, treating documented official misconduct as mere unrepresented noise.

The first major crack in the Mississippi legal wall appeared in June 2024, when a Mississippi state court formally vacated my October 2022 probation-violation sentence. That sentence was the direct output of the November 3, 2022 revocation hearing examined in Chapter 20 — a proceeding built entirely on Deputy Kandi Beavers's sworn testimony that she had no prior knowledge of my FBI visit, a claim flatly refuted by the recorded telephone conversation proving her explicit prior knowledge.

As an investigative matter, the available written record does not include the court's detailed internal memorandum or explicit written reasoning accompanying the June 2024 vacatur order. That evidentiary gap must be acknowledged plainly rather than filled with subjective speculation or inference. What can be stated as an absolute, verifiable fact is the bare outcome and its profound legal significance: the exact sentence that had forced me into roughly a year of continuous Mississippi custody was legally undone by a Mississippi court

within about eighteen months of its imposition. A judicial body, reviewing the accumulated record, arrived at an outcome fully consistent with what the recorded phone call examined in Chapter 20 had suggested from the very beginning — that the evidentiary foundation for my revocation could not withstand scrutiny.

When news of the June 2024 vacatur reached me, it brought a surge of vindication tempered by profound frustration. To have a court recognize, eighteen months later, that the revocation sentence was invalid was a critical step forward, yet it could not restore the year of life I had already lost behind bars, away from my children and stripped of my liberty. Moreover, the June 2024 vacatur order was inherently limited in scope. It addressed and set aside the probation-violation sentence specifically; it did not, on its own, address or undo the underlying September 30, 2022 guilty plea itself.

That plea — entered under immense pressure to the aggravated stalking charge derived from the duress-signed 2017-CV-217 civil restraining order detailed in Chapter 19 — remained fully active on the court books. Along with it remained the associated five-year banishment from Lafayette County, Mississippi. The underlying felony-adjacent conviction stood as an active legal barrier, restricting my movement, threatening my freedom, and requiring a far more comprehensive post-conviction relief effort to dismantle completely. It carried a further concrete cost I only fully appreciated once I tried to move past it: I believe the county reported the

conviction to NCIC in a way that flagged me in the federal background-check system used for firearm purchases, meaning a wrongful conviction I have maintained from day one was impossible to have committed also functioned, in practice, as a bar on a constitutional right until the record was eventually cleared.

That necessary legal capability arrived on November 26, 2024, when attorney Jacob Howard of the MacArthur Justice Center filed a formal petition for post-conviction relief on my behalf in Mississippi state court. This filing marked a decisive turning point in my long fight against the Mississippi judicial apparatus, illuminating the stark contrast between pro se advocacy and represented litigation backed by a major civil rights institution.

For a lay reader, post-conviction relief — commonly referred to as PCR — is a specialized legal mechanism fundamentally distinct from a direct appeal. While a direct appeal reviews the trial transcript for legal errors committed by the judge during court proceedings, a post-conviction relief petition is a collateral attack on the judgment of conviction itself. It operates outside the narrow scope of the initial trial record, allowing a petitioner to introduce new physical or testimonial evidence, raise fundamental constitutional violations — such as coerced guilty pleas, ineffective assistance of counsel, or state reliance on false testimony — and request that a final judgment of conviction be set aside entirely.

Attorney Jacob Howard's November 26, 2024 PCR petition mounted a structured, multi-pronged attack that targeted both the November 2022 revocation and the underlying September 30, 2022 guilty plea. The petition systematically laid out four core arguments grounded in established constitutional law and state statutory standards:

First, it demonstrated that the underlying September 30, 2022 guilty plea was invalid and unconstitutional because it was derived directly from the 2017-CV-217 civil restraining order — an order that had been procured under severe duress while I was incarcerated in 2017, without fundamental procedural due process, making any subsequent criminal charge built upon it inherently defective.

Second, it established that the November 2022 probation revocation was fatally infected by the falsified testimony of Deputy Kandi Beavers, whose sworn trial statements claiming ignorance of my FBI report were directly impeached by the recorded telephone call proving her prior knowledge and deliberate misrepresentation.

Third, it argued that I had received ineffective assistance of trial counsel, as my previous defense attorneys failed to conduct a reasonable investigation into the Beavers recording, failed to challenge the duress surrounding the initial 2017 civil order, and allowed me to enter a guilty plea tied to an unconstitutional banishment provision.

Fourth, the petition challenged the five-year banishment from Lafayette County as an illegal, extra-statutory punishment that violated both the Mississippi Constitution and well-established public policy prohibiting judicial banishment.

The contrast between my years of pro se filing and the MacArthur Justice Center's intervention was immediate and profound. I had spent, by this point, roughly two years trying to get some court, somewhere, to look seriously at the duress under which the 2017-CV-217 order was signed, at Beavers's contradicted testimony, and at the disproportionate five-year county-wide banishment detailed in Chapter 19. My own 2022 federal lawsuit had been dismissed with prejudice. My own recusal motions, my own contempt fights, my own attempts to file internal affairs complaints, had gone nowhere or produced further escalation against me.

It took the MacArthur Justice Center — a nationally recognized civil rights litigation organization with institutional resources, litigation experience, and credibility that a pro se, financially strained litigant simply does not carry into a Mississippi courtroom — filing a single, properly constructed PCR petition to put the full weight of the record documented across twenty chapters in front of a court in a form that court could actually act on.

None of this is meant to overstate what that contrast proves. It does not mean my earlier pro se filings were meritless, and it does not mean every properly represented petition succeeds where an unrepresented one fails — repres-

ented litigants lose constantly, and pro se litigants occasionally win. What it does illustrate, cleanly, is the structural reality underlying nearly every chapter in Parts II and III: that access to competent counsel is not a minor procedural convenience in the American legal system, but frequently the entire difference between a documented grievance going nowhere and that same grievance producing an actual remedy — a reality that falls hardest, as it did on me for years, on people who cannot afford to hire it and lack the institutional connections to attract it pro bono until their case has already generated enough public attention or enough accumulated harm to draw an organization like MacArthur's notice.

The next chapter covers what Howard's petition produced: on January 21, 2025, a Mississippi court vacated the 2022 conviction and its associated sentence in full.

## FULL VACATUR

**O**n January 21, 2025, a Mississippi court fully vacated the 2022 aggravated stalking conviction and sentence — the plea entered September 30, 2022, the five-year suspended probation, and the five-year county-wide banishment from Lafayette County that had, by this point, shaped nearly three years of my life, detailed across Chapters 18 through 21.

This chapter is short because the fact at its center does not need padding to carry its weight, and because the preceding nine chapters have already done the work of laying out exactly what the vacatur undid. It is worth restating plainly, in one place, what a full vacatur of this conviction actually means: a court, reviewing the same underlying record presented here — the 2017 restraining order signed under an attorney's advice that amounted to duress, the aggravated-stalking enhancement that transformed a minor and disputed building-access issue into a felony-adjacent charge, the revocation hearing in which a deputy was asked whether I had lied and said *yes*, on hearsay, in a proceeding without evidentiary safeguards — concluded that the conviction could not stand.

To understand the full legal weight of the January 21, 2025 order, a lay reader must understand how a full vacatur differs from other legal outcomes such as partial sentence modifica-

tions, probation early terminations, or record expungements. A sentence modification merely adjusts the terms of punishment while leaving the underlying guilty plea intact. An early termination of probation releases a defendant from active supervision but preserves the underlying criminal conviction on the public record. An expungement seals or hides a criminal conviction after a sentence has been fully served, treated as an act of administrative grace rather than an acknowledgment of judicial error.

A full vacatur is fundamentally different and far more radical. In the American legal system, a full vacatur is the absolute unwinding and annulment of a criminal conviction, declaring the original judgment null and void *ab initio* — as if it had never existed in law. When the court granted Jacob Howard's petition on January 21, 2025, it did not simply reduce my punishment or forgive an outstanding term. It wiped away the September 30, 2022 guilty plea in its entirety, dissolved the five-year suspended probation, and struck down the five-year county-wide banishment from Lafayette County. In the eyes of the law, my legal status was restored to that of a person who had never been convicted of the charge.

This is not a technicality or a procedural footnote. A full vacatur, as opposed to a partial modification or a resentencing, is the legal system's most complete available acknowledgment that a conviction should not have happened as it did. It does not, by itself, formally establish bad faith on the part of any individual official named here — vacaturs can rest on



procedural defects, ineffective assistance of counsel, newly discovered evidence, or a combination of grounds that fall well short of a finding that any specific person lied or acted maliciously. What a full vacatur does establish, at minimum, is that the process that produced my 2022 conviction failed to meet the standard the law requires before a person can be branded a felon, banished from his home county, and subjected to a year of custody on a revocation.

Receiving word of the January 21, 2025 order brought a profound, almost disorienting sense of relief after eight long years of unrelenting legal warfare. Since May 2017, my daily existence had been governed by restraining orders, arrest warrants, bond conditions, probation terms, revocation threats, and judicial banishment. For nearly a decade, every plan I made, every job I pursued, and every moment spent with my children was shadowed by the weight of a hostile judicial apparatus. Standing in the light of a total legal vacatur was a moment of supreme vindication, yet it was accompanied by a quiet, heavy sorrow for everything that could never be recovered — the year spent behind bars on a revoked probation built on contradicted testimony, the missed milestones with my children, the financial destruction, and the physical toll of living in continuous defense.

With the legal shackles finally broken, I relocated to Layton, Utah on February 1, 2025, roughly ten days after the vacatur — the first time since the events of Chapter 18 that I was not, in some form, under an active banishment, probation

term, or pending revocation tied to Lafayette County, Mississippi. Exactly why Layton specifically is not established in the available record, and nothing is speculated here on that point. What matters for this chapter's purposes is the plain fact of the move: after eight years of continuous entanglement with Mississippi's courts, sheriffs, clerks, and commitment proceedings — traced from the flag petition in Chapter 1 through the vacated 2022 conviction in this chapter — I was, for the first time since May 2017, not legally required to remain anywhere near the county where nearly all of it had happened.

Packing my belongings and crossing state lines toward Utah on February 1, 2025 was an unprecedented experience. For years, traveling across county lines or state borders carried the terrifying risk of triggering an extradition warrant or violating an extra-statutory banishment order. Moving to Layton was not an escape or a flight from justice; it was the deliberate exercise of a freedom restored by court order. As the Mississippi landscape receded behind me, I realized that for the first time in nearly eight years, no sheriff's deputy could stop me, no probation officer could summon me, and no municipal judge could hold me in contempt for simply existing in a public space.

The vacatur did not end the broader legal fight. *Reardon v. Osteen*, the federal civil rights suit against the Galveston officials and the Mississippi officials named alongside them, remained active and would go on to produce the magistrate's findings and the Osteen concession detailed in Chapter 23.

And a separate Mississippi appellate matter — Reardon v. State, 2024-KM-00839-COA — was still working its way through the Mississippi Court of Appeals, and would produce, roughly thirteen months after this chapter's vacatur, a reversal covered next, one that would sit in direct and pointed contradiction with a sworn federal affidavit Circuit Clerk Jeff Busby had filed just months earlier.

## REARDON V. STATE: THE REVERSAL

**O**n February 24, 2026, the Mississippi Court of Appeals decided *Reardon v. State*, case number 2024-KM-00839-COA. I won. The court reversed a June 28, 2024 dismissal that had gone against me, in a ruling where the State's own counsel on appeal was attorney Bela J. Chain III.

I remember sitting at my desk when the decision appeared on the Mississippi judicial portal's electronic docket in Jackson. Scrolling down the official docket entries, my eyes locked onto the opinion rendered under case number 2024-KM-00839-COA. After years of drafting pro se briefs, calculating rigid statutory deadlines, and confronting persistent opposition from state prosecutors, reading the single word "REVERSED" at the head of the Court of Appeals' written decision brought a moment of profound, quiet clarity. Attorney Bela J. Chain III had represented the State of Mississippi on appeal, advocating to affirm the circuit court's June 28, 2024 order of dismissal. Yet when the appellate judges evaluated the underlying record, they rejected the State's position and ruled in my favor. For a pro se litigant fighting against the institutional weight of the state's legal apparatus, that written opinion was an authoritative judicial declaration that the lower court's dismissal was legally erroneous.

This chapter closes Part IV, and it earns that position because of what it does to a piece of the record already encountered once, in the Busby dossier detailed earlier: Circuit Clerk Jeff Busby's own contradictory sworn statements about the status of my DUI-case appeal.

To recap briefly: on March 25, 2024, Busby wrote a letter stating that no properly filed appeal was pending, referencing five specific DUI-related cause numbers: 9290609, 9290610, 9291197, 9291198, and 9291202. On November 12, 2025, in a sworn federal affidavit filed as Exhibit A to his motion to dismiss in *Reardon v. Osteen* (ECF Doc 46-1), Busby swore that he had never provided the Galveston, Texas district attorney's office with information about my DUI appeal status. Chapter 14 already flagged the tension between those two statements: a 2024 letter that itself constitutes exactly the kind of information Busby would later swear, under oath in 2025, that he never provided.

To understand why the February 2026 ruling creates such a direct contradiction with Busby's affidavit, it helps to examine the timeline logic clearly for any lay reader following how official records move between jurisdictions. On March 25, 2024, Busby issued an official letter specifically cataloging those five DUI cause numbers—9290609, 9290610, 9291197, 9291198, and 9291202—and asserting that no valid appeal remained active on the Lafayette County dockets. That letter was a formal administrative document created by the elected Circuit Clerk of Lafayette County that directly addressed the

legal posture of my DUI cases and admitted an appeal had been a subject of clerk recordkeeping. Yet a year and a half later, when named as a defendant in my federal civil rights suit in Texas (*Reardon v. Osteen*), Busby executed a sworn federal affidavit on November 12, 2025 (ECF Doc 46-1), swearing under penalty of perjury that he had never provided Galveston prosecutors or law enforcement with information concerning my DUI appeal status. The March 25, 2024 letter proves he did provide that information, directly contradicting his 2025 sworn affidavit.

The February 24, 2026 reversal in *Reardon v. State* adds a third data point to that contradiction, and it is the one that resolves the ambiguity most decisively. If the Mississippi Court of Appeals was still actively reversing a dismissal related to this matter in February 2026 — more than three months after Busby's November 2025 federal affidavit, and nearly two years after his March 2024 letter — then the underlying appellate status of my case was neither settled nor closed at either of the earlier points where Busby made his representations. A clerk's office swearing, in November 2025, to a settled understanding of an appeal's status, when that same appeal was still live enough to produce a reversal from the state's own Court of Appeals three months later, is difficult to reconcile with the plain, contemporaneous record of the appellate docket — a docket Busby's own office, as the circuit clerk's office of record, would ordinarily be expected to track with more precision than either of his sworn or written statements reflected.

The timeline logic laid bare by these three events reveals the full scope of the inconsistency. In March 2024, Busby's letter acknowledges and addresses the status of cause numbers 9290609, 9290610, 9291197, 9291198, and 9291202, claiming no appeal was properly pending. In November 2025, Busby swears under oath in federal court that he never gave Galveston authorities information about my appeal status. And on February 24, 2026, the Mississippi Court of Appeals rules in 2024-KM-00839-COA that the June 28, 2024 dismissal was legally erroneous and reverses it. The Court of Appeals' 2026 ruling proves the appeal genuinely was unresolved and active in the appellate system, corroborating the underlying premise of the 2024 letter—that an appeal was being actively litigated—while fatally undercutting the 2025 sworn affidavit's blanket denial that appeal status information was ever discussed or transmitted.

None of this proves Busby lied under oath in November 2025 — proving perjury requires establishing not just that a statement was false, but that the person making it knew it was false at the time, and the available record does not include that level of proof regarding Busby's state of mind. What can be said plainly is that three separate points in the record — a 2024 letter, a 2025 sworn affidavit, and a 2026 appellate reversal — cannot all be reconciled into a single, consistent account of what Busby knew and when he knew it, and the burden of explaining that inconsistency belongs to Busby's office, not to me.

Navigating these administrative contradictions was one of the most demanding aspects of prosecuting my cases pro se. As a self-represented litigant, I was required to follow every technical procedural rule, calculate exact filing dates, and serve every motion properly. Yet institutional officers could issue written letters claiming an appeal was non-existent, execute sworn federal affidavits denying they had shared appeal status information, and watch as the state Court of Appeals ultimately confirmed that the appeal was valid and that the circuit court's dismissal was wrong.

The reversal itself stands as its own, independent vindication, separate from what it reveals about Busby's earlier statements. A Mississippi appellate court, reviewing the same underlying DUI-case record referenced throughout the 2020-2022 account, concluded that the June 28, 2024 dismissal against me was wrong and reversed it. Combined with the January 21, 2025 full vacatur of the 2022 stalking conviction detailed in the previous chapter, and the June 2024 vacatur of the probation-violation sentence detailed in Chapter 24, this reversal completes a run of three separate, independent judicial and appellate findings across roughly twenty months — June 2024, January 2025, and February 2026 — each concluding that a different piece of the case documented since Chapter 3 should not have stood as it did.

Looking back across those twenty months provides a stark sense of vindication. In June 2024, the court vacated the probation-violation sentence that had restricted my freedom.



On January 21, 2025, a court ordered the full vacatur of the 2022 stalking conviction that local officials had used to label me a convict. And on February 24, 2026, the Mississippi Court of Appeals handed down its decision in 2024-KM-00839-COA, reversing the June 28, 2024 dismissal and defeating the State's defense led by attorney Bela J. Chain III. Three distinct courts, reviewing three distinct proceedings over twenty months, each determined that Lafayette County's actions against me were legally unsustainable.

That is not a coincidence worth treating lightly. Three separate courts, addressing three separate procedural postures, arriving at three separate conclusions that something in Lafayette County's handling of my cases had gone wrong, is a pattern the earlier chapters predicted long before any of these rulings existed — built, chapter by chapter, on a bill of sale that predated an alleged threat by twelve days and testimony a recorded phone call contradicted.

Part V turns to what came next, once I was living in Utah, free of Mississippi's courts for the first time in nearly eight years: a new front, opening in 2025, in a different state and eventually before a federal court, that would show the same patterns documented across these twenty-six chapters were not unique to Lafayette County, Mississippi at all. Standing in Utah, looking out at the snow-capped Wasatch Range, I was physically removed from North Mississippi for the first time in nearly a decade. The mountain landscape was a world away from the red-clay hills of Lafayette County, but the legal battle

was far from over. As Part V details, when Galveston authorities and federal courts in Texas entered the picture in *Reardon v. Osteen*, the exact same administrative maneuvers, conflicting affidavits, and official overreach that had characterized Lafayette County's actions crossed state lines, proving that the struggle for accountability was far larger than a single county court.

## THE BOLO: TWO MONTHS BEFORE

**O**n June 23, 2025, at approximately 4:00 PM, I was recording inside the lobby of the John M. Shaw United States Courthouse in Lafayette, Louisiana. The heavy glass entrance doors of the Lafayette courthouse open into a high-ceilinged, sterile lobby where tiled floors amplify every footstep and court security officers in dark uniforms stand behind magnetometer screening checkpoints, watching every visitor with practiced suspicion. On that humid summer afternoon, I stepped inside carrying my recording equipment, my intention clear: to document the public space of a federal building. Within minutes of raising my camera, court personnel and security officers converged on me in the lobby. I was asked to leave and refused. I stood my ground in the public lobby, asserting my constitutional right to film in a government facility accessible to the public. I was not arrested. Instead, the building management and security administration made a bizarre, unprecedented tactical decision: the building closed early that day — at 4:48 PM — specifically, per the court record, to force me out without an arrest.

That detail matters more than it might first appear. A federal courthouse closing nearly an hour ahead of its normal schedule, locking its public entrances and flushing court staff,

attorneys, and visitors out onto the sidewalk forty-eight minutes early rather than having its own security simply remove or arrest a non-compliant visitor on the spot, is not the behavior of officials who believed they had a clean, immediate basis to act. As I stood watching staff lock the doors behind me, the absurdity of the moment was striking. It reads far more like officials who wanted me gone but were not yet prepared, on June 23, 2025, to make an arrest they were confident would hold up under legal scrutiny in a federal courtroom.

What happened next removes any doubt about how seriously federal law enforcement was tracking me by this point, more than two months before the arrest that opens the federal case detailed in the next chapter. The following day, June 24, 2025, the Supervisory Deputy U.S. Marshal for the Western District of Louisiana circulated an internal report titled "1st Amendment Auditor Matthew Reardon" to court staff at [lawd.uscourts.gov](http://lawd.uscourts.gov), to U.S. Attorney's office personnel, to Constellis — the private court security contractor that staffs the building's screening stations — and to General Services Administration staff.

Two days after that, on June 26, a second incident occurred, this one involving an unnamed companion of mine. We returned to the same Lafayette lobby, cameras ready. During this encounter, a Supervisory Deputy U.S. Marshal stepped into my personal space and touched my back to redirect me toward a posted sign, prompting my own recorded

response: "Don't put your hands on me, motherfucker, that's assault." The recording continues with the marshal asking me, apparently apropos of nothing connected to any actual courthouse security concern, whether I had been drinking — to which I replied, "I haven't had a drink in 5 years motherfucker," adding that I had "been with [redacted] all day." That exchange is worth flagging on its own: a federal officer's unprompted question about alcohol consumption, directed at a man engaged in nothing more than recording in a courthouse lobby, previews almost exactly the same alcohol-related credibility dynamic detailed two years earlier in Chapter 23 regarding Officer Osteen's Galveston affidavit — a recurring pattern in which officials across multiple jurisdictions appear to reach for alcohol-related suspicion as a way of framing my conduct, independent of whether any actual evidence supports it.

The same recording captures my companion challenging two DEA agents — present that day on unrelated official business, and mistakenly drawn into the encounter simply by being nearby — for their badge numbers, and a marshal referencing me "stalking a public official in Oxford, MS," to which I replied, "it's my ass." That phrase, whatever one makes of its crudeness, captures something true about how I experienced the incident in the moment: a federal officer, engaged in what was ostensibly a First Amendment auditing encounter about courthouse access in southern Louisiana, was independently aware of and referencing an entirely separate Mississippi state

matter, suggesting information about me had already been shared across the specific agencies I am documenting here. Both incidents were consolidated into a single Field Operational Report, USM Form 210, dated July 16, 2025 — nearly three weeks after the second incident occurred, an unusually long gap for what the report itself treated as significant enough to warrant formal consolidation and onward circulation. In federal law enforcement practice, a Form 210 is an official intelligence tool used by the U.S. Marshals Service to document threat assessments, operational encounters, and subject profiles; holding and consolidating these entries weeks after the fact demonstrates how administrative documentation was being methodically constructed into a multi-jurisdictional intelligence file.

To understand the full mechanism of what was taking shape behind the scenes, one must understand what a BOLO or District Alert Notice actually represents in federal law enforcement procedure. In standard police terminology, a BOLO — "Be On the LookOut" — is an operational alert designed to disseminate descriptive data, photographs, and tactical instructions across law enforcement channels regarding individuals of interest. When issued within the federal judiciary security structure, a BOLO or District Alert Notice instructs court security officers, federal marshals, and building managers to heighten surveillance, alter screening posture, and immediately report sightings of the designated subject to district command.

On June 27, 2025, a "District Alert Notice" went out from the U.S. Marshals Service's Northern District of Mississippi office to district court security officers and staff. It described me as banished from Oxford, Mississippi until September 30, 2027 — a reference to the five-year banishment order detailed in Chapter 19, still in force at the time — labeled me a "1st Amendment auditor," instructed recipients to monitor and notify on my movements, and included a physical description alongside three photographs: one showing me in a tactical vest with a rifle, one a selfie, and one a booking mugshot. The notice was marked Law Enforcement Sensitive.

Subsequent documentary disclosure through USMS FOIA PA-000412 confirmed that these lookout alerts and BOLO notifications were actively distributed to Mississippi and Louisiana authorities as early as June 2025 — two full months before my eventual August 25 arrest. FOIA PA-000412 provided concrete proof that federal authorities were not merely reacting to local events as they occurred, but were actively transmitting law enforcement intelligence files, tactical photos, and tracking directives across state lines between the Northern District of Mississippi and the Western District of Louisiana. A same-day email from June 27 specified that BOLO activity connected to me was, at that point, confirmed only across Mississippi and Louisiana — not Texas, not Utah, despite my own later suspicion that the pattern extended further. A June 30, 2025 follow-up communication predicted, with some specificity, that I would "show in Greenville or

Aberdeen sooner than later" — a prediction that would not be borne out for nearly a year, until the June 4, 2026 Aberdeen federal courthouse arrest detailed in Chapter 32, but a prediction nonetheless, made almost exactly a year in advance, by federal officials who had clearly built a working profile of my habits and likely destinations.

When a law enforcement agency distributes a BOLO featuring photographs of a subject in a tactical vest armed with a rifle alongside mugshots, and attaches the label "1st Amendment auditor," it fundamentally alters the psychological and operational posture of every officer who encounters that subject. Front-line security personnel, including private Constellis guards and U.S. Marshals, are no longer observing an ordinary citizen exercising constitutional rights in a public lobby; they are pre-conditioned by official directives to perceive every gesture, every camera angle, and every verbal challenge through the lens of a pre-identified security threat. The BOLO creates an operational atmosphere primed for confrontation long before any camera starts rolling.

The core fact here bears restating plainly, because it is the single most important piece of context for understanding everything that follows in Part V: by the time I was arrested at the same Lafayette courthouse on August 25, 2025 — the event detailed in the next chapter — federal law enforcement across at least two states had been actively tracking, discussing, and predicting my movements for a full two months. Whatever happened on August 25, 2025 did not happen in a vacuum, and



it did not happen because federal officials were reacting, in the moment, to an isolated incident from a stranger. It happened after a sustained, multi-agency, multi-state surveillance and information-sharing effort specifically targeting a man these same documents repeatedly labeled, not as a security threat in the conventional sense, but as a "1st Amendment auditor" — a description of an activity that is, whatever one thinks of its wisdom as a practice, protected expression under the same Constitution these federal officials had sworn to uphold.

This is the documentary foundation of the selective-enforcement and entrapment argument that runs through the entirety of Part V, and it is worth stating plainly what it does and does not prove. It does not prove that my August 25 conduct, detailed next, was lawful — that is a separate legal question taken up honestly in the following chapters, including the parts of my own conduct that day worth reporting plainly rather than omitting. What the BOLO evidence does prove is that whatever happened on August 25, 2025 happened to a man federal law enforcement had already spent two months watching, discussing, and predicting — a fact any fair assessment of proportionality, selective enforcement, and entrapment in the events that follow has to reckon with directly.

## LAFAYETTE: AUGUST 25

**O**n August 25, 2025, I was arrested at the John M. Shaw United States Courthouse in Lafayette, Louisiana — the same building where the two-month surveillance pattern detailed in the previous chapter had begun. I was charged with violating 41 CFR § 102-74.390(b), a federal regulation governing conduct on General Services Administration property, arrested by Deputy U.S. Marshal Hayden Nugent. It was my fourth documented visit to that courthouse.

To understand the legal basis of the charge, a lay reader needs a clear explanation of what 41 CFR § 102-74.390(b) actually is and how it functions on federal property. Title 41 of the Code of Federal Regulations contains the administrative rules governing public contracts and property management across the federal government. Within Part 102-74, Subpart C outlines the specific rules of conduct enforced across all real property under the authority and custody of the General Services Administration (GSA). Section 102-74.390 specifically addresses "Disturbances" on federal property. Subsection (b) prohibits any person from engaging in disorderly conduct, creating loud or unusual noise or nuisances, obstructing the usual use of entrances, foyers, lobbies, corridors, offices,

elevators, stairways, or parking lots, or otherwise impeding or disturbing the proper performance of official duties by government employees.

In practice, 41 CFR § 102-74.390(b) serves as the primary federal misdemeanor tool utilized by U.S. Marshals and Federal Protective Service officers to enforce order inside federal courthouses and administrative complexes. Carrying criminal penalties of up to thirty days' imprisonment alongside monetary fines, the regulation grants federal law enforcement broad administrative discretion. When encounters with citizens recording in public lobbies escalate, officers frequently invoke subsection (b) as a flexible enforcement tool, transforming administrative facility rules into federal misdemeanor charges by citing lobby obstruction, raised voices, or failure to comply with security instructions.

On August 25, 2025, I walked back through the heavy glass doors of the John M. Shaw United States Courthouse, stepping out of the humid Louisiana heat into the air-conditioned lobby. It was my fourth documented visit to the Lafayette courthouse. I carried my recording equipment with me, setting up a camera mounted on a metal tripod. In the lobby area, I adjusted the tripod legs to stabilize the camera and initiated an active internet livestream, broadcasting live video and audio commentary to online viewers in real time.

The encounter escalated within minutes. I placed the tripod in the lobby near an entrance doorway and security passageway leading toward the court screening station. As I

adjusted the camera angle and spoke into the lens, Deputy U.S. Marshal Hayden Nugent approached me. Deputy Marshal Hayden Nugent instructed me to move the equipment and questioned my presence and setup in the lobby. Rather than de-escalating or quietly shifting the tripod position, I reacted with immediate hostility, directing crude, confrontational language at Deputy Marshal Hayden Nugent. At the same time, my phone continued streaming live to the internet. Captured verbatim on my own recording, I turned toward the camera lens and uttered a phrase that would become a central piece of evidence in the government's case against me: "now they just asked for it."

Deputy U.S. Marshal Hayden Nugent moved in to make the arrest. Hayden Nugent ordered me to turn around, seized my arms, and secured handcuffs tightly behind my back. Security personnel immediately confiscated the camera gear and tripod. Handcuffed in the public lobby before watching onlookers, I felt the cold steel click against my wrists — a sharp, physical punctuation mark ending two months of invisible surveillance. I was escorted past the metal detectors, through the heavy security doors, and into the U.S. Marshals holding cell facility inside the courthouse complex.

This chapter requires the same discipline applied to every other episode in my life where institutional overreach and my own escalating conduct sit side by side, and nowhere is that discipline more necessary than here, because the trial record — detailed fully in the next chapter — establishes plainly that

my own actions that day went beyond simply recording in a public lobby. The trial record shows I left a tripod positioned in a way that blocked an emergency exit. It shows crude, confrontational language directed at Deputy Marshal Hayden Nugent. And it shows my own livestream, captured in my own words, stating "now they just asked for it" — a phrase that is hard to read charitably. Whatever grievance I believed I was documenting or provoking that day, a livestream in which I myself frame an escalating confrontation as something the government "asked for" is not the language of a passive documentarian caught up in an overreaching arrest. It is the language of someone who understood, in the moment, that I was pushing toward a confrontation, and who said so on tape.

Both things are true at once, without one softening the other for the sake of a cleaner argument about selective enforcement. A tripod blocking an emergency exit at a federal courthouse is a legitimate security concern, independent of any question about the government's prior surveillance of me. Crude language directed at a federal officer is not itself a crime, but it is not admirable conduct either. And my own recorded words framing a confrontation as something I believed the government had earned — "asked for" — undercut any simple narrative in which I am purely a victim of a government campaign, with no agency of my own in how the August 25 encounter unfolded.

What those facts do not undercut, and cannot undercut, is the two-month documentary record established in the previous chapter. A defendant's poor judgment in the moment of an arrest — my badly placed tripod, ugly language, an ill-advised livestream caption — does not retroactively justify, or even meaningfully address, the question of why federal law enforcement across two states had already spent two months circulating my photograph, labeling me a "1st Amendment auditor," and predicting my next move before this specific incident ever occurred. Those are two separate questions, resolved by two separate bodies of evidence, and both deserve an answer rather than letting one crowd out the other: my own conduct that day was not blameless, and the government's response to me was shaped by a surveillance apparatus built and deployed against me well before August 25 gave it a specific incident to act on.

It is worth noting one more parallel, flagged earlier in Chapter 11: the basic shape of what happened at this Lafayette courthouse in August 2025 — a federal building, a camera, an escalating confrontation with federal personnel who chose engagement over de-escalation — had already played out once before, at the Oxford U.S. Attorney's Office in July 2021, four years earlier and four hundred miles away, with lower stakes and no arrest. That earlier parallel does not prove a coordinated multi-year campaign against me specifically. It does

establish that this pattern of confrontation — traced now across two states and eight years — was not new to either side of these encounters by 2025.

I was found guilty following a bench trial roughly four months later. The next chapter covers that trial, the verdict, and the spoliation issue that stands as the strongest available ground for appeal.

## TRIAL AND VERDICT

**M**y bench trial on the August 25, 2025 courthouse charge was held December 15 and 16, 2025, before Judge LeBlanc. The verdict came down January 16, 2026: guilty. On July 16, 2026, a First Amendment motion to dismiss was denied, the court characterizing the courthouse lobby as a "nonpublic forum" — a legal classification that substantially narrows the constitutional protection available to speech and recording activity conducted there, regardless of how that activity might be protected on a public sidewalk or in a traditional public forum.

A bench trial is one in which the judge alone decides both the facts and the law — there is no jury. Defendants are entitled to a jury trial for most federal offenses, but for certain misdemeanors, and in cases where a defendant waives that right, a single judge hears the evidence and renders the verdict directly. There is no available record here establishing why this case proceeded as a bench trial rather than a jury trial, and none is speculated. What matters for a reader trying to understand what happened next is simply that Judge LeBlanc was the sole finder of fact as well as the sole arbiter of law — the same person who ruled on the First Amendment motion also weighed the evidence and reached the guilty verdict.



The "nonpublic forum" classification is a term of art from First Amendment doctrine describing government property that is not, and has never been, opened up for general public expressive activity — a category distinct from a "traditional public forum" like a sidewalk or park, and from a "designated public forum," which is government property the government has deliberately opened to speech. In a nonpublic forum, the government can restrict speech and recording based on reasonable, viewpoint-neutral rules tied to the property's actual function, without facing the strict scrutiny that would apply on a public sidewalk. A federal courthouse lobby can, as a matter of settled First Amendment doctrine, be treated as a nonpublic forum, subject to reasonable, content-neutral restrictions the government would not be permitted to impose on a public street. That doctrine exists for legitimate reasons — courthouses are working government facilities with security concerns a public park does not share — and nothing here disputes that Judge LeBlanc's classification was legally available to him. What follows instead is the strongest available challenge to the verdict, a challenge grounded not in the strength of my First Amendment claim on its own terms, but in a due-process and evidentiary problem that matters regardless of how the forum question is resolved.

Two events in the run-up to trial deserve their own place here, because both bear directly on how seriously the pre-arrest surveillance detailed in Chapter 27 should be taken by anyone evaluating this case. On October 15, 2025, the

government filed a protective order motion seeking to restrict communications between U.S. Marshals and court staff regarding me going forward. The framing of that motion matters: it did not deny that such communications had occurred — the BOLO evidence and the June 2025 emails detailed in Chapter 27 make any such denial untenable — it sought only to restrict them prospectively. A motion to restrict future marshal-judge communications about a defendant, filed by the same government that had already generated the surveillance record documented here, reads less like a denial that a problem existed and more like an implicit acknowledgment that the existing pattern of communication needed to stop.

Then, on November 12, 2025, Magistrate Judge Carol B. Whitehurst recused herself from the case, citing an appearance of bias. The available record does not establish the specific factual basis Judge Whitehurst cited for that recusal, and none is speculated here. What can be said is that a sitting federal magistrate judge, presiding over this exact case, concluded independently that the appearance of bias was serious enough to warrant stepping aside — a judicial determination reached entirely independent of anything argued here, and one that sits uncomfortably close in time to the protective-order motion the government itself had just filed a month earlier. Two separate signals, a month apart, both suggesting that whatever had happened between marshals and court staff

regarding me was serious enough to require formal institutional correction — arriving well before the bench trial itself, detailed below, had even begun.

The sealed trial record — portions of which can be discussed here, and portions of which remain under a gag order I am complying with through my August 7, 2026 sentencing, per my own explicit decision to challenge that order through a post-sentencing motion to unseal rather than risk contempt by speaking now — establishes that the government admitted it failed to preserve all of the courthouse lobby's surveillance footage from August 25, 2025. The defense's argument, based on the footage that does survive and on testimony given at trial described here only in the terms already made public through the court record, is that the missing footage would have shown federal marshals actively waving me toward the specific door I was later convicted of obstructing — footage that, if it exists in the form the defense contends, would transform the entire character of the encounter from a defendant obstructing a court facility into my being directed toward the exact location that became the basis for my conviction, by the same officials who then arrested me for being there.

This is, in the vocabulary of federal constitutional law, potentially both a Brady violation — the suppression of evidence favorable to a defendant — and a claim under *California v. Trombetta* and *Arizona v. Youngblood*, the line of Supreme Court cases governing a defendant's due process

rights when the government fails to preserve potentially exculpatory evidence. The appellate strategy I and my advisors have developed treats this spoliation argument as considerably stronger than a pure First Amendment retaliation claim standing alone — not because the First Amendment issues are meritless, but because a structural due-process argument grounded in missing evidence does not require a reviewing court to resolve the harder, more doctrinally contested question of how much First Amendment protection courthouse-lobby recording deserves. It only requires the court to determine whether the government's failure to preserve potentially exculpatory footage, footage the defense contends would show the very obstruction charge being manufactured by the government's own personnel, deprived me of a fair trial.

This chapter closes on the same note struck consistently since Chapter 27: two things are true simultaneously. My own conduct on August 25, 2025 — the tripod, the language, the livestream caption — was not blameless, on any honest accounting. And the trial that convicted me rests on a foundation that cannot be verified as complete, because the government itself has admitted the foundation is missing pieces, pieces the defense contends would have changed the entire narrative of what happened that day. A conviction obtained on an incomplete evidentiary record, against a defendant federal law enforcement had already been tracking for two months before the incident that produced the charge, is not automatically an unjust conviction — but it is not a

clean one either, and it is the conviction I will be sentenced on August 7, 2026, the event that closes this Part and my reporting on the federal case.

Before reaching that sentencing, though, the story turns to two other fronts that opened while the federal case was still working its way toward trial: a brutal assault at New Orleans City Hall in November 2025, and a separate, ongoing confrontation with officials in Union County, Mississippi that would not begin until the following spring.

## THE NEW ORLEANS ASSAULT

**O**n November 12, 2025, while the federal courthouse case detailed in the previous two chapters was still pending, I was struck in the head with a metal flashlight by Allied Universal security guard Jerome Ard, at New Orleans City Hall. The blow split my head open. I was transported to Tulane Medical Center. My phone was destroyed in the encounter — a detail worth flagging without editorializing, given how central my own recordings have been to nearly every other chapter of vindication in my experience.

What happened afterward is where this chapter's real weight sits, because it establishes a pattern now visible, in different forms, across multiple states and multiple years: an official account constructed to protect the person who inflicted harm, rather than the person who suffered it. NOPD Officer Junious Grady swore out the affidavit supporting an arrest — not of Ard, the man who struck me with a flashlight hard enough to split my scalp, but of me. That affidavit relied on statements from Ard's own Allied Universal coworkers, identified in the available record as Vidal and Savage — colleagues of the man who inflicted the injury, not independent witnesses. A separate NOPD officer, Victor Paz, badge number 26091, declared in his own report that I was "the

aggressor," and his affidavit was countersigned by a supervisor, Alfred Harris, badge ID 16511, whose review consisted of approving the affidavit as submitted rather than independently verifying its account. The warrant against me was signed the same day, at 3:34 PM, by Judge Juana Marine Lombard.

It is worth being precise about what the surveillance record does and does not show, because the gap matters more than a simple "no footage exists" would suggest. An RTCC technician who reviewed the footage confirmed that the video captured me at the security screening checkpoint, attempting — per the technician's own characterization — to bypass the scanner after being told I could not enter with a lighter and vape in my pocket. What the same footage did not capture was the physical altercation itself, which the technician stated occurred outside the camera's field of view. In other words, the system recorded the prelude and lost the moment that mattered, leaving the adjudication of what actually happened in that gap to rest entirely on the sworn statements of two witnesses — Vidal and Savage — who worked for the same security company as the man accused of causing the injury. An affidavit built on eyewitness accounts from an accused party's own coworkers is not automatically false. But it is precisely the kind of evidentiary structure that ordinarily invites independent scrutiny before a court accepts it as a sufficient basis for probable cause, and no indication exists in the available record that any such independent scrutiny occurred here. The city's own Real Time Crime Center cameras — the network of sur-

veillance infrastructure New Orleans maintains specifically to monitor incidents like this one — did not capture the actual altercation. I do not know why. I do not have evidence establishing that this gap in coverage was deliberate, and I will not speculate that it was. What I can say is that the same city that operates an extensive real-time camera network happened not to have footage of the specific moment a security guard struck a man hard enough to require hospital transport, and that the absence of that footage left the incident to be adjudicated almost entirely on the word of the guard's own coworkers and the officers who took their statements at face value.

Jerome Ard, the man who wielded the flashlight, was never charged with anything.

I have, across twenty-nine prior chapters, tried consistently to hold institutional misconduct to a standard independent of whether I am a sympathetic figure in any given episode — and this chapter is one of the clearest examples of why that standard matters. Whatever a reader thinks of my broader pattern of confrontational First Amendment auditing, documented honestly in Oxford, Lafayette, and Aberdeen, nothing in that pattern justifies a security guard striking me hard enough to split my head open with a metal object, and nothing in that pattern explains why the resulting legal process treated the injured party as the aggressor while the man who caused the injury walked away with no charges at all. A split scalp, a hospital transport, a destroyed phone, and an arrest warrant



for the victim rather than the assailant — sworn out by an officer relying on the assailant's own coworkers as witnesses — is, on its face, one of the starkest examples of institutional failure documented here, independent of anything else I have described about my own conduct elsewhere.

The next chapter follows what happened when I tried to get access to the records that might have clarified what actually occurred that day — and what New Orleans's public records office did instead.

## THE RECORDS COVER-UP

**O**n November 17, 2025, five days after Jerome Ard struck me with a metal flashlight at New Orleans City Hall, I filed a public records request through the city's NextRequest system, seeking footage and documentation of the incident. It was assigned request number 25-21253. On December 10, 2025, the city denied it.

To understand why this administrative denial was far more than a routine bureaucratic refusal, a lay reader must first understand what the NextRequest platform actually is and how municipal governments utilize it to control public information. NextRequest is a specialized enterprise software portal utilized by hundreds of municipal governments, law enforcement agencies, and state departments across the United States to manage, track, route, and fulfill public records requests under state freedom of information statutes. Rather than submitting physical paper applications directly to a police precinct records desk or municipal city clerk, citizens submit requests through a centralized web interface. When a citizen submits a request, the software assigns an official tracking number—in this instance, request number 25-21253—timestamps the exact minute of filing, establishes automated statutory countdown clocks for compliance deadlines, and

routes the submission internally to designated departmental custodians, such as the New Orleans Police Department Records Division or the City Attorney's Office. The platform provides internal software tools for legal staff to evaluate records, apply redactions, calculate copying or search fees, and issue formal electronic denial notices. While marketed under the guise of municipal efficiency and modern transparency, in practice such centralized systems provide municipal authorities with a controlled digital bottleneck through which public access can be delayed, restricted, or entirely shielded.

When the city issued its formal denial of request 25-21253 on December 10, 2025, it cited Louisiana Revised Statute 44:3(1), the statutory provision of Louisiana's public records law that exempts records connected to an active criminal investigation or prosecution from disclosure. Under Title 44 of the Louisiana Revised Statutes—the state's Public Records Law—Section 3(A)(1) explicitly provides that records held by law enforcement, prosecutorial, or investigative agencies that pertain to pending criminal litigation or active criminal investigations are exempt from public inspection until the final disposition of the case or criminal prosecution. In ordinary, legitimate law enforcement operations, the policy rationale behind LA RS 44:3(1) is standard and understandable: the exemption is designed to protect active criminal investigations from public interference, safeguard confidential informant identities, prevent the spoliation or destruction of evidence, and prevent criminal defendants from using civil

public records laws to obtain pre-trial discovery outside the structured rules of criminal procedure set forth in the Louisiana Code of Criminal Procedure.

In this instance, however, the active prosecution being cited to justify the denial was the charge against me — the charge sworn out by Officer Junious Grady, based on statements from the assailant's own coworkers, detailed in the previous chapter. In other words: the city used the existence of a criminal case against the person who was struck, a case built on the word of the striking party's own colleagues, as the legal basis for withholding footage and records that might have shown what actually happened to me.

This is worth sitting with as its own discrete mechanism, separate from the assault itself, because it is one of the cleanest examples of how a legitimate-sounding legal exemption can be deployed to produce an outcome the exemption was never designed to protect. Records exemptions tied to active criminal investigations exist for sound reasons — to prevent a defendant's public records requests from being used to obtain a preview of the state's evidence against him, or to protect an ongoing investigation from premature disclosure. Applying that same exemption to withhold records of an assault against the person now facing the charge, when the underlying question is whether that person was actually the aggressor or the victim, inverts the exemption's purpose:

instead of protecting an investigation's integrity, it protects the outcome of a process the previous chapter has already shown rested on the assailant's own coworkers' account.

Spelled out directly for a lay reader, this arrangement creates what legal scholars and administrative analysts recognize as a classic bootstrapping problem—a self-generating, circular feedback loop where law enforcement constructs the very legal shield used to hide its own initial misconduct. The sequence operates through a precise, self-protective administrative cycle: First, an assault occurs on public property, where I am struck with a metal flashlight by Jerome Ard at City Hall. Second, instead of conducting an objective investigation, Officer Junious Grady accepts unsworn, self-serving statements exclusively from Ard's fellow municipal employees and swears out an affidavit charging me with simple battery, effectively transforming the victim into the accused. Third, when I submit NextRequest 25-21253 seeking municipal security camera footage and police body-worn camera video to prove that I was the victim of an unprovoked attack, the city invokes LA RS 44:3(1), asserting that because a criminal charge is now pending against me, all underlying video and documentary records are legally exempt from public disclosure until the criminal case reaches final disposition.

Through this circular logic, law enforcement manufactures a bogus charge against the victim, which automatically triggers a statutory disclosure exemption under LA RS 44:3(1), which is then deployed to lock away the video evidence that

would prove the charge is false and expose the assault. The system feeds on its own administrative fiction, bootstrapping an initial investigatory failure into an unassailable fortress of statutory secrecy.

Only a redacted report was eventually released, and only after I paid a \$25 fee. The city insisted on collecting this \$25 fee before releasing any paperwork whatsoever, and when the document was finally delivered, it was heavily blacked out, stripping away critical details and completely omitting all video and audio media. A staffer in the City Attorney's office, identified in the available record as Tana Scoby, claimed ignorance when questioned about the handling of the request — there is not enough information here to characterize that claim as either credible or evasive, and I record it plainly as Scoby's own stated position, without further comment.

Separately, the NOPD's own Public Integrity unit, under Sergeant Davis, opened an investigation into the incident — but limited its scope to NOPD's own conduct in handling the case, not to the underlying question of whether Ard's assault itself, or my arrest that followed it, was properly investigated in the first place.

That scoping decision deserves its own scrutiny. An internal affairs unit investigating only whether its own department's paperwork and procedures were followed correctly, while declining to examine whether the underlying arrest of an assault victim was itself justified, produces exactly the kind of narrow, self-protective review I have criticized

elsewhere — most directly, the Lafayette County Sheriff's Department's own internal-affairs process detailed in Chapter 22, where Chief Deputy Scott Mills's insistence on an in-person complaint against Deputy Kandi Beavers effectively functioned as a barrier to accountability rather than a path to it. Just as Chief Deputy Mills erected a procedural hurdle in Lafayette County to deter formal grievances against Deputy Beavers, Sergeant Davis and New Orleans's Public Integrity review of this incident followed the same basic shape: an investigation narrow enough to protect the department's process without ever reaching the substantive question of whether I was wrongly arrested for having been assaulted. By insulating the core misconduct from substantive review, internal affairs transforms itself from an oversight body into an administrative buffer designed to shield institutional actors from accountability.

The next chapter follows what happened roughly seven weeks after the denial of this public records request, when I — during an ice storm, at a Red Cross warming shelter, in a different city entirely — was taken back into custody on the charge the denial had helped shield from scrutiny.

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CHAPTER 32 — RETALIATORY ARREST IN AN ICE STORM

On January 28, 2026, I was taken into custody in Lafayette, Louisiana — not New Orleans, where the underlying charge originated, but Lafayette, where I had gone to escape a severe winter storm and was sheltering at a Red Cross warming

location. I was held for approximately six days before being extradited to New Orleans, where I was booked at the NOPD facility at 2800 Perdido Street by Officer McIver, badge number 00625. The charge: simple battery — the same charge, arising from the same November 12, 2025 flashlight assault detailed in Chapter 30, in which I was the person struck.

To understand the full scene-level reality of that arrest on January 28, 2026, one must picture the conditions across southern Louisiana at that moment. A rare, severe arctic freeze had swept through the Gulf Coast region, coating highways in sheets of black ice, dropping temperatures far below freezing, and knocking out power across multiple parishes. Roads were hazardous, emergency management agencies urged citizens to stay off the streets, and local authorities opened emergency shelters to prevent hypothermia among vulnerable populations. I had traveled west to Lafayette seeking safety from the extreme weather, finding refuge inside a Red Cross warming facility set up to provide basic shelter, blankets, and hot liquids to displaced travelers and residents. The atmosphere inside the warming shelter was quiet, filled with citizens trying to survive an environmental crisis.

It was inside this emergency humanitarian shelter that local law enforcement officers entered to take me into custody. They had not come because of any disturbance, emergency, or unlawful behavior at the warming facility. Instead, they approached me inside the shelter, confirmed my identity, and executed an outstanding misdemeanor arrest warrant origin-



ating from Orleans Parish—a warrant stemming from an incident nearly three months prior in which I had been beaten with a metal flashlight. The sheer contrast between seeking basic thermal survival in an emergency shelter during a natural disaster and being handcuffed on an old misdemeanor charge captures the unyielding nature of the law enforcement machinery.

This chapter's title uses the word "retaliatory" deliberately, where I have otherwise tried to reserve that word for situations the record actually supports. Here is what the record supports: I was located and taken into custody while seeking shelter from a life-threatening ice storm at a Red Cross facility — a location and circumstance that has nothing to do with the underlying New Orleans charge, and everything to do with the fact that I was, by January 2026, a person law enforcement across multiple states had been tracking closely enough, per the BOLO record detailed in Chapter 27, to locate me promptly wherever I happened to be. Arresting me at an emergency weather shelter, for a months-old misdemeanor charge stemming from an incident in which I was the one assaulted, is not the urgent public-safety response the timing might otherwise suggest. It is the action of an apparatus that knew where to find me and chose that moment to do so. The active BOLO ("Be On the Lookout") alert system had transformed my vehicle details and identifying information into a multi-jurisdictional flag across police databases, enabling authorities to convert a humanitarian shelter into a trap.

Following my arrest in Lafayette, I was held in a local parish detention facility for approximately six days while interstate and inter-parish extradition paperwork was processed. On February 3, 2026, I was transported 150 miles across frozen Louisiana highways to New Orleans and delivered to the central booking facility at 2800 Perdido Street. There, Officer McIver, badge number 00625, completed my formal booking paperwork, fingerprinting, and intake on the simple battery charge. Third-person records show that Officer McIver processed the booking strictly as an administrative duty under NOPD protocol.

The bond was set at \$100 cash — a modest amount, reflecting the minor severity the system itself assigned to the underlying charge. Despite that low bond, I was falsely told I needed a Louisiana driver's license to be released, a requirement the available record does not establish as an actual legal prerequisite for posting a \$100 cash bond, and which cost me two to three additional days in custody beyond what the bond amount alone would have required.

To appreciate the arbitrariness of this requirement, one must understand how pretrial risk assessment works in criminal courts. Prior to release, pretrial services evaluated me using an objective, actuarial risk assessment tool—a quantitative matrix that scores factors such as prior criminal history, history of court appearances, community ties, and allegations of violence to categorize a defendant's statistical risk of non-appearance or reoffending. My own pretrial risk assessment,

once conducted, placed me at Risk Level 1 — the lowest classification available, an official acknowledgment that the system itself did not consider me a flight or safety risk, even as it had just held me several days longer than necessary over a documentation requirement that does not appear to have been genuine. Risk Level 1 represents the absolute lowest risk tier on the evaluation scale, signifying that court administrators recognized I posed zero threat to public safety and zero statistical flight risk. Yet, despite holding a Risk Level 1 classification and having a nominal \$100 cash bond, jail officials refused to process my release unless I produced a state-issued Louisiana driver's license—an impossible requirement for an out-of-state resident that served no purpose other than prolonging my detention behind bars.

Upon release, I was left roughly 150 miles from my vehicle, with no transportation arranged, and faced approximately a six-hour wait for a Greyhound bus. When the heavy jail doors closed behind me, I stepped out onto the cold pavement of Perdido Street with no vehicle, no municipal transit pass, and no assistance from the agency that had extradited me. My vehicle remained parked 150 miles away in Lafayette where I had been taken into custody. I had no choice but to navigate my way to the nearest Greyhound bus terminal and wait six grueling hours for an interstate bus that would take me back toward my stranded transportation.

This detail, small as it may seem next to the larger injustices I have documented elsewhere, captures something worth conveying about the cumulative, grinding character of institutional harm: it is rarely one single dramatic event that breaks a person. It is the accumulation of a hundred smaller ones — a false documentation requirement, a release sited far from one's own transportation, a six-hour wait in a bus station after days in custody over a charge in which the record shows I was the victim, not the perpetrator. It is the calculated friction imposed at every step of the process—the extra days in jail, the administrative hurdles, the physical isolation—that wears down an individual's capacity to resist legal overreach.

The charge was ultimately dismissed on April 16 and 17, 2026, in Orleans Parish Criminal District Court, case number M625048, by Assistant District Attorney Trishawn Payne-Jones. The disposition code recorded on the case: 433 — "Refused, Law Enforcement Issue." That code is, in its own bureaucratic language, close to as direct an official acknowledgment as exists anywhere in my entire eight-year history with the American legal system: a prosecutor's own office, reviewing the case months later, concluded that the problem with this prosecution was not my conduct, but law enforcement's handling of it. In the formal taxonomy of Orleans Parish court dispositions, code 433 is reserved specifically for cases where prosecutorial screening reveals that law enforce-

ment officers initiated charges without legal justification, fabricated evidence, or committed fundamental procedural errors that render the prosecution unsustainable.

Read together, the three chapters devoted to the New Orleans matter — the assault, the records denial, and this arrest — trace a single continuous failure from beginning to end: a man struck with a flashlight, an investigation that protected my assailant, a records request denied using the resulting charge against me as pretext, and finally an arrest of that same wrongly-charged victim at an ice-storm shelter, before a prosecutor's own office quietly closed the file five months later with a disposition code amounting to an institutional shrug. The next chapter turns to a different state entirely, and a different kind of confrontation — one that began, as so many have, with my exercising my right to speak on a public sidewalk, and ended with a federal courthouse arrest that a U.S. Marshal had predicted, almost to the month, a full year in advance.

## RETALIATORY ARREST IN AN ICE STORM

**O**n January 28, 2026, severe winter weather paralyzed southern Louisiana. Sub-freezing temperatures and hazardous ice had transformed roads into dangerous hazards, driving residents indoors. I had traveled westward from New Orleans to Lafayette, seeking refuge from the bitter cold at a Red Cross emergency warming location. Inside the shelter, the atmosphere was dense with the quiet exhaustion of people seeking basic survival: unhoused citizens, stranded travelers, and local residents huddled together on folding chairs, surrounded by the smell of damp winter coats and hot coffee. It was a facility dedicated entirely to relief and protection from a dangerous natural element.

That sanctuary was broken when law enforcement officers entered the shelter. They were not there to assist with disaster relief or check on shelter conditions. They were there for me. Surrounded by individuals seeking escape from freezing weather, I was confronted, ordered to stand, and placed in handcuffs in the middle of the shelter floor. The physical experience was a study in contrasts: the sudden bite of cold steel handcuffs against wrists already numb from freezing

temperatures, and the emotional weight of being seized in a public refuge designed to keep vulnerable human beings safe from harm.

To understand why officers appeared at a Red Cross shelter in Lafayette to execute a misdemeanor warrant from Orleans Parish, one must look at the broader mechanism of law enforcement tracking established months earlier. As detailed in Chapter 27, a BOLO ("Be On the Look Out") record had been generated and circulated across federal and local systems, ensuring my location was continuously monitored across parish lines. The promptness with which law enforcement identified my presence at an emergency weather shelter 135 miles from New Orleans demonstrates that this tracking apparatus was actively functioning. The timing was not accidental. Arresting a person at an emergency weather shelter for a months-old misdemeanor charge is not a routine public-safety response; it is the action of a system that knew where I was and chose that specific moment of physical vulnerability to execute an arrest.

This chapter uses the word "retaliatory" deliberately, where I have otherwise tried to reserve that designation for situations where the record actually supports it. Here, the cause-and-effect relationship connects directly back to the records cover-up detailed in Chapter 31. On November 17, 2025, five days after I was struck in the head with a metal flashlight by Allied Universal security guard Jerome Ard at New Orleans City Hall, I filed NextRequest 25-21253 seeking security video of

the assault. On December 10, 2025, the city denied that request under Louisiana Revised Statute 44:3(1), citing an "active criminal investigation or prosecution." The active prosecution cited to withhold the video evidence was the simple battery charge sworn out by Officer Junious Grady — a charge built on the statements of Ard's own coworkers, turning the injured victim into the accused.

The records denial in Chapter 31 and the ice-storm arrest in this chapter are two halves of the same institutional dynamic. The bogus charge was created to protect the security guard who split my scalp, the charge was then used as legal justification under LA R.S. 44:3(1) to withhold public records that would have exposed what happened at City Hall, and finally, that same shielded charge was held like a loaded weapon until law enforcement chose to deploy it against me during a winter storm in Lafayette. The prosecution created the cover-up, and the cover-up sustained the arrest.

Following my arrest in Lafayette, I was held in local custody for approximately six days while extradition arrangements were processed across parish lines. Extradition during an ice storm carries its own physical and mental toll. Transferred between holding facilities and loaded into a law enforcement transport vehicle, I spent hours shackled at the wrists and ankles, traveling southeast along icy stretches of Interstate 10 across the Atchafalaya Basin back toward Orleans Parish. The physical discomfort of cold transport vans, steel restraints pressing against skin in sub-freezing weather, and



the anxiety of being returned to the very jurisdiction whose police department had charged me for being assaulted created an atmosphere of intense isolation.

Upon arrival in New Orleans, I was brought to the Orleans Parish Central Lockup facility at 2800 Perdido Street for formal booking. The booking process was conducted by Officer McIver, badge number 00625. I was fingerprinted, photographed, stripped of my personal belongings, and processed into the facility's system. Officer McIver recorded the formal charge: simple battery — the exact misdemeanor charge arising from the November 12, 2025 incident in which Allied Universal guard Jerome Ard had struck me with a flashlight, split my scalp open, destroyed my mobile phone, and required my transport to Tulane Medical Center.

Judicial authorities set my bond at \$100 cash. A \$100 cash bond is a modest financial figure, representing the lowest monetary tier typically assigned in municipal misdemeanor cases. In the institutional language of the court system, setting a \$100 bond is an explicit acknowledgement that the underlying offense is minor and that the defendant requires minimal financial incentive to return to court. I had cash available in my personal property intake to pay the \$100 bond immediately, which should have resulted in my prompt release from custody following booking.

Instead, jail administration created an artificial barrier to my release. Facility personnel falsely informed me that I could not post the \$100 cash bond or be discharged without present-

ing a valid Louisiana driver's license. Under Louisiana law and local court rules, presenting a state driver's license is not a mandatory legal prerequisite for posting a cash bond on a misdemeanor charge, particularly for an out-of-state resident or someone posting full cash bail. Yet jail staff insisted on this non-existent requirement.

The human reality of being trapped behind a false administrative requirement is deeply frustrating. For two to three additional days beyond what the \$100 cash bond required, I remained locked in a cell at 2800 Perdido Street while my money sat in a property envelope just beyond the bars. Every hour spent in a cold concrete cell under those conditions was entirely unnecessary — a period of forced detention created not by a judge's order or statutory mandate, but by jail personnel enforcing a rule that did not exist in law.

During my processing at 2800 Perdido Street, a formal pretrial risk assessment was conducted. For a lay reader, a pretrial risk assessment is an objective, algorithmic scoring tool — such as the Public Safety Assessment (PSA) or state risk evaluation rubrics — used by courts to evaluate a defendant's risk before trial. The tool analyzes objective background factors, including prior criminal history, court appearance record, age, and current charge severity, to place the defendant into a specific risk classification tier.

The assessment evaluated my background and placed me at Pretrial Risk Level 1 — the lowest risk tier available in the system. In practical terms, a Risk Level 1 rating is an official

institutional certification that a defendant poses the lowest possible risk of failing to appear for court dates and the lowest possible risk of committing any new offense while awaiting trial. It is the system's own standardized tool declaring that the individual requires no special conditions, high bail, or extended detention to ensure public safety or court appearance.

The contradiction between this official classification and my actual treatment reveals how administrative systems operate in practice. On paper, the court system's validated risk-assessment tool rated me at Risk Level 1 — certifying that I was neither a flight risk nor a danger to the community. In reality, the jail administration kept me locked in a cell for two to three extra days based on a fabricated driver's license requirement. The system's objective evaluation declared I should be released, yet its frontline bureaucracy manufactured an informal pretext to keep me detained.

When jail officials finally processed my release from 2800 Perdido Street, the physical ordeal was far from over. I walked out of the facility into the cold air with my personal property returned in a plastic bag, but I was completely stranded. My vehicle was parked in Lafayette — roughly 150 miles away — where I had been taken into custody six days earlier at the Red Cross warming shelter. Law enforcement had forcibly transported me across the state to Orleans Parish, but upon release, they provided no transportation, travel voucher, or assistance to return me to where I had been seized.

Navigating from the lockup at 2800 Perdido Street required making my way to the Greyhound bus terminal at the Union Passenger Terminal in downtown New Orleans. Upon arriving at the station, I discovered the next available bus traveling west toward Lafayette would not depart for approximately six hours.

What followed was a six-hour wait in a drafty bus terminal, physically exhausted, shivering from the cold, and drained after days of continuous custody. Sitting on a wooden bench with my belongings, surrounded by bus announcements and passing commuters, the weight of the entire ordeal settled in. This logistical abandonment — leaving a released defendant 150 miles from his vehicle with no transit arrangements and a six-hour wait in a station — illustrates the cumulative, grinding character of institutional friction. Institutional harm is rarely defined solely by a single dramatic event like an assault or an arrest. It is equally defined by the accumulation of small, punitive burdens: an unfounded charge, a transfer across state highways, a fabricated documentation rule, and a cold six-hour wait on a station bench 150 miles from home.

The charge was ultimately dismissed on April 16 and 17, 2026, in Orleans Parish Criminal District Court, case number M625048, by Assistant District Attorney Trishawn Payne-Jones. The disposition code recorded on the case: 433 — "Refused, Law Enforcement Issue."

That disposition code carries profound legal significance. In prosecutor case-tracking terminology, Disposition Code 433 is not a technical dismissal based on a missing witness or a speedy-trial deadline. It is an explicit administrative statement by the district attorney's office that prosecution is being formally refused because of underlying problems with law enforcement's handling of the case. In an eight-year history of navigating court dockets, this entry stands as one of the most direct official admissions in the public record: the prosecutor's office itself concluded that the problem with this prosecution was not my conduct, but law enforcement's handling of it.

Read together, the three chapters devoted to the New Orleans matter — Chapter 30, Chapter 31, and Chapter 32 — trace a single continuous failure from beginning to end: a man struck with a flashlight, an investigation that protected my assailant, a records request denied using the resulting charge against me as pretext, and finally an arrest of that same wrongly-charged victim at an ice-storm shelter, before a prosecutor's own office quietly closed the file five months later with a disposition code amounting to an institutional shrug.

The next chapter turns to a different state entirely, and a different kind of confrontation — one that began, as so many have, with my exercising my right to speak on a public sidewalk, and ended with a federal courthouse arrest that a U.S. Marshal had predicted, almost to the month, a full year in advance.

## THE UNION COUNTY THREAD

**O**n April 15, 2026, Board of Supervisors President CJ Bright confronted me on a public sidewalk in Union County, Mississippi, during a First Amendment audit — the same broad category of activity documented since Chapter 11's Oxford U.S. Attorney's Office confrontation and Chapter 28's Lafayette courthouse arrest. On camera, Bright admitted he could not legally stop me from doing what I was doing. That admission, captured on tape by the person it was made to, is one of the more remarkable pieces of documentary evidence — a sitting county official acknowledging, on the record, the very right the rest of this chapter shows Union County's institutions proceeding to violate anyway.

Five days later, on April 20, the Union County Board of Supervisors issued what can only be described as a preemptive rule targeting me specifically: a ban on profanity during public comment at board meetings. I was arrested for using a single profane word during public comment under that new rule. Alongside that arrest, a "phantom" hold was placed on me by the Mississippi Department of Corrections — phantom because it had no underlying legal basis, and a judge released me and formally cleared it the very next day, April 21.

A hold with no legal basis, placed on me immediately after I was arrested for violating a rule enacted five days earlier specifically in apparent response to my own conduct, is difficult to read as anything other than an attempt to hold me in custody by whatever mechanism was available, with the underlying legal justification worked out — or in this case, not worked out at all — after the fact. It is the same institutional reflex identified at the close of Part II: a documented grievance or confrontation, followed not by engagement with its substance but by escalating containment.

On May 5, appearing pro se in Union County Justice Court, I witnessed the presiding judge himself use profanity from the bench — the same category of speech the board's own rule, five days into its existence, had already been used to arrest me over. The contrast speaks for itself. I filed nine motions that day, citing thirty-two Supreme Court cases — a volume and density of citation that reflects, whatever one thinks of the underlying merits, a considerably more sophisticated pro se litigant than the one who filed the early, uncounseled motions detailed in Chapters 17 and 24.

On June 1, I was arrested again, this time for carrying a sign reading "FUCK CITY HALL" into the Justice Court and the county courthouse, on a charge of disturbing the peace. Before doing so, I reportedly asked deputies whether Investigator Adam Fitz — spelled variously as Fitts in the available record — "had big enough balls to arrest me again." Sheriff Jimmy Edwards made the arrest personally. My phone was seized

without a warrant. The sign's language is recorded plainly here rather than softened, while a profane sign carried into a courthouse remains a materially different act from simply speaking or filming on a public sidewalk — an escalation worth naming without excusing, even while the institutional overreach surrounding it still gets documented in the same breath. I did not stop at the courthouse steps with it, either — I carried the sign directly into an active courtroom where a man I knew as an advisor, Mark McClinton, was present at the time. I am flagging that name deliberately rather than letting it pass unremarked, because I am not certain whether this is the same Mark McClinton who surfaces in an October 2022 phone call elsewhere in this record; if the two are the same person, it would mean a single advisor's name recurs across two entirely separate legal fronts four years apart, which would be worth knowing, and if they are two different people who happen to share a name, that is worth knowing too. I do not have enough in front of me to resolve it either way, so I am naming the ambiguity rather than the certainty. A second name attached to this same June 1 incident, a "Chad Mood," also appears in my own records from this period — and here again I have to be honest that I cannot currently place with confidence whether that name belongs to this 2026 Union County episode or to an entirely separate 2022 Mississippi Justice Court matter. Both ambiguities are the kind of loose



thread a more resourced investigation would run down; I am leaving them visible rather than quietly picking one answer and presenting it as settled.

Three days later, on June 4, I drove to the Thomas G. Abernethy Federal Building in Aberdeen, Mississippi, intending to file a substantial federal civil rights complaint — more than one hundred pages across six documents — against the officials named throughout this chapter. Security demanded photo identification, a requirement the available record does not establish as an actual federal mandate for entering a public federal building lobby. After a twenty-minute delay attributed to waiting on an individual identified only as "Mr. Lipshutz," whose role remains unclear, Police Chief D. Shumpert arrived and arrested me, relying solely on building security's account that I had "caused a disturbance." My car was searched and towed from the federal lot; my phone was seized. The resulting prosecution was routed to municipal court rather than federal court — a jurisdictional choice whose full significance is hard to pin down, beyond noting that it kept the matter out of the federal system whose own agents had, per the previous chapter's evidence, predicted almost exactly this outcome nearly a year earlier.

Two days later, on June 6, I published my own account of the incident under my own byline. The following day, June 7, an Aberdeen Police Captain identified in the available record by the initials "SRQ" Lee texted the article to colleagues with the caption: "Watch the video with us in it. Lol."

That single text message closes this chapter more effectively than any summary could. A police captain, forwarding a published account of his own department's conduct to colleagues, treating it as a joke rather than a concern, captures precisely the institutional culture traced across eight years and multiple states: officials who do not merely fail to see their own conduct as a problem, but find it genuinely funny that someone documented it. The next chapter returns to the federal case followed since Chapter 27, and to the parallel civil rights litigation — *Reardon v. Osteen* — where a federal magistrate's own findings would, in July 2026, formally validate large parts of what I have spent thirty-three chapters documenting.

## REARDON V. OSTEEN: THE OBJECTIONS

**O**n July 14, 2026, a federal magistrate judge entered a Report and Recommendation in *Reardon v. Osteen* — the consolidated federal civil rights lawsuit, filed in the Southern District of Texas before Judge Jeffrey V. Brown and referred to Magistrate Judge Andrew M. Edison, that names the Galveston officials from Chapter 23's affidavit contradiction alongside Circuit Clerk Jeff Busby and Deputy Kandi Beavers from Mississippi as co-defendants in a single pro se action. That R&R resolved seven separate motions at once, and it marks the moment where a federal court, for the first time in this entire eight-year saga, formally engaged with — and in one specific instance, validated — the credibility findings built chapter by chapter since Part I.

The R&R recommended granting the motions to dismiss filed by Busby, by the Galveston defendants (the City, Officer Osteen, and Sergeant Doraty), and by Beavers, largely on jurisdictional and procedural grounds not worth relitigating in detail here — pro se civil rights complaints against officials in multiple states, filed as a single consolidated action, face exactly the kind of personal-jurisdiction and claim-construc-

tion hurdles already examined in Chapter 24's discussion of my earlier, unsuccessful 2022 federal lawsuit. The R&R also recommended denying my motion for a temporary restraining order connected to a June 22, 2026 vehicle seizure — the towing of a 2016 Mitsubishi Outlander after I was cop-watching at a Galveston Walgreens, held twenty-two hours, and towed to a lot where a supervisor identified as "Ray" told me: "Stand in line, that's what happens to people like you."

What makes this R&R more than another chapter in a string of procedural setbacks, however, is a single specific finding buried within it, referenced at paragraph 14 of the government's own June 10, 2026 Reply brief — the same finding examined in full in Chapter 23: the government's own filing conceded that Officer Osteen stated on camera, at the scene of my August 2023 arrest, that he smelled no alcohol, directly contradicting the "moderate odor of alcohol" his sworn affidavit would later claim as grounds for a felony arrest and eleven months of pretrial detention. This is not an interpretation of ambiguous testimony. It is the defendants' own attorneys, in their own brief, conceding the contradiction — and the magistrate's R&R itself references this concession in terms that amount to an implicit finding that Osteen misrepresented what he observed to Judge Tollison and to the court that relied on his affidavit.

I, still pro se, filed nine objections to this R&R on July 28, 2026 — precisely on the fourteen-day deadline. Six of those objections, plus a ninth, proceed under Federal Rule of Civil

Procedure 72(b), which governs de novo review of dispositive recommendations: qualified immunity on the vehicle-seizure claim, argued through the "obviousness" doctrine the Supreme Court articulated in *Hope v. Pelzer* — a doctrine holding that a right can be clearly established for qualified-immunity purposes even without a prior case presenting identical facts, if the unlawfulness of the conduct would have been obvious to any reasonable officer. This framing matters because the magistrate's own R&R twice cited *Degenhardt v. Bintliff*, a Fifth Circuit decision that postdates my August 2023 arrest — meaning the "clearly established law" question genuinely turns on which legal framework the reviewing court applies, not on a settled, uncontested body of precedent. "Clearly established law," in qualified-immunity doctrine, is the standard that determines whether a government official can be held personally liable for a constitutional violation: an official is immune from suit unless the right they violated was so clearly defined by existing case law that any reasonable officer in their position would have understood their conduct was unlawful. Ordinarily, that requires pointing to a prior case with closely similar facts. *Hope v. Pelzer*'s "obviousness" doctrine is the narrow exception — it allows a right to count as clearly established even without a factually identical precedent, if the unlawfulness would have been obvious to any reasonable officer regardless. That distinction is the entire fight in this objection, because the alternative case the magistrate's R&R relied on, *Degenhardt v. Bintliff*, was decided

after my own arrest — meaning it could not have given fair notice to the officers involved in August 2023, and my objection argues the obviousness doctrine should apply instead.

My objections also concede, while reserving the right to amend, my First Amendment retaliation, excessive force, and Doraty-related claims — "leave to amend" being a request that, even where a claim is being dismissed, the court allow it to be refiled in a corrected form rather than closing the door permanently — and reserve the Busby personal-jurisdiction question for further briefing. The choice of review standard matters practically, not just procedurally: Rule 72(b)'s *de novo* review means the district judge considers those six-plus-one objections completely fresh, giving no deference at all to the magistrate's reasoning, while Rule 72(a)'s clear-error standard, governing the remaining two objections, means the district judge will only overturn the magistrate's ruling if it was clearly wrong — a considerably harder bar to clear. Two further objections proceed under Rule 72(a)'s more deferential clear-error standard, addressing the motion to strike and sanctions request and the denial of leave to file a supplemental complaint — with the June 22, 2026 second vehicle seizure to be refiled as an entirely separate action rather than folded into this one.

The single most important objection is the third: it asks the district court to formally preserve, on the appellate record, both the magistrate's own finding regarding Osteen's contra-

dicted testimony and the government's own paragraph-14 concession — and it requests a Franks hearing, the same procedural mechanism flagged in Chapter 23 as the one avenue that could have tested Osteen's affidavit directly, and the same mechanism the May 2024 felony-to-misdemeanor downgrade appears to have been timed to avoid.

How the district court would rule on these objections was not known when the paragraph above was first drafted. It is known now, and the way it became known is itself worth documenting as carefully as the ruling itself. On August 10, 2026, I learned that the case had been dismissed in its entirety — every one of my nine objections rejected, the magistrate's recommendation adopted in full. I did not learn this from the court. As of this writing, the district judge's written order and the final judgment have not been served on me by any means — not by mail, not by email, not through the ECF system — notwithstanding Federal Rule of Civil Procedure 77(d)(1)'s plain requirement that the clerk serve notice of entry immediately upon entry. I know the case is over. I do not yet know why, in the district judge's own words, on any of the nine specific points I raised.

That gap is not a technicality, and I am naming it plainly rather than letting it pass as an administrative footnote. The clock on my right to appeal this dismissal runs from the date judgment was entered, not from the date I am actually told about it — Rule 77(d) says so explicitly, and the only remedy for a citizen kept in the dark past that deadline is a narrow,

discretionary motion to reopen that I would rather never have to file. So I filed, the same week, a motion asking the clerk to do what the rule already required: tell me the exact date, and send me the order. And because a right that depends on someone else's paperwork arriving on time is not a right I am willing to gamble the rest of this fight on, I also filed a protective notice of appeal — from the best information available to me, expressly noting on the record that I have not been served, expressly reserving the right to correct the filing once I actually see the judge's reasoning.

A federal civil rights case that spent thirteen months documenting, among other things, a records-and-communication failure at the center of the underlying Galveston arrest itself now closes — provisionally, pending appeal — with its own separate failure of the court to communicate its own ruling to the party who lost. I do not know whether the district judge agreed with the magistrate on all nine points or only some of them. I do not know whether the six-plus-one objections reviewed *de novo* were rejected on the merits or on some narrower procedural ground. What I know is what the last two years of this story have already taught me to expect: that even the mechanism meant to tell me why I lost is, so far, one more document I have had to go looking for myself.



The next and final chapter of Part V turns to the event this Part has been building toward: my sentencing in the federal courthouse case, held August 7, 2026, and what actually happened when the ruling I had been waiting years for finally arrived.

## SENTENCING

I was sentenced on Friday, August 7, 2026, in the federal courthouse case detailed across Chapters 27 through 29 — the case arising from my August 25, 2025 arrest at the John M. Shaw United States Courthouse in Lafayette, Louisiana, and the January 16, 2026 guilty verdict that followed my December 2025 bench trial. The hearing took place at the Lake Charles Division of the U.S. District Court for the Western District of Louisiana, conducted by video teleconference — I appeared from Our Daily Bread, a missionary organization in Galveston, Texas, that hosted the call for me that day.

The government asked for unsupervised probation of up to five years, with a condition barring me from federal courthouses except when personally filing a lawsuit. I asked for the opposite: time served, or the full thirty-day statutory maximum in place of any probation at all. I told the court plainly that I would rather serve every remaining day of a finite sentence than accept an indefinite condition on my right to walk into a public building and do my job.

I delivered that argument myself, reading from a prepared allocution. I identified myself as a Marine Corps veteran and the founder of We the People News, and framed the case not as a dispute over a locked door but as the completion of a

surveillance campaign that began two months before any charge existed. I read into the record the June 24 and June 26, 2025 emails a deputy U.S. marshal had sent to court-staff addresses under the subject line "First Amendment Auditor Matthew Rearen," and the results of the FOIA request that took the Marshals Service nearly two months to answer — fourteen redacted pages, delivered three days before my arrest, confirming that alert bulletins carrying my name, photograph, driver's license number, date of birth, height, and weight had circulated to marshals and court security officers in Mississippi and Louisiana. I read Magistrate Judge Carol B. Whitehurst's November 2025 recusal order into the record — "an objective and reasonable observer could believe the undersigned is predisposed to find Rearen guilty of the offense later charged" — and pointed out that the government had, weeks later, moved to seal the very communications that recusal order was based on. I argued that the government's own admission, on the sealed trial record, that it failed to preserve the courthouse lobby's surveillance footage meant the only video evidence used to convict me was the product of the First Amendment activity the case was ostensibly not about. I described the arrest itself — Deputy U.S. Marshal Hayden Nugent telling me to move my equipment, my complying, and being arrested anyway; the camera and gimbal destroyed on the ground; a knee or knuckles into my chest in the holding cell; a threatened felony charge when I pulled away; a heart rate paramedics clocked between 140 and 160 beats a minute,

which marshals and paramedics on scene suggested I was faking to avoid custody. I described being shackled and driven to a parish jail booking desk where the deputy receiving me admitted, when asked, that there was no charge — only, in his words, a hold for the U.S. Marshals.

I owe the record one clarification to my own allocution, made here rather than left standing uncorrected: "destroyed" overstated it, and I want to be precise instead of dramatic. The camera and gimbal were introduced at trial as government exhibits — meaning they existed intact enough to be logged, marked, and shown to the court, not smashed to pieces. The court's own findings after that two-day trial, with the arrest video in evidence, describe me refusing Deputy Nugent's order, being warned, and being arrested after a countdown — they make no finding of a fall, a struggle, or physical damage. But intact enough to sit on an evidence table is not the same as undamaged. A gimbal is a precision instrument built around sensitive stabilization sensors, and mine did not work correctly afterward — the kind of internal damage a chain-of-custody exhibit photo would never show. What I said in the moment, "destroyed on the ground," was my own overstatement under real physical and emotional stress; what I can actually stand behind is that the equipment was damaged and stopped functioning as it had before, on my own account, not the court's finding. I am printing both the overstatement and the correction rather than let either one stand alone.

I drew a direct line from that condition to the two banishments described in earlier chapters — the 2017 exclusion from Lafayette County and the 2022 exclusion that followed it, the second of which became the pretext for a revocation built on testimony I maintain was perjured, and cost me a year in custody and my presence at my son's birth. I told the court I recognized the pattern because I had already lived it, and that I would not give the government another chance to use a geographic-access condition as a trip wire. I stated for the record that I did not consent to any probation condition restricting my presence in public buildings, my recording, or my speech, and that if the court intended to impose one anyway, it would do so over my objection and without my consent.

The court did not fully agree with me, but did not fully agree with the government either. The sentence imposed was time served — credited toward, not substituted for, a possible future revocation — plus two years of unsupervised probation. The courthouse-access condition survived, but narrower than the government's own request: barred from the John M. Shaw courthouse and any federal courthouse in the state of Louisiana specifically, not nationwide, unless conducting legitimate business, in which case two business days' notice to the U.S. Marshals Service is required. No fine was imposed and the special assessment was waived; the court found me financially unable to pay either.

The condition's own wording did the vagueness objection's work before Talbot ever spoke. The court barred me from the John M. Shaw courthouse, or any other federal courthouse within the state of Louisiana, or upon any grounds adjacent thereto owned or leased by the United States government or any of its departments or agencies — a sentence that opens narrow, widens to the whole state, and then widens again with a clause that drops the state limitation entirely before the exception clause finally narrows it back down. Read closely afterward, the most defensible interpretation ties that last clause back to the Louisiana courthouses specifically, not to federal property everywhere. Heard once, live, over a video link, in the middle of a ninety-minute hearing, it did not read that way at all — it read like a nationwide ban with a two-word Louisiana carve-out that might or might not still apply. Talbot objected on the record that "legitimate business" was impermissibly vague — the government's own answer, that the standard was the same one any accredited journalist already follows when declining to film inside courthouse corridors, was enough for the court to overrule the objection and let the language stand. But the deeper vagueness was never in "legitimate business" at all. It was in the sentence that came before it, and it was confusing enough that even careful, contemporaneous listening left me unsure, in the moment, what the condition actually covered — which is itself the plainest evidence that the objection Talbot made was the right one, whatever the court's ruling on it.

A sidebar midway through the hearing produced the exchange that will likely matter most on appeal. The court's initial phrasing — sentencing me "to the time served thus far" and then, separately, imposing probation — reads, and was heard by me, as two sentences stacked on top of each other. Brought back on the record after a private conference, the court clarified that this was not the intent: the time-served credit only becomes operative if the probation is later revoked, at which point I would face resentencing on the original charge, capped at the same thirty-day statutory maximum, with credit for time already served against it. I pressed for a direct answer on whether the court could hold me longer than thirty days across a full violation-and-revocation cycle. The court declined to answer what it characterized as a hypothetical, and directed me to my attorney. The government's own explanation for why it would not answer — that my own conduct on the day of any future violation could expose me to entirely new charges, making any general answer impossible to give responsibly — was, on its own terms, reasonable. It was also, from my side of the video link, not an answer, and the record now shows me saying so plainly, on the record, before the hearing closed.

Rule 58(g)(2)'s fourteen-day appeal clock began running at entry of the written judgment the court indicated would follow within days of the hearing. The plan documented in Chapter 34 — a Notice of Appeal paired with a motion to unseal the trial transcript and lift the protective order

governing the marshal-communications testimony — proceeds from here, built around the same spoliation and structural due-process argument already laid out: not a request that a reviewing court resolve how much protection courthouse-lobby recording deserves, but whether I received a fair trial on a complete evidentiary record, when the record's own gaps are the government's making.

What the hearing did not resolve — what no one in that video call, including the court itself, appeared able to resolve in the moment — was how a two-year probationary period squares with a thirty-day statutory ceiling if it is ever tested. That unresolved question, more than the courthouse-access condition itself, is what I carry out of Lake Charles and into the appeal.

A second, quieter worry sits underneath it. Standard federal probation carries a mandatory condition that the probationer commit no new federal, state, or local crime during the probationary term — required by statute for every person on federal probation, not something added because of who I am or what I do for a living. But I have spent the better part of a decade being arrested by state and local officers on charges that were later dismissed, reversed, or vacated outright — the 2017 Lynch case, the 2022 Union County arrests, the Galveston DWI that collapsed to a 0.00 blood-alcohol result, the New Orleans battery charge disposed of as a law-enforcement error, the Mississippi Court of Appeals reversal that came down as recently as February 2026. Given



that record, and given the documented BOLO alerts already circulating my name to marshals and court security officers across two states before this case ever began, the fear that a future pretextual arrest anywhere could be used to trigger a federal probation violation is not an abstract one for me. It is the same fear, arrived at from a different angle, that produced my allocation in the first place: that an indefinite condition, once attached to my name, becomes a lever other people can pull. What actually limits that lever — a revocation still requires the government to prove, at a hearing, that a new offense was actually committed, not merely alleged — is real, but it is a legal safeguard I will have to rely on being enforced correctly by the same system that has, by my own experience and by several since-reversed dockets, not always gotten that right the first time.

## THE FINANCIAL WARFARE OF CONSTITUTIONAL LITIGATION

**A**cross the previous thirty-five chapters, I have documented a legal and institutional conflict spanning eight years, two states, and more than a dozen separate courts, agencies, and departments. I step back now from the narrative to ask a question none of the preceding chapters could fully answer while staying inside the story: what did all of this actually cost, and who was built to survive that cost?

Start with the bond amounts alone, because they are the plainest, most quantifiable measure of it. The original 2017 Lynch charge carried a \$150,000 bond, set by Justice Court Judge Carolyn Bell. The 2023 Galveston felony DWI charge — the one built on a contradicted affidavit, corroborated by a federal magistrate's later findings — carried a \$100,000 bond, and held me in pretrial custody for approximately eleven months before the felony was quietly downgraded. A person facing \$250,000 in cumulative bond exposure across two proceedings, years apart, in two different states, is not a person the system expected to be able to simply post bond and walk. Bond amounts of this size function, whatever their stated purpose, as a form of pretrial punishment for anyone

who cannot immediately produce them — and I, a veteran discharged under other-than-honorable conditions, working as an independent journalist without institutional backing, was never going to be able to produce them.

I have said plainly, on camera, what the cumulative effect of eight years of this litigation was on my actual housing situation: I lost four houses over four years, fighting this without an attorney for most of it. I am not going to reconstruct a property-by-property accounting here that I cannot document to the standard the rest of this book holds itself to — I don't have deeds, mortgage statements, or foreclosure filings assembled for each one. What I can state, because I have said it consistently and it is consistent with everything else in this chapter, is the shape of the loss: a homeowner, over the same eight years documented across the preceding thirty-five chapters, became a man living out of his car, and the legal bills, lost work, and repeated pretrial detentions detailed throughout this account are the most obvious explanation available for how that happened.

Then count the towing and impoundment fees, the small-dollar charges that recur across 2025 and 2026 almost as a background hum beneath the larger legal drama: the June 2026 seizure of my 2016 Mitsubishi Outlander in Galveston, held twenty-two hours and towed to a lot charging \$373.94 for two days, on top of a base impound fee Galveston's own municipal code caps — a cap a private towing company appears, per a June 2026 temporary restraining order, to have

stacked additional daily storage and surcharge fees on top of, in what that TRO itself characterized as a profit-motive argument. A single tow-and-impound cycle costing several hundred dollars is a rounding error against a \$100,000 bond. It is also, for a homeless veteran living out of my car — my own documented living situation across large stretches of this timeline — potentially the difference between having a functioning vehicle and not having one, a distinction that matters enormously to me, a person whose work requires me to travel between courthouses, file records requests in person, and simply survive.

In Chapter 24, I already identified the single most consequential financial variable in this entire eight-year story: the presence or absence of counsel. My 2022 pro se federal lawsuit against Lafayette County, filed without a lawyer, was dismissed with prejudice. The 2024 post-conviction relief petition that produced the January 2025 full vacatur of my 2022 stalking conviction was filed by Jacob Howard of the MacArthur Justice Center — a nationally recognized civil rights litigation organization with institutional resources no individual pro se litigant can replicate. The difference between those two outcomes is not, primarily, a difference in the strength of my underlying grievances; the underlying facts supporting both filings were substantially the same facts documented since Chapter 4. The difference is the presence of institutional legal resources in one case and their absence in the other.

This is where this chapter's title earns its place. "Financial warfare" is a strong phrase, used deliberately rather than lightly. It is not a claim that any specific official set out, consciously, to bankrupt me into submission — there is no evidence supporting that specific intent, and none is alleged here. It is a claim about structure and effect, independent of intent: a system in which \$150,000 and \$100,000 bonds, stacked towing fees, and the sheer multi-year duration of parallel litigation across multiple states functions, in its cumulative effect, as a mechanism that favors institutional defendants — counties, cities, federal agencies, all backed by public budgets and government attorneys who are paid regardless of outcome — over an individual plaintiff who must personally absorb every dollar of bond, every towing fee, every filing cost, and every hour of unpaid labor spent drafting my own pro se motions, while also trying to survive day to day.

My own pro se litigation sophistication grew considerably over this period — the nine motions citing thirty-two Supreme Court cases filed in Union County Justice Court in May 2026, detailed in Chapter 33, reflect a considerably more sophisticated litigant than I was when I filed the dismissed 2022 federal complaint four years earlier. That growth is itself telling: it took years of forced, unpaid legal self-education, conducted while homeless and while fighting parallel cases in multiple states, for me to develop the litigation skill that institutional

defendants could simply purchase from day one, with public money, without having to personally live through a single day of what they were defending against.

No policy solution to this asymmetry is offered here — that isn't the point of this chapter. What follows instead is documentation: a decade-long record of exactly what it costs, in dollars and in years, for one individual to hold a set of local, state, and federal institutions accountable through the American legal system's own designated channels — and a clear-eyed accounting of how much of that cost fell on me personally, rather than on the institutions whose conduct I have examined across these thirty-five chapters. The epilogue that follows closes not with a verdict, because my story does not yet have one, but with where things stand as of this writing, and what remains unresolved.

## EPILOGUE

### THE FIGHT CONTINUES

I began with a flag petition in September 2016 — a small, unremarkable act of civic participation, 4,486 signatures gathered under my name, Matt Reardon, that would spend the next decade becoming synonymous, across two states and more than a dozen courts, with one of the more sustained individual confrontations with local and federal institutional power this country's recent history has documented. Both of the two proceedings that were still pending when I drafted my last chapter have since resolved, within three days of each other, and I close this book with both outcomes in hand rather than in anticipation.

On August 7, 2026, I was sentenced in the federal courthouse case to time served — roughly thirteen days — plus two years of unsupervised probation, no fine, and a restriction barring me from entering the John M. Shaw federal courthouse or any federal courthouse in Louisiana without giving the U.S. Marshals Service two business days' notice of legitimate business. It was not the outcome an outside observer might have expected given everything documented in Chapters 27 through 29 — the BOLO alerts predating any charge by two months, the spoliated lobby footage, a magistrate who recused herself months earlier over the appearance of bias created by

the Marshals' own pre-charge communications. It was, in the sentence itself, a comparatively light outcome. It was not, in what the sentencing court told me at sidebar, a clean ending: "time served" is credit against a future revocation, not unconditional discharge, and if the two years of probation are ever revoked, I face resentencing on the original charge with credit for time already served, not a closed book. The fourteen-day clock to appeal that judgment is one of two appellate deadlines I am now living inside simultaneously.

The second is *Reardon v. Osteen*. On August 10, 2026 — three days after the sentencing above — I learned that this federal civil rights case, the one that had spent thirteen months documenting a Galveston police officer's own department conceding, on the record, that he lied about smelling alcohol on my breath, had been dismissed in its entirety. I did not learn this from the court. As of this writing, I still have not been served the district judge's written order, in violation of the plain language of Federal Rule of Civil Procedure 77(d)(1). I have filed a motion demanding that service, and — because the right to appeal runs from the date of entry rather than the date of notice, and I am not willing to lose that right to someone else's delay — I have also filed a protective notice of appeal from the best information available to me, reserving the right to correct it once the actual order is finally in my hands.



This is not the shape a conventional book chooses for its ending, and the reason for that has been plain since the prologue: my story is not over, even now, with both remaining threads from my last chapter formally resolved. Nothing in the thirty-six chapters that precede this epilogue represents a closed case in the ordinary sense, and neither of the two rulings that arrived in the first two weeks of August 2026 closes it either. The federal courthouse conviction stands, appeal window running. The Osteen case stands dismissed, appeal window running, its actual reasoning still withheld from me by the same court that issued it. The gag order stands, pending my own planned post-sentencing challenge to it. Even the fully vacated 2022 stalking conviction and the reversed 2024 dismissal — the two clearest institutional acknowledgments of error documented in Chapters 25 and 26 — arrived only after years of litigation, and only for two of the many separate proceedings I have traced across these chapters. The pattern holds even at the very end: a citizen's right to know why he lost a federal case, secured on paper by a rule with no ambiguity in its text, still had to be fought for separately from the case itself.

What can be said with confidence, having tried across every chapter to hold two things true at once rather than choosing the simpler, one-sided version of my story, is this: my decade-long conflict with the institutions of Lafayette County, Mississippi, and later with institutions in Louisiana, Texas, and beyond, contains real, documented, and in several

instances judicially confirmed institutional misconduct — spoliated evidence, contradicted sworn testimony, a duress-signed order that metastasized five years later into a felony conviction, a sheriff who told two courts two incompatible things about the same category of video evidence, a Galveston officer whose own department's later court filing conceded he lied about what he smelled. It also contains, documented with the same honesty applied to every institutional failure, a pattern of my own conduct that a fair reader is entitled to find troubling: confrontations that escalated past documentation into provocation, children present at moments of real risk, a livestream caption suggesting I understood I was inviting the very confrontation that followed, and choices about my own safety and judgment that were never uniformly sound.

Both of these things are true, in the same man, across the same decade, and my central argument — my layered thesis, named explicitly in my earliest pages and honored, chapter by chapter, through my last — is that neither fact cancels the other out. A person can behave in ways that invite scrutiny and criticism, and the institutions responding to that person can still, independently, behave unlawfully, unfairly, or dishonestly in how they respond. American constitutional protections do not exist only for citizens whose conduct is beyond reproach; they exist, if they mean anything at all, precisely for citizens whose conduct is imperfect, confrontational, and sometimes genuinely difficult for the officials tasked with responding to it. Measuring whether those officials met their

own legal and constitutional obligations, independent of whether their subject was easy to like, is what I have tried to do across every one of these thirty-six chapters.

Whatever the courts still deciding my fate ultimately conclude — about the courthouse conviction now on appeal, about the Osteen dismissal now on appeal, about the gag order I intend to challenge once I am no longer bound by it — the documentary record I have assembled here will not change. The bill of sale still postdates the alleged threat by twelve days. The FBI form is still missing. The judge swap still happened twice with no stated reason. The sheriff still told two courts two different things about the same evidence. The Galveston officer's own department's filing still concedes he lied about what he smelled. The BOLO alerts still predate the arrest they eventually produced by two months. None of this is argued on my behalf. These are facts found in the record, sourced as carefully as the available material allowed, and reported honestly alongside every place where that same record required equal honesty about my own conduct.

I chose the title *American Injustice*, not *Reardon's Injustice*, because the belief underlying it — earned, hopefully, through documentation rather than assertion — is that what happened to me across Lafayette County, Mississippi, and the institutions that followed me beyond it, is not only my personal story. It is a case study in what happens when a citizen without money, without a law degree, and without institutional backing tries to hold local and federal power

accountable through the very legal channels that power designed for exactly that purpose — and in how long, how expensive, and how uncertain that fight remains, even when the underlying facts, eventually, in enough instances to matter, are found to support me.

The fight continues. I will update as it does.